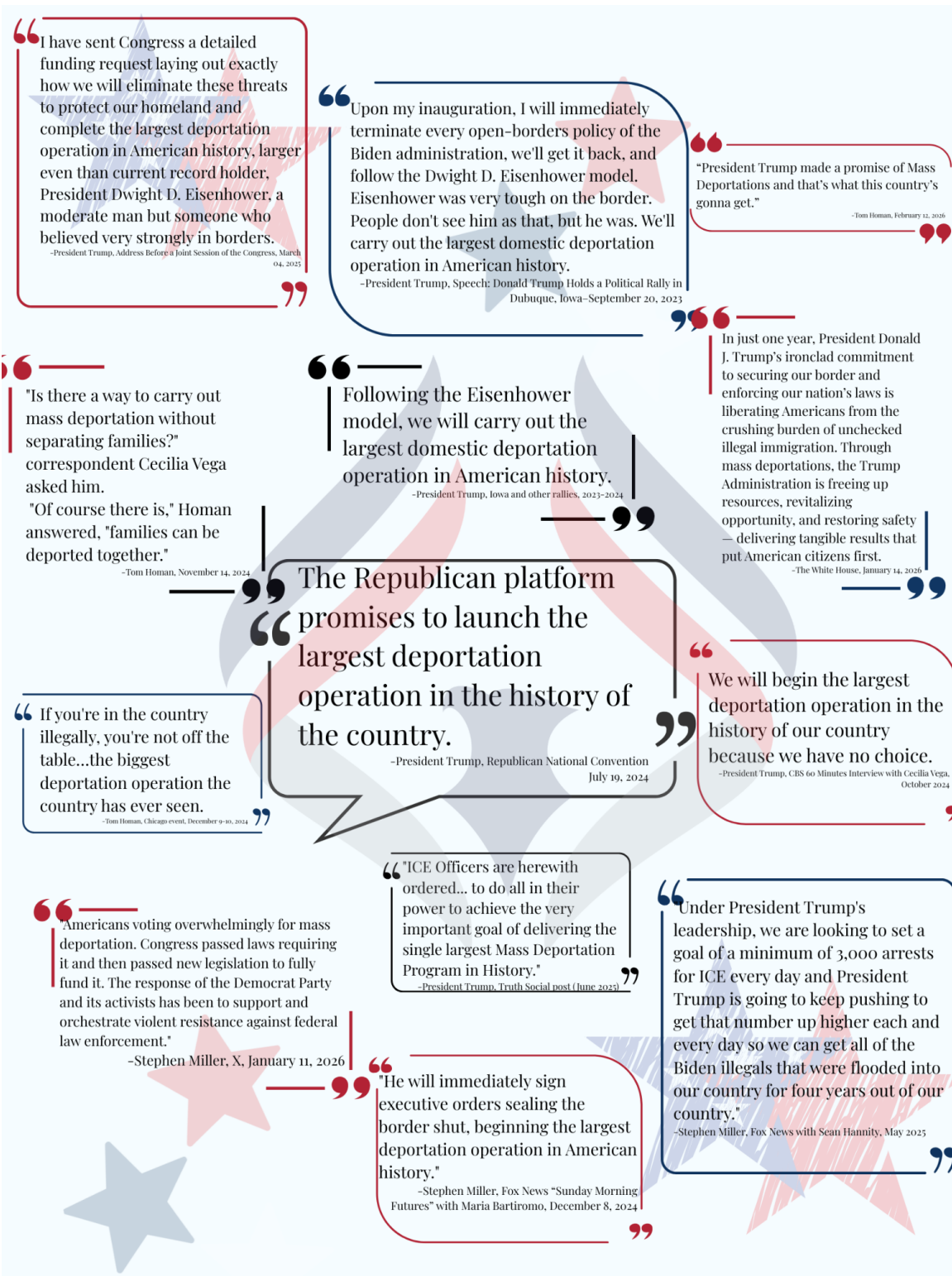


# Mass Deportation Coalition Playbook

March 30, 2026

# Promises Made



# Introduction

## What's At Stake: The Necessity of Mass Deportation

As the United States of America completes her 250th year of existence, the central question for the people of this nation is whether they desire to preserve a sovereign nation, composed of a self-governing people organized through the Constitution and with a government with fidelity to the rule of law.

After decades of sustained illegal immigration and little enforcement, the consequences facing our nation are no longer theoretical. State and local governments are carrying an unsustainable fiscal burden as public services are extended to those who should not be here and their dependents. What was once understood as a limited safety net for citizens has, in practice, been stretched into a parallel system for non-citizens. Through a combination of emergency mandates, administrative loopholes, and widespread abuse, billions of taxpayer dollars are diverted each year to sustain this reality. Estimates vary, but analyses of federal and state expenditures suggest that total public costs associated with this foreign invasion run into the hundreds of billions annually, according to the Federation for American Immigration Reform. In many cases, access to benefits is facilitated through fraudulent documentation, identity manipulation, or the exploitation of mixed-status households; often with the knowing assistance of individuals and advocacy networks willing to subordinate the interests of American citizens to an ideological agenda.

Hospitals and emergency services, particularly in border states and urban centers, operate under increasing uncompensated care burdens, with costs ultimately borne by taxpayers. Federal law compels hospitals to provide emergency care regardless of legal status, contributing to tens of billions of dollars in uncompensated care nationwide each year, according to data from the American Hospital Association. In border states and major urban centers, this has become a persistent and growing burden, forcing hospitals to shift costs onto taxpayers and insured patients while reducing capacity for the communities they were built to serve. Emergency services have left local governments to cover costs that are never recovered.

America is not facing a temporary challenge. Public systems designed to serve the American people are being repurposed, without consent and without limit, to sustain foreigners. Further, the steady degradation of service quality and a growing fiscal crisis at the state and local level are culminating in an increasingly justified belief among American citizens that their government is failing in its most basic obligation: to serve its own people first.

At the same time, the labor market effects are not evenly distributed. While aggregate economic indicators such as GDP growth or overall employment may obscure localized impacts, the burden falls heavily on lower-income American workers, particularly those without college degrees, who compete in sectors of the economy where wages are being compressed. Economic research has consistently shown that increases in the supply of low-skilled foreign labor place downward pressure on wages for similarly situated native workers. This is especially true in industries such as construction, restaurants, hospitality, agriculture, and manufacturing, according to the Center for Immigration Studies. Even modest wage suppression, when compounded over time, has significant consequences for American families living paycheck to paycheck.

This dynamic reinforces economic immobility for working-class Americans. Workers have lost the ability to adjust. Employers, faced with a larger labor pool, have gained an illicit leverage to suppress native-born wages, reduce benefits, and bypass labor standards. This influx has contributed to a bifurcation of the labor market. For working-class Americans, particularly young men without college degrees, this translates into fewer stable job opportunities, reduced wage growth, and diminished prospects for family formation and long-term economic stability.

The cumulative effect is a widening gap between economic classes. While the benefits of low-cost labor are dispersed, often captured by employers and consumers, the costs are concentrated among the most economically vulnerable Americans. Over time, this dynamic reinforces economic immobility, weakens the dignity of work, and contributes to the broader sense that the economic system is no longer structured in the interests of the American worker.

Beyond economics, however, the deeper issue is cultural and civic fragmentation.

In many parts of the country, the rapid scale of illegal immigration has outpaced the nation's capacity for assimilation. Census data shows that more than one in five people aged 5 and older in the United States now speak a language other than English at home, totaling more than 67 million people, while nearly 8–9 percent of the population, over 25 million people, report speaking English less than “very well.” These figures are significantly higher in major metropolitan areas and certain states.

The effects are especially visible in public education. Nationwide, over 5 million students, more than 10 percent of all public school enrollment, are classified as English Language Learners (ELL), with concentrations exceeding 20 percent in states like California and Texas. In many school districts, this places significant demands on resources and, in many cases, slows instructional pace for entire classrooms.

Beyond schools, the need for multilingual accommodation has become embedded across public institutions. Courts, hospitals, and local governments increasingly rely on translation and interpretation services to function effectively, with federal law reinforcing these requirements. This is no longer a transitional phase of assimilation; it's become a structural feature of American life. Historically, immigration to the United States was paired with a strong expectation of linguistic assimilation over time. When large populations remain linguistically separate for extended periods, it affects more than communication, it alters the conditions of civic life itself. A shared language is the foundation of democratic participation: it enables citizens to engage with laws, understand public debates, and hold institutions accountable. Without it, civic participation fragments, public discourse becomes siloed, and the sense of a common national life weakens.

The signs of a national collapse are no longer subtle. In major cities and public demonstrations, foreign flags are increasingly displayed with pride on American streets—sometimes not alongside the American flag, but in place of it—signaling a shift in allegiance from assimilation toward persistent identification with countries of origin. At the same time, foreign ownership of American land and property has steadily expanded, with millions of acres of U.S. farmland and strategic real estate now held by foreign nationals and entities, including adversarial nations. This dual phenomenon, cultural detachment at the street level and external acquisition of physical assets at the structural level, reflects that the nation is at risk of not being defined by a unified people with a primary loyalty to their country. The republic cannot endure if large numbers within its borders do

not fully identify with it, or if control of its land and resources increasingly shifts beyond its citizens.

Crime and disorder have also emerged as areas of concern, particularly where enforcement of immigration law is weakest. The inability, or unwillingness, of federal authorities to remove every individual who has violated immigration law contributes to a broader perception that laws can be ignored without consequence. That broader perception thus empowers violent offenders, enabling preventable crimes to occur; sometimes with tragic consequences. The murder of Laken Riley, a 22-year-old nursing student killed by an illegal alien, stands as one of the most visible examples of this failure. Similar cases have occurred across the country. In Maryland, Rachel Morin, a mother of five, was raped and murdered. In Texas, 12-year-old Jocelyn Nungaray was killed. And in Chicago, 18-year-old Sheridan Gorman was allegedly murdered by an illegal alien. In each instance the tragedy is not only the crime itself, but the prior breakdown in enforcement that allowed it to happen. When all foreigners who have violated immigration law are not consistently identified, detained, and removed, the government effectively accepts a level of risk that would otherwise be avoidable. This reality contributes to a growing public perception that laws can be ignored without consequence, undermining both deterrence and confidence in the institutions responsible for maintaining public safety.

The consequence of each of these problems is not diversity in the traditional American sense, where newcomers are integrated into a common culture, but parallel societies developing within the same geographic space. Civic participation declines when language barriers persist. Social trust weakens when shared norms become absent. Public life becomes more transactional and less cohesive. Taken together, these realities point to a single conclusion: the American republic cannot survive without mass deportations.

The only solution to this existential crisis for the United States is mass deportation of illegal aliens. If properly carried out, and border and immigration controls are faithfully enforced moving forward, a deportation operation of this scale would not only restore legal order but relieve pressure on public systems, stabilize labor markets for American workers, and reestablish the conditions necessary for cultural assimilation and national cohesion.

President Trump promised not only to secure the border, but to “carry out the largest deportation operation in American history.” During his first year back in office, President Trump, with full resistance from political opponents, special interests, and media, took the first steps to potentially begin such a program. First, and most importantly, he secured a massive influx of resources to Immigration and Customs Enforcement (ICE) through a reconciliation package for the purposes of mass deportation. Second, ICE began a very public focus on the arrest and deportation of criminal illegal aliens. As the administration has admitted, the total criminal illegal population is a relatively small subset of the total illegal population—with estimates from members of the Trump Administration ranging from 500,000 to 800,000. At times, this strategy has been referred to as “the worst of the worst” or the “worst first.” This enforcement tactic was not a mass deportation strategy, but one of perceived quality of deportations over quantity. In doing so, ICE resources surged at a small population. The American public witnessed widespread obstruction of ICE, record violence targeting ICE agents, and a complete resistance by some state and local governments. In short, it demonstrated that the political opposition would tolerate no deportations at all.

With little over a year of this administration completed, the time for the first phase of deportations, “the worst first,” should come to an end and advance to phase two: a mass deportation program.

The first year can be celebrated as a success for highlighting the quality of the criminal population removed, but the less than 350,000 actual deportations, according to scarce data produced in connection with detention management, don't represent a victory in quantity. Moreover, recent disclosures that only 72,000 deportable aliens completed their use of the CBP Home app demonstrate that self-deportation is not happening at the rate advertised.

The Trump Administration has at its disposal the resources to execute phase two, even if political opponents refuse to fund the Department of Homeland Security. What remains is a policy choice: to carry out a program of mass deportation, in keeping with the campaign promise, or not. This playbook provides the executive branch policy solutions to keep the promise and achieve at least one million formal deportations in 2026 so that in the years to follow, the numbers can drastically increase in order to provide the long-needed correction to widespread illegal immigration and presence in the United States. With estimates of the total illegal population ranging from the twenty million figure provided by President Trump, and the recent disclosure by Stephen Miller that twenty million illegals came in during the Biden Administration alone, one million deportations in 2026 is a modest start. That modest start can put the operations and policies in place to remove all illegal aliens. This playbook charts the path to do just that.

# Notes on Coalition and Playbook

The Mass Deportation Coalition was formed in February 2026 in response to political, operational, legal, and physical attacks on deportation operations. The express purpose of the Mass Deportation Coalition is to support President Trump's signature campaign promise to "carry out the largest deportation operation in American history." The Mass Deportation Coalition is composed of immigration law and policy experts, former senior and rank and file law enforcement officials, advocates, and supporters who will provide a permanent support base for mass deportation.

The coalition is united around five key principles that would result in achieving mass deportation and restoring public confidence:

- **From "Worst-of-the-Worst" to "Phase II: Mass Deportations"** — Prioritization of criminal enforcement policy, also known as "worst-of-the-worst," is rooted in the Clinton Administration and morphed from the exception into the rule during the Obama and Biden Administrations. It is unwarranted in the Trump Administration, as it creates an operational cap on enforcement results. Focusing the bulk of removal resources on a small subset of the removable population results in small removal numbers. Instead, the Phase II focus should be on populations that are easier to remove such as deportable aliens with final orders of removal and visa overstays, and policies like worksite enforcement.
- **Worksite Enforcement** — Worksite enforcement is the most critical missing enforcement policy for the Trump Administration to get on track and meet his agenda. This coalition stands by the key findings of the U.S. Commission on Immigration Reform, led by former Representative Barbara Jordan (D-TX). Too many in Congress have shown disdain for the enforcement of our laws.
- **Whole of Government Approach** — Meaningful numbers of self-deportations will only occur when ICE deportations significantly increase and there is a whole-of-government effort to encourage deportable aliens to leave.
- **Complete Data Transparency** — Regular and complete data transparency from the Trump Administration is a requirement to achieve confidence that the administration is still pursuing his signature campaign promise, which will be his defining policy legacy.
- **Meaningful Metrics** — ICE Interior Removals are defined as a combination of: Expedited Removals from the Interior of the United States; Reinstatement of Removal; Administrative Removals (e.g. aggravated felons); and Removal Orders from an Immigration Judge. While the government, over the course of several administrations, has used different components and definitions to arrive at deportation/removal numbers, we will consolidate public understanding of removals as this metric of ICE interior removals. Not included are: turn backs, maritime interdictions, timely self-departures, and untimely self-departures. A subset of untimely self-departures would include CBP Home App completions.

The following playbook represents a menu of policy, operational, and logistical options to achieve at least one million deportations in 2026. The playbook is not intended to be comprehensive. The playbook is a collection of recommendations from participants, and, like any group exercise, is the best summation of consensus as opposed to absolute technical unanimity. It is intended to both

prove the feasibility of a mass deportation program and to inspire action. Some of the recommendations are not new types of action, but a scaling of the degree of implementation.

The feasibility of this playbook rests on two pillars: the legal and policy authorities described in the recommendations that follow, and the operational capacity to execute those authorities at scale. The policy recommendations in this document would remain theoretical without a credible operational plan to screen millions of cases, locate and apprehend deportable aliens, detain them securely, and transport them out of the country within the timeframe this campaign demands. That operational plan has been developed by coalition partners with decades of experience in federal law enforcement, military logistics, government contracting, and large-scale transportation operations.

A dramatic shift in strategic philosophy is required to implement this package of recommendations. The Trump Administration must transition the nationwide strategy to include active targeted enforcement of non-criminal deportable aliens, in addition to criminal illegal aliens residing within the United States, leading to their arrest/apprehension and timely deportation. This transition must include an aggressive focus on identifying and, when appropriate, prosecuting U.S. employers who knowingly and willingly hire illegal aliens in violation of the law.

This will require an operational adjustment, including the dedication of enhanced resources and lines of effort targeting the full spectrum of differing categories of deportable aliens, along with political will, to remain steadfast that any deportable alien in the country is a legitimate and necessary target of enforcement and deportation.

The operational environment must open its “prioritization aperture.” Resources must be distributed more efficiently and effectively. Supporting entities must be leveraged to effectuate the simultaneous targeting and enforcement of multiple categories of aliens illegally present. Millions of deportable aliens should no longer be treated as a by-product of collateral enforcement by allocating a disproportionate volume of resources towards a small sub-set of criminals.

In short, an effective enforcement strategy must include both a quality and quantity component. These are not mutually exclusive objectives and can be achieved simultaneously. We cannot fall prey to a false binary choice that if we have quantity as an objective, then quality will cease to exist. In fact, the quality of life for Americans will improve in countless ways.

# Executive Summary



The following twenty-one recommendations constitute the operational framework of the Mass Deportation Coalition Playbook:

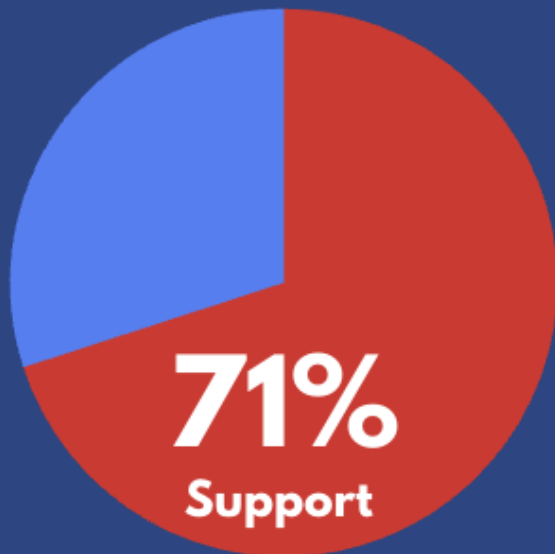
- Substantially enhance worksite enforcement
- Move the employment verification process online
- Debank illegal aliens
- Dramatically expand immigration detention
- Enforce the alien registration requirements through criminal prosecutions
- Deny all visas to nationals of recalcitrant countries
- Reform and substantially limit asylum
- Enforce civil fines for failure to depart
- Expand civil asset forfeiture for immigration violations
- Identify and target visa overstays
- Download deportation orders and other immigration crime information into NCIC
- Transfer authority over no-match letters to the IRS
- Leverage Department of Labor authorities
- Assign Special Assistant United States Attorneys to prosecute immigration-related crime
- Reassign immigration officers within DHS
- Place all interior immigration enforcement operations inside the Homeland Security Task Force
- Fully utilize other procedures to deport criminal aliens
- Litigate challenges vigorously
- Leverage States to participate
- Track and publicize meaningful benchmarks and statistics
- Keep HSI tethered to immigration enforcement

## Substantially Enhance Worksite Enforcement

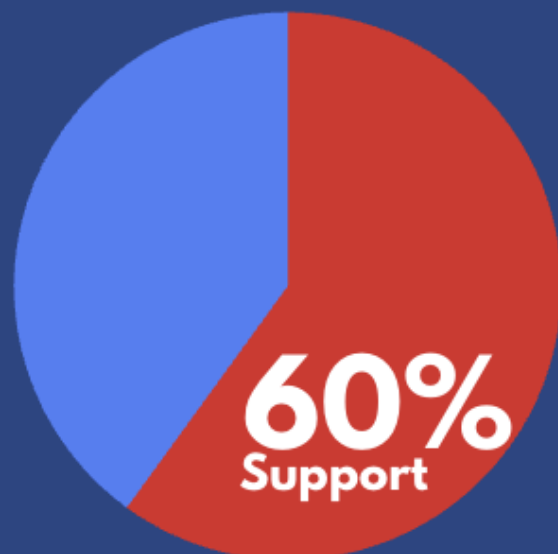
There is no chance for a mass deportation program if worksite enforcement is not the centerpiece. Enforcement at scale means focusing on physical areas where illegal aliens are concentrated: worksites. This is how President Eisenhower, who President Trump pledged to surpass in terms of enforcement efforts, was able to achieve his success. The Trump Administration should immediately announce that worksite enforcement will commence at scale. That announcement should be coupled with operational and data transparency as to the dedication of resources to this effort. The administration should track and provide regular statistical accomplishments as they pertain to direct worksite enforcement efforts, such as: the number of worksite investigations; resulting arrests; the number of Blackie's warrants issued; the number of employer prosecutions; etc.



# Do you support or oppose penalizing employers that violate the law against hiring illegal migrants?



**All**

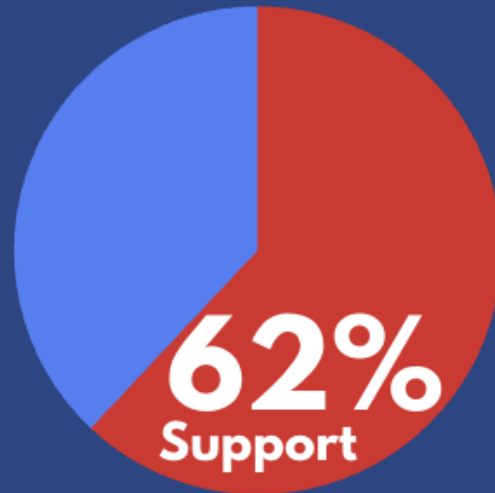


**Hispanics**

# Americans support strengthening workplace immigration enforcement to help raise wages for American workers.

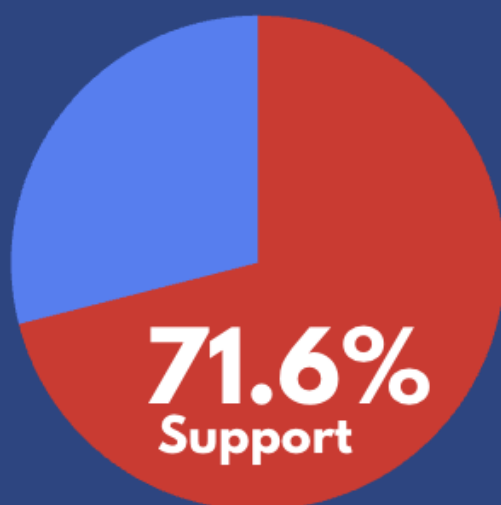


**All**

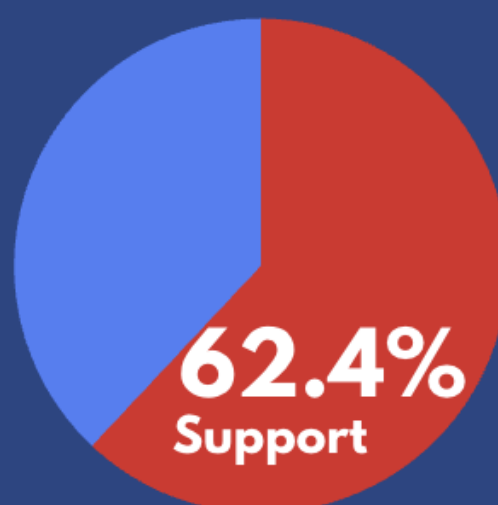


**Hispanic**

**To ensure jobs are reserved for legal residents and prevent the exploitation of migrant workers, do you support or oppose the federal government conducting regular audits and enforcement actions at businesses that knowingly hire illegal immigrants?**



**All**



**Hispanics**

“Employment continues to be the principal magnet attracting illegal aliens to this country. As long as U.S. businesses benefit from the hiring of unauthorized workers, control of unlawful immigration will be impossible. The Commission believes that both employer sanctions and enhanced labor standards enforcement are essential components of a strategy to reduce the job magnet.”

— Barbara Jordan, August 1994 testimony before the Senate Judiciary Committee

Fourteen years later, in 2008, Marcy Forman, director of Immigration and Customs Enforcement’s (“ICE”) Office of Investigations, announced an increased focus on criminal enforcement against employers who violate the employer sanctions provisions in section 274A of the INA, explaining:

“The prospect for employment in the United States continues to be one of the leading causes of illegal immigration, creating a market for criminal smuggling organizations who exploit people willing to pay high fees and take great risks to enter the United States without detection.”

— Marcy Forman, ICE Office of Investigations, 2008

Although the prospect of employment has long been recognized as the main reason aliens come here illegally, and despite Forman’s claimed focus on employers that hire illegal workers in contravention of section 274A of the INA, worksite enforcement was then and has long been an afterthought in immigration enforcement.

In FY 2007, ICE initiated fewer than 1,100 worksite cases, resulting in 4,077 administrative arrests of illegal alien workers. Seven years later, in FY 2014, worksite cases nearly doubled, but worksite arrests of illegal alien workers declined by 86.7 percent, to just 541.

ICE increased its worksite enforcement efforts during the first Trump Administration, but they resulted in few deportations. In FY 2018, “HSI opened 6,848 worksite investigations compared to 1,691 in FY17,” but agents arrested just 1,525 illegal workers in the course of those investigations.

Congress added the employer sanctions provisions in section 274A to the INA in the same bill that included the “Reagan amnesty,” the Immigration Reform and Control Act of 1986 (IRCA). Ironically, however, in the years after the passage of that bill, arrests of illegal aliens at worksites plummeted. In its 1984 opinion on worksite arrests, *Lopez-Mendoza*, the Supreme Court explained that “Immigration officers apprehend over one million deportable aliens in this country every year.” The justices also noted that: “In the course of a year, the average INS agent arrests almost 500 illegal aliens.... Most arrests of illegal aliens away from the border occur during farm, factory, or other workplace surveys. Large numbers of illegal aliens are often arrested at one time....”

Today, an estimated 10.8 million to 11.1 million aliens are working here illegally, up from somewhere between 3.5 and six million in the early 1980s. Yet, aside from a few high-profile operations, ICE has not targeted worksites that employ illegal aliens. Consequently, ICE is not arresting and deporting aliens at the levels it did 42 years ago.

The April 2025 Memorandum of Understanding (MOU) between ICE and the Internal Revenue Service (IRS) focuses on criminal investigations of aliens who have failed to depart under section 243(a) of the INA. ICE should enter similar agreements with the IRS and other agencies, including and especially the Social Security Administration (SSA), to identify the businesses where aliens are working unlawfully and target them there.

When ICE serves Notices of Suspect Documents in worksite enforcement investigations, it should speak to employees who provided the suspect documents and prepare warrants of arrest under section 236(a) of the INA in advance to take those employees into custody. If business owners refuse agents’ requests to interview their employees or deny them access to their worksites, ICE should apply for and obtain **Blackie’s warrants** to enter their businesses.

As a former high-ranking INS and ICE official has explained:

“A Blackie’s warrant is a civil search warrant authorizing immigration agents to enter private premises for the purpose of enforcing the civil/administration provisions of law relating to exclusion and deportation. It derives its name from the cases that established their validity—in which a restaurant chain in the metropolitan Washington, D.C., area called Blackie’s House of Beef repeatedly denied entry to immigration agents to search for, and take custody of, illegal aliens in the public and non-public areas of the restaurants.”

Deploying federal resources for worksite enforcement would accomplish multiple goals at the same time. First, since the vast majority of illegal aliens are economic migrants, worksite enforcement would significantly disincentivize the main driver and motivation for illegal immigration into the United States in the first place—economic opportunity for illegal aliens. Fewer illegal aliens will try to come to the United States and those here will be incentivized to leave if their economic opportunities are foreclosed through increased worksite enforcement. Second, if accompanied by a robust employer sanctions program, it would send a message to employers that employ illegal labor that there are real and significant consequences for violating the law and many will stop doing so in order to avoid fines and other penalties. Third, since it is no secret which industries employ large numbers of illegal aliens, worksite enforcement is an operationally low-risk use of resources that would significantly increase the number of interior deportations to accomplish the goal of 1,000,000 deportations in 2026.

Worksite enforcement is only effective to the degree that aliens identified and apprehended at worksites are actually removed from the United States. Historically, worksite operations have produced arrests that were not followed by timely deportation, undermining both deterrence and public confidence. To ensure that worksite enforcement contributes to the mass deportation target, aliens apprehended in worksite operations should be immediately enrolled in the contracted case screening and apprehension pipeline. Cases involving aliens with prior removal orders or clear public charge failures should bypass the litigation phase entirely and proceed to detention and departure. Cases requiring adjudication should be triaged and scheduled on expedited dockets. The operational infrastructure described in this playbook, including the contracted screening teams, deputized apprehension workforce, military installation detention network, and charter air fleet, exists precisely to convert worksite apprehensions into actual removals at the pace and volume this campaign requires. The success of this worksite campaign will largely depend on the aggressive prosecution of the employers of illegal aliens.

# Move the Employment Verification Process Online

To facilitate employers hiring work-authorized aliens, make the business administration less burdensome for employers, and to more easily identify aliens working without authorization, the Administration should permanently and completely move the Form I-9 employment verification process online.

Section 274A(b) of the INA does not specify how employers must document the identification and work-authorization information they are required to collect, but when that provision was added to the INA in 1986, a paper form was reasonable because technology was limited. Today, however, millions of people file documents with the government online, including multiple tax forms, various federal personnel forms, and most notably, a variety of applications for immigration benefits. Given that, there appear to be few practical impediments that would prevent employers from filing Forms I-9 electronically with DHS. Indeed, in today's digital world of employment, honest employers would likely prefer it.

In fact, the act itself envisions that the way employers comply with section 274A(b) would change as technology advanced, as illustrated by section 274A(d) of the INA, captioned "Evaluation and changes in employment verification system." Subparagraph (1)(A) therein directs the President to "provide for the monitoring and evaluation of the degree to which the employment verification system . . . provides a secure system to determine employment eligibility in the United States," and to "examine the suitability of existing Federal and State identification systems for use for this purpose."

Given the millions of illegal aliens working in the United States, few would contend the current paper-based Form I-9 verification system in any way "provides a secure system to determine employment eligibility in the United States." The next subparagraph in the statute, captioned "Improvements to establish secure system," states:

"To the extent that the system established under subsection (b) is found not to be a secure system to determine employment eligibility in the United States, the President shall, subject to [congressional notification requirements in 274A(d)(3)] and taking into account the results of any demonstration projects conducted under [274A(d)(4)], implement such changes in (including additions to) the requirements of [274A(b)] as may be necessary to establish a secure system to determine employment eligibility in the United States. Such changes in the system may be implemented only if the changes conform to the requirements of [274A(d)(2)]."

The last statutory provision referenced, section 274A(d)(2) of the INA, lists a series of restrictions on proposed changes to what is now the Form I-9 process, most notably on how the information collected is protected and shared across the government, and on new documents the government may require employers to accept. If the Administration does not require employers to seek or accept any new documents, and solely uses the information collected for employment verification purposes under section 274A of the INA and immigration fraud prosecutions, none of those restrictions would appear to bar the implementation of an online Form I-9 filing system.

Key to any changes, therefore, would be the Congressional notification requirements for changes to the current system in section 274A(d)(3), which require the President to notify Congress before making any changes or improvements to the employment verification system. In general, the President must notify the House and Senate Committees on the Judiciary 60 days in advance of making any change, but if that change is a “major change” (as defined in section 274A(d)(3)(D) of the INA), the President must wait one to two years after notifying Congress before making the change.

Only one of the defined “major changes” in section 274A(d)(3)(D) of the INA appears to be even arguably relevant to our proposed Form I-9 online filing system: clause (ii), which describes the following change as “major:”

“a change which would provide for a telephone verification system under which an employer, recruiter, or referrer must transmit to a Federal official information concerning the immigration status of prospective employees and the official transmits to the person, and the person must record, a verification code. . . .”

Moving the I-9 process online would be neither “telephonic” nor need to require the employer to “record a verification code.” Consequently, it would not be a “major change” of the plain language of the statute.

Finally, the retention requirement for employment verification forms in section 274A(b)(3) of the INA would appear to support, if not envision, such a change. It states:

“After completion of such form [the employer] must retain a paper, microfiche, microfilm, or electronic version

of the form and make it available for inspection by officers of [DHS], the Special Counsel for Immigration-Related Unfair Employment Practices, or [DOL] during a period beginning on the date of the hiring, recruiting, or referral of the individual and ending – . . . in the case of the hiring of an individual- (i) three years after the date of such hiring, or (ii) one year after the date the individual’s employment is terminated, whichever is later.”

A system that requires employers to file Forms I-9 online directly with DHS would allow ICE to inspect them “at the time of hiring,” and that system could also require employers to maintain an “electronic” version of the form that the Department of Labor (“DOL”) or the Special Counsel could request, which would comply with the rest of the record retention requirement. Accordingly, DHS has clear statutory authority to change the current paper-based Form I-9 employment verification system to an online Form I-9 filing system, provided the President gives Congress 60 days’ notice as required by section 274A(d)(3)(A) before making that change.

This proposal is different from one in which the President could arguably mandate the use of what is known as “E-Verify” by executive action as permitted under section 274A(d) following 60 days’ notice to Congress.

USCIS, which administers E-Verify, explains:

“E-Verify is an Internet-based system that compares information entered by an employer from an employee’s Form I-9, Employment Eligibility Verification, to records available to the U.S. Department of Homeland Security and the Social Security Administration to confirm employment eligibility.”

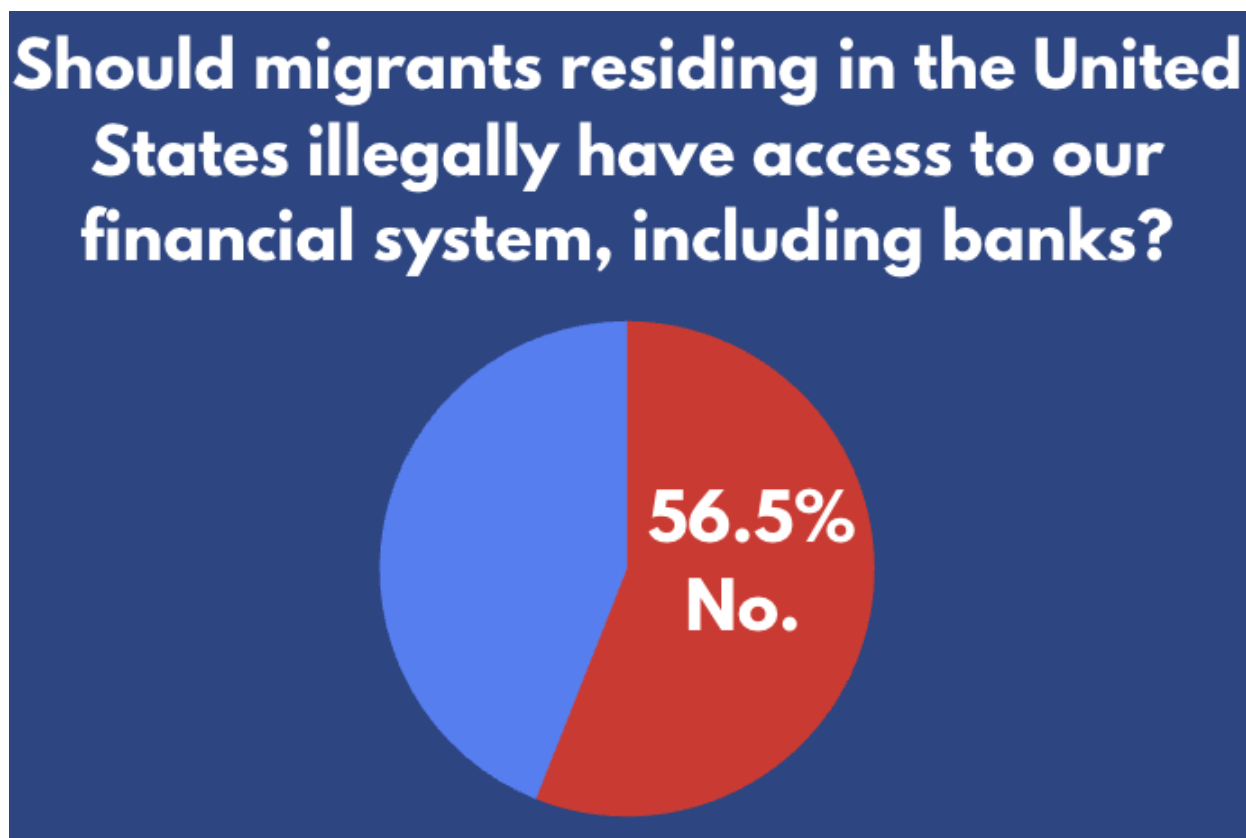
Note that E-Verify notifies employers that specific employees are or do not appear to be employment authorized, whereas moving the Form I-9 filing process online would simply require the employer to forward identification and employment eligibility information to DHS, without any further notification by the government to the employer.

Ideally, the president would mandate E-Verify, which would deny illegal aliens the ability to work without authorization, and thus prompt most to leave voluntarily.

Migrating the current paper-based Form I-9 employment verification process online would provide DHS—and ICE, in particular—ready access to information they need to identify aliens who are working illegally in the United States and facilitate their removal by focusing on the businesses where they are employed.

For each alien who is determined to be working without authorization, ICE should notify several agencies and entities to prevent further downstream economic benefits from unauthorized work. Notified parties should include: USCIS, CBP, the State Department's Consular Affairs, the employer, IRS, Social Security Administration, banks, lenders, landlords, and relevant state and local agencies to end state government benefits. No remittances from ill-gotten gains of unauthorized work should be permitted. Also, when several employees at one employer are found to be unauthorized to work, public notice should be provided in English that job openings are available to American and lawful immigrant job applicants. It is time to debunk the lies that Americans will not do (an ever-growing list of) jobs. Such public notification of job openings would also refute employers' false claims that they cannot find American applicants. Of course, this assumes such employers are paying a fair wage, but that issue is beyond the scope of this playbook.

## Debank Illegal Aliens



Just over six weeks after the September 11th terrorist attacks, Congress passed, and President George W. Bush signed, the Uniting and Strengthening America by Providing Appropriate Tools to Intercept and Obstruct Terrorism Act (PATRIOT Act) of 2001. In part, this law was a response to national-security vulnerabilities identified in the wake of the attacks, including terrorist exploitation of the international banking system, as exemplified by the heading of Title III of the act, the “International Money Laundering Abatement and Anti-Terrorist Financing Act”.

The 9/11 Commission concluded that one impediment that had kept the U.S. government from preventing those attacks was the Treasury Department’s lack of focus on terrorist financing:

“Treasury regulators, as well as U.S. financial institutions, were generally focused on finding and deterring or disrupting the vast flows of U.S. currency generated by drug trafficking and high-level international fraud. Large-scale scandals, such as the use of the Bank of New York by Russian money launderers to move millions of dollars out of Russia, captured the attention of the Department of the Treasury and of Congress. Before 9/11, Treasury did not consider terrorist financing important enough to mention in its national strategy for money laundering.”

Congress, in Title III of the PATRIOT Act, directed the executive branch to close these gaps by refocusing the Treasury Department’s priorities and authorities to disrupt the financing terror organizations relied upon. Section 326 of the PATRIOT Act, “Verification of Identification,” directed

the Treasury Secretary to “prescribe regulations setting forth the minimum standards for financial institutions and their customers regarding the identity of the customer that shall apply in connection with the opening of an account at a financial institution.” Congress intended that those regulations would be written to force banks to “implement reasonable procedures for verifying the identity” of their customers.

In May 2003, the Treasury Department, Federal Reserve, Federal Deposit Insurance Corporation (“FDIC”), and the National Credit Union Administration (“NCUA”) published their final joint “Know Your Customer” (“KYC”) regulations implementing section 326 of the PATRIOT Act. Specifically, the rule required each bank to implement a “Customer Information Program” (CIP) by October 1, 2003, but the regulations distinguished between a given customer who is a “U.S. person,” i.e., a U.S. citizen or “an individual (such as a corporation, partnership, or trust), that is established or organized under the laws of a State or the United States,” and one who is a “non-U.S. person,” defined simply as “a person that is not a U.S. person.”

Those regulations mandated that each CIP “contain procedures for opening an account that specify the identifying information that will be obtained from each customer,” including the customer’s (1) name; (2) date of birth; (3) address; and (4) an “identification number.” For a U.S. person, that identification number could be a Social Security number, individual taxpayer identification number (ITIN), or employer identification number (EIN), collectively referred to as a “taxpayer identification number.”

A non-U.S. person, however, could present one or more of the following numbers to satisfy the regulatory CIP requirement: “a taxpayer identification number; passport number and country of issuance; alien identification card number; or number and country of issuance of any other government-issued document evidencing nationality or residence and bearing a photograph or similar safeguard.” In other words, and notwithstanding Congress’s intent in section 326 of the PATRIOT Act, the regulation implementing it permits aliens to present a wider range of less-readily identifiable, more-easily counterfeited, and less secure documents for CIP purposes than U.S. citizens can. As the rule explained in a footnote, the regulation “provides this flexibility” to aliens “because there is no uniform identification number that non-U.S. persons would be able to provide to a bank.”

Worse, the rule conceded that:

“Treasury and the Agencies recognize that there currently is no method that would permit a bank to verify, for example, a taxpayer identification, passport or alien identification number through an official source.... Thus, a bank need not establish the accuracy of every element of identifying information obtained but must do so for enough information to form a reasonable belief it knows the true identity of the customer.”

As George Fishman, a former senior congressional staffer who assisted in the drafting of the PATRIOT Act observed last August, “the regulations that the Treasury Department actually wrote turned Congress’s intent” in the act “on its head.” Fishman continued:

“Especially when the Trump administration is rightfully encouraging illegal aliens to ‘self-deport’, it makes absolutely no sense to keep Treasury Department regulations on the books that purposefully make it easier for illegal aliens to remain in the U.S. The misbegotten regulations, which should never have been promulgated in the first place, need to be repealed.”

Recent reports suggest the Trump Administration is considering an executive action to “require banks to collect citizenship information from customers” and “ultimately task banks with asking for an unprecedented new category of documents, such as passports, from both new and existing customers who want to maintain a bank account in the U.S.”

Glaring national security vulnerabilities aside, the current CIP regulations facilitate the continued presence of illegal aliens in the United States. If jobs are the “magnet” that draws aliens illegally to the United States, access to the U.S. banking system is one factor that allows them to remain here, as it enables them to shelter their wages in our secure financial system and to send remittances abroad.

Consequently, and to effectuate the clear intent of Congress in section 326 of the PATRIOT Act, the Treasury Department should revise its “Know Your Customer” and “Customer Identification Program” regulations to bar aliens who cannot establish they are lawfully present in the United States from opening or maintaining bank accounts in the United States.

Similarly, DOJ and the Consumer Financial Protection Bureau (“CFPB”) published a “joint statement” in the Federal Register under the Biden Administration in October 2023 that purported “to assist creditors and borrowers in understanding the potential civil rights implications of a creditor’s consideration of an individual’s immigration status under the Equal Credit Opportunity Act (‘ECOA’).” The ECOA “prohibits creditors from discriminating against credit applicants” based on “race, color, religion, national origin, sex, marital status, age, because an applicant receives income from a public assistance program, or because an applicant has in good faith exercised any right under the Consumer Credit Protection Act.”

That vaguely worded 2023 statement appears to threaten lenders with prosecution under U.S. civil rights laws if they considered an alien’s illegal status in the United States in withholding credit. Specifically, it stated:

“ECOA does not expressly prohibit consideration of immigration status, and, as explained further below, a creditor may consider an applicant’s immigration status when necessary to ascertain the creditor’s rights regarding repayment. However,

creditors should be aware that unnecessary or overbroad reliance on immigration status in the credit decisioning process, including when that reliance is based on bias, may run afoul of ECOA’s antidiscrimination provisions

, and could also violate other laws.”

If aliens are present illegally, they are not authorized to work and are subject to deportation, two factors directly relevant to the likelihood they will be able to repay their loans. What “overbroad reliance in immigration status” means in the credit process is open to debate, but no lender should be deterred in any way from denying credit to an alien here illegally. It is unclear whether CFPB and DOJ have revised or rescinded their Biden-era “guidance,” but both agencies should revisit their October 2023 statement to make clear that not only is it acceptable for lenders to deny credit to illegal aliens, but it is also appropriate for them to do so.

# Dramatically Expand Immigration Detention

Detention is mandatory for many classes of removable aliens. For decades, however, ICE has failed to comply with Congress’s detention mandates, and in many previous administrations simply ignored them. ICE should have sufficient bed space to detain every single immigration lawbreaker whose detention is mandatory under the provisions of the Immigration and Nationality Act, along with a surplus to respond to immigration emergencies such as the Mariel Boat Lift.

DHS received \$45 billion “for single adult alien detention capacity and family residential center capacity” in H.R. 1, the “One Big Beautiful Bill Act” (OBBBA), after decades of being denied adequate detention resources by Congress. We applaud the administration’s efforts to use that funding to expand DHS detention facilities and to enter into contracts with private detention operators and state and local prisons and jails. It is critical to increase the number of “daily beds” available to house aliens while they are in removal proceedings and under final removal orders. Mandatory detention is also required for asylum applicants who illegally crossed the border illegally or without a valid visa. DHS must continue to prioritize the expansion of detention capacity.

The Fifth Circuit recently cited a 1997 report in which the DOJ Inspector General (DOJ IG) concluded that “when aliens are released from custody, nearly 90 percent abscond and are not removed from the United States.” The nearly 75,000

in absentia

orders issued by IJs in just the first three months of FY 2026 alone suggests that trend has only gotten worse in the intervening 28 years.

Increased detention capacity would serve other purposes, aside from complying with the INA and ensuring aliens appear for immigration court hearings and for removal. Detained removal cases move much more quickly than hearings in the non-detained setting. The median completion time for a detained immigration court case was 40 days in FY 2018, an increase from the eight days it took to complete the median detained case in FY 2008. Even under the Biden Administration in FY 2023, the median pending time for a detained case was 52 days, compared to an average wait time of 1.7 years (in general) to 4.3 years (in cases where the alien has made an asylum claim) for non-detained immigration court proceedings. Faster adjudications in detention mean respondents who merit relief or protection receive it more quickly, enabling ICE to deport more aliens here unlawfully, while removing incentives for other aliens to delay their removal orders by filing weak or bogus asylum claims. In addition, if aliens with final removal orders are in ICE custody, they cannot abscond and are more likely to cooperate with the agency in obtaining travel documents, thus speeding deportations.

To meet the detention capacity required by a mass deportation campaign, DHS should direct the construction of temporary detention and out-processing facilities on federal military installations nationwide. Military bases offer four critical advantages that no commercial or state-contracted facility can replicate at scale.

**First, controlled perimeters.** Military installations have existing security infrastructure, including fenced boundaries, gate access controls, and military police presence, eliminating the need to build standalone security systems for each new detention site.

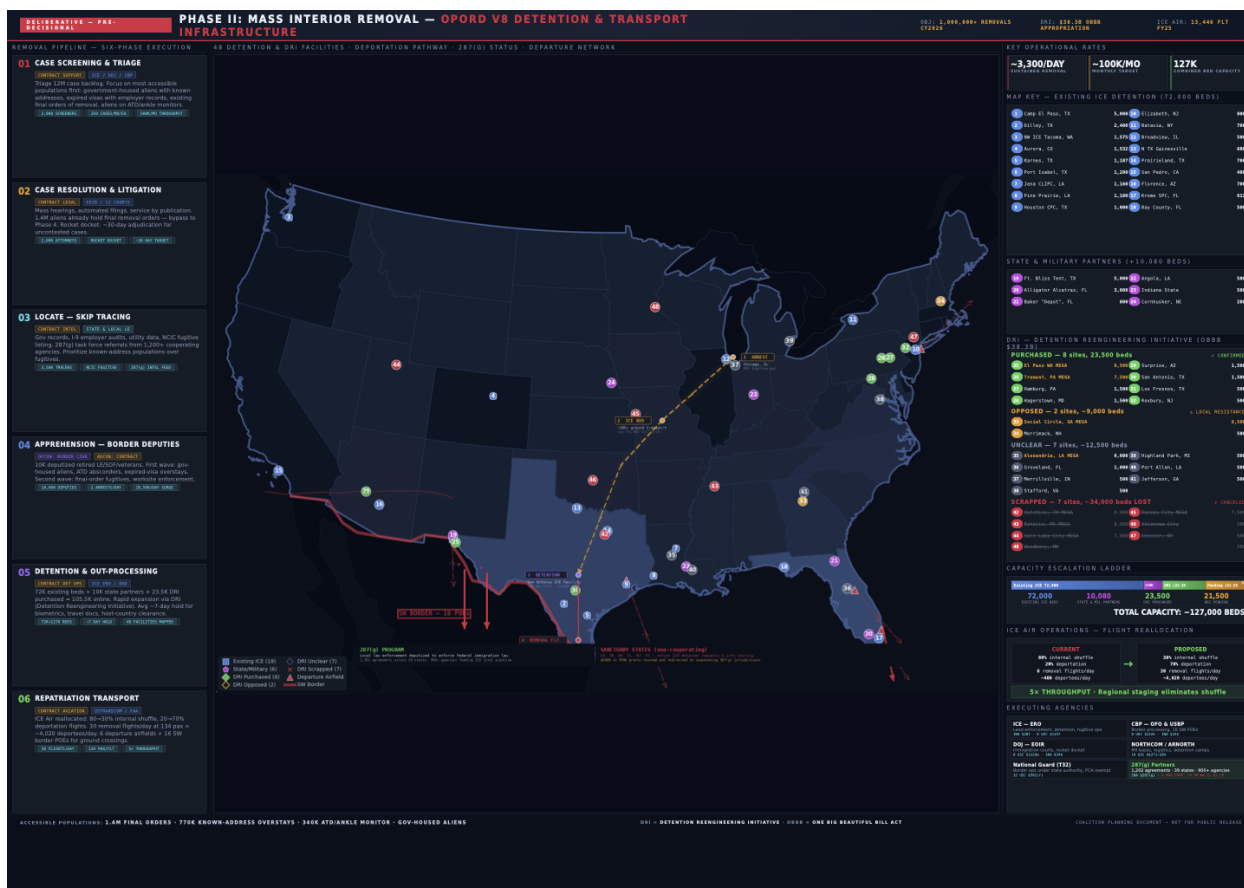
**Second, airfield access.** Many major military installations include runways and aerial ports of embarkation capable of receiving charter aircraft. Co-locating detention facilities with departure airfields eliminates the logistical burden and security risk of transporting deportees across public roads and through commercial airports. The existing military power projection infrastructure, including installations such as Fort Cavazos (TX), Fort Liberty (NC), Fort Bliss (TX), Fort Campbell (KY), Fort Stewart (GA), Joint Base Lewis-McChord (WA), and Camp Pendleton (CA), among others, already pairs ground facilities with designated aerial ports of embarkation. These installations should serve as the backbone of the detention-to-departure logistics network.

**Third, federal jurisdiction** conveys legal advantages.

**Fourth, speed of construction.** Temporary, self-contained facilities, including modular housing, messing, medical services, power generation, water, and sewage, can be erected on military installations in under a week depending on scale. These facilities require no connection to local utility infrastructure and impose no burden on base resources.

The private sector has demonstrated the capacity to erect and operate such facilities at scale, including camps capable of housing over 15,000 individuals, for both military and civilian government clients. DHS should leverage this existing commercial capability through contracted construction and facility management. In addition to newly constructed facilities, DHS should convert existing border processing centers into out-processing and departure facilities. The approximately 190 processing centers currently operating along the southern border and at major airports were designed to intake arriving aliens; reversing the flow to process departing deportees requires minimal infrastructure modification. These facilities should be supplemented, not replaced, by the military installation network.

The combination of military installation detention, border out-processing centers, and expanded use of state and local jails under IGA and 287(g) agreements creates a tiered detention network capable of supporting one million removals in 2026. Bed space, however, is only useful if the logistics of departure keep pace with the rate of apprehension. Detention without timely deportation merely converts an enforcement success into a resource drain. The transportation infrastructure described below is therefore inseparable from the detention expansion.



# Enforce Alien Registration Requirements Through Criminal Prosecutions

The final report of the 9/11 Commission underscored the importance of identifying aliens in the United States, and yet for decades the INS and then DHS never used the registration tools in Section 262 of the INA to keep track of them. That has changed under the second Trump Administration. It is now incumbent on USCIS and ICE to begin enforcing the penalties in sections 264, 265, and 266 of the INA to ensure every alien in the United States registers with the government.

The information those aliens provide in the registration process will enable ICE to identify aliens here illegally and determine where those aliens reside. The agency should use that information to place those aliens into removal proceedings and, as appropriate, arrest and deport them. Plainly, many if not most of those aliens would prefer to remain “in the shadows,” but to ensure compliance with the new registration rules, the agency should prosecute under section 266 of the INA every alien it encounters who has failed to register, to make clear to all here unlawfully that they will face consequences for violating the law.

Given the choice between registration—essentially notifying DHS of their presence in the United States and providing their addresses—and voluntary departure from this country, many aliens will choose the latter. Self-deportation will preserve scarce department resources while helping to restore credibility to our immigration system. The punishment for willful non-registration—up to 6 months’ confinement and/or up to a \$1,000 fine—is not harsh, but the threat of such punishment should be sufficient to ensure compliance or self-deportation.

## The Selective Service

With few exceptions, all males between the ages of 18 and 26 living in the United States are required by law to register for the Selective Service. This registration requirement also applies to illegal aliens. Failure to register is a criminal offense. A conviction for violating the Military Service Act can result in imprisonment for up to five years and/or a fine up to \$250,000. The Immigration and Nationality Act makes a conviction for failing to register for the Selective Service a deportable offense.

The Selective Service’s website makes it clear that illegal aliens are required to register for the draft, but they also note that they collect no data on the number of illegal aliens who have complied with their legal obligation to register. Records obtained under the Freedom of Information Act reveal that the Selective Service has no data on the number of illegal aliens that have registered or failed to register for the draft.

Obtaining clarity on the number of illegal aliens that have failed to register for the Selective Service and subsequent prosecutions by the Department of Justice for failure to register would increase the number of deportable aliens and subsequent removals.

No foreign national has a right to enter and reside in the United States in contravention of our laws, but if they are here, the American people have a right to know who and where they are to better

assess any risks they may pose and determine what costs they may impose on the public fisc.

# Deny All Visas to Nationals of Recalcitrant Countries

Recalcitrant countries are those countries that refuse to provide travel documents to their nationals who are being removed from the United States. This is a significant impediment to deportation. Congress, however, provided a solution in section 243(d) of the INA. That provision states:

“On being notified by the Attorney General that the government of a foreign country denies or unreasonably delays accepting an alien who is a citizen, subject, national, or resident of that country after the Attorney General asks whether the government will accept the alien under this section, the Secretary of State shall order consular officers in that foreign country to discontinue granting immigrant visas or nonimmigrant visas, or both, to citizens, subjects, nationals, and residents of that country until the Attorney General notifies the Secretary that the country has accepted the alien.”

That authority was used in the first Trump Administration, and in section 13 of his January 20, 2025, EO 14,159, “Protecting the American People Against Invasion,” the returning President directed the Secretary of Homeland Security to:

“Cooperate and effectively implement, as appropriate, the sanctions provided by section 243(d) of the INA...with the Secretary of State, to the maximum extent permitted by law, ensuring that diplomatic efforts and negotiations with foreign states include the foreign states’ acceptance of their nationals who are subject to removal from the United States; and (b) Eliminate all documentary barriers, dilatory tactics, or other restrictions that prevent the prompt repatriation of aliens to any foreign state.”

Days later, Secretary of State Marco Rubio briefly suspended visa issuance at the U.S. Embassy in Colombia after the country’s president refused to accept two repatriation flights to which he had previously agreed. On April 5, 2025, Rubio used his 243(d) authority to revoke visas issued to nationals of South Sudan, and to bar future visa issuances to South Sudanese.

To date, however, DOS has not used its section 243(d) authority as vigorously as it should, even though in July 2025, the Federation for American Immigration Reform (FAIR) reported:

## Fully uncooperative countries (15):

Bhutan, Burma, Cuba, Congo (DRC), Eritrea, Ethiopia, Hong Kong, India, Iran, Laos, Pakistan, China, Russia, Somalia, and Venezuela.

## Countries at risk of non-compliance (11):

Bosnia-Herzegovina, Burkina Faso, Cambodia, Gabon, Gambia, Iraq, Jamaica, Nicaragua, South Sudan, St. Lucia, and Vietnam.

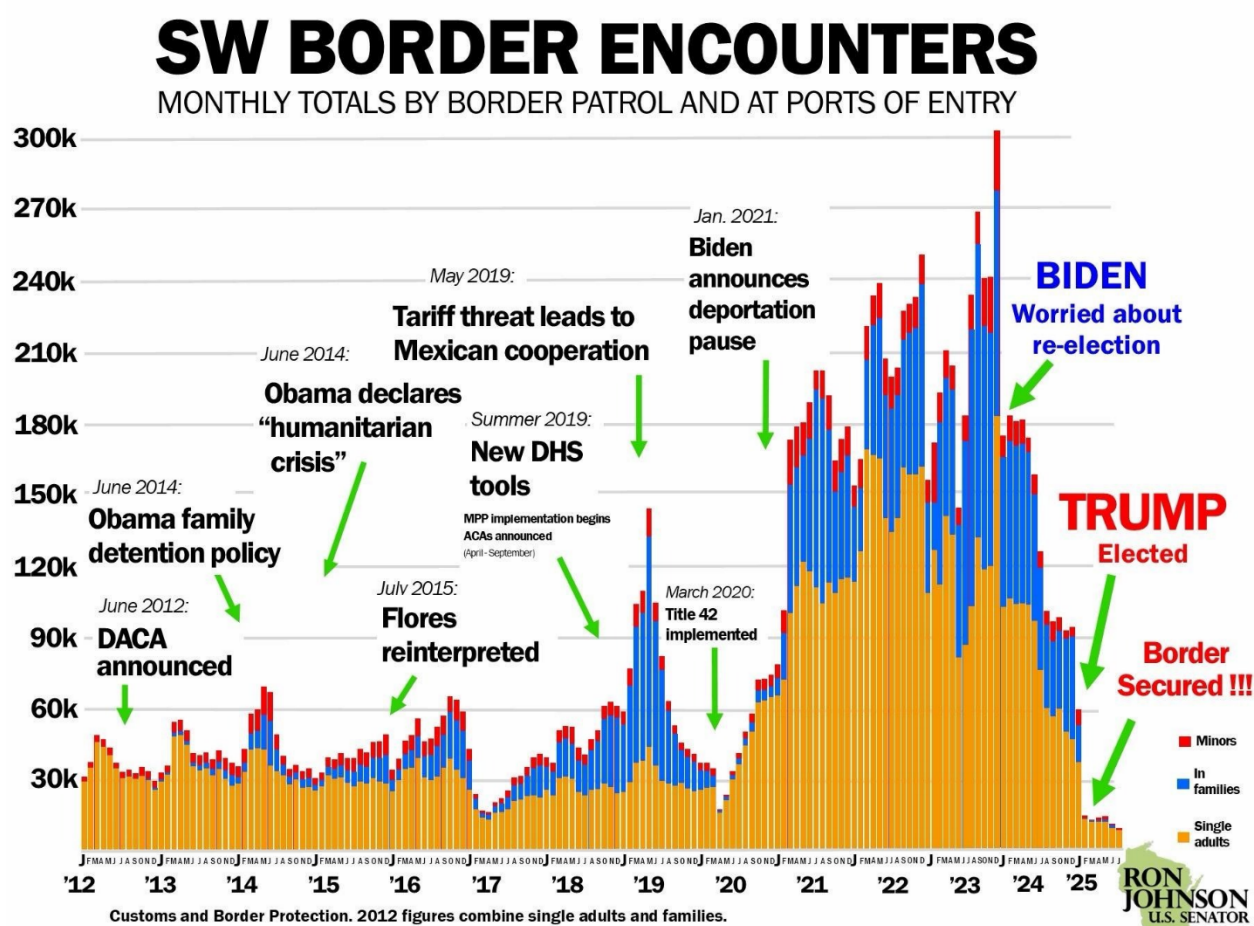
To ensure all aliens under final removal orders can be deported, DHS should provide the State Department with a list of foreign nationals for whom it is unable to secure travel documents, and DOS should immediately halt all visa processing in those recalcitrant nations until they provide ICE with needed travel documents and accept the return of their nationals.

Likewise, USCIS should not adjudicate benefit applications from foreign nationals of those recalcitrant countries; ICE should scrutinize SEVIS (Student and Exchange Visitor Information System) for immigration enforcement against student and exchange visitors violating the terms of their visas; and CBP should identify visa overstayers from such countries for removal, based on their Entry/Exit matching.

# Reform and Substantially Limit Asylum

Before DHS can deport most aliens, it must first obtain final removal orders from the immigration court or the Board of Immigration Appeals (BIA). More than 63 percent of the nearly 3.8 million cases in the immigration court backlog involve asylum applications. Consequently, the success of any deportation program depends on expediting decisions on those applications.

Over 63% of the nearly 3.8 million cases in the immigration court backlog involve asylum applications. Section 208(d)(5)(A)(iii) mandates final adjudication within 180 days.



For years, Senator Ron Johnson (R-WI) has published and updated a version of the chart above detailing monthly Southwest Border encounters since 2012. While the chart includes the implementation dates of key policies across administrations and the corresponding rise or fall in illegal migration, the main legal vehicle by which the majority of illegal aliens remain in the United States during the pendency of their immigration proceedings is by claiming asylum.

Section 208(d)(5)(A)(iii) of the INA mandates that “in the absence of exceptional circumstances, final administrative adjudication of the asylum application, not including administrative appeal, shall be completed within 180 days after the date an application is filed.” Few if any Immigration Judge (IJ) adjudications, outside of detention, comply with that standard.

Moreover, the asylum standards are stringent, limiting protection to aliens who can show first, that they suffered past persecution or have a “well-founded fear of” future persecution and second, that the alien’s race, religion, nationality, membership in a particular social group was or will be “at least a central factor” for such persecution. Poverty, war, crime, deprivation and even direct threats abroad do not by themselves satisfy that standard.

There are four reasons why the immigration courts struggle to complete asylum cases in a timely and appropriate manner.

## 1. Fraud

Under the asylum statute, applicants’ own testimony “may be sufficient to sustain” their burden to show eligibility “without corroboration,” under a reasonable principle that “persecutors don’t provide affidavits.” The executive branch has tools to uncover and root out that fraud, but their use requires both focus and resources.

The State Department operates globally, including in most countries from which aliens seek asylum. By regulation, IJs may ask DOS to comment on any pending asylum application. The process for requesting comments, however, is not standardized, but that is an issue that EOIR and DOS could—and should—easily resolve.

Moreover, there is currently no method to forensically investigate a claim made by an alien who has been granted asylum, even though asylum grants place aliens on a path to citizenship. ICE ERO (Enforcement and Removal Operations) and HSI, DOS Consular Affairs (CA) and Bureau of Diplomatic Security (DS), and/or USCIS FDNS could, however, be tasked with choosing a representative sample of approved asylum claims and performing foreign in-country investigations of those claims. If fraud is uncovered during those investigations, applicants should be prosecuted under 18 U.S.C. § 1546, a crime that carries a sentence of up to 10 to 25 years of imprisonment. In any event, such investigations would also assist in identifying other fraudulent asylum claims.

FDNS began such an investigation in the early 2000s as part of its Benefit Fraud Assessment (BFA) Program. Louis Crocetti, former FDNS director, described the results to the House Immigration Subcommittee in 2014. According to Crocetti, out of 239 cases FDNS randomly selected that were pending with or completed by USCIS between May 1 and October 31, 2005:

30 percent (72 cases) did not have any “fraud indicators;”

12 percent (29 cases) were “determined to be fraudulent;” and

58 percent (138 cases) “exhibited possible indicators of fraud.”

Fifty-nine of the 138 cases with indicia of fraud were sent overseas for verification by USCIS or DOS, and of the 26 cases in which overseas investigations were completed, 17 (65 percent) “resulted in a finding of fraud.” Unfortunately, the FDNS BFA asylum investigation was never finalized, but it reveals how prevalent fraud is in the asylum process and also provides a template for future investigations.

Now, AI tools should be applied to applications to more quickly and easily identify fraud, deny such applications, and remove the applicants because fraud makes them ineligible for all forms of immigration benefits.

## 2. Volume

The second reason why immigration courts struggle to adjudicate asylum applications in a timely manner has to do with volume. Any alien facing removal can apply for asylum, with specific exceptions discussed below, and consequently most do. As the Supreme Court has recognized, “every delay works to the advantage of the deportable alien who wishes merely to remain in the United States.” As aliens with pending asylum applications cannot be removed, it is an ideal stall tactic for aliens with much to gain and little to lose. Those incentives have long caused immigration court and BIA dockets to swell.

Nor are there many current deterrents to dissuade aliens from filing weak, non-existent, or bogus asylum claims simply to delay removal. Section 208(d)(6) of the INA provides that if IJs, the BIA, or USCIS “determines that an alien has knowingly made a frivolous application for asylum...the alien shall be permanently ineligible for any” immigration benefits. The problem is that the regulation implementing that bar states that applications filed prior to January 11, 2021, are only considered “frivolous” if:

“Any of the material elements in the asylum application is deliberately fabricated, and the immigration judge or the Board is satisfied that the applicant, during the course of the proceedings, has had sufficient opportunity to account for any discrepancies or implausible aspects of the claim.”

Given the size of the immigration court backlog, there are likely tens to hundreds of thousands of pending cases that were filed prior to January 2021, but that definition is a more apt description of “fraud” than “frivolousness.” It is unlikely to deter any alien who filed before that date from proceeding with their weak or legally deficient claim.

Additionally, note that the January 2021 date was established as a response to comments filed opposing the proposed version of this rule. Those comments argued that without establishing the prospective January 2021 onset date when the rule was finalized in 2020, the rule would be subject to invalidation as retroactive. The agencies (DOJ and DHS) noted that most of what they had proposed to do in the rule as to frivolous asylum claims were mere clarifications of law, relying on *Levy v. Sterling Holding Company*, and thus that they had not proposed rules that would have impermissible retroactive effect. The agencies were nevertheless persuaded to make their clarifications carry only prospective effect. Nothing forecloses the agencies from promulgating a new final rule accepting the risk of a retroactivity-based injunction or vacatur, in order to try to achieve the upside of weeding out thousands of frivolous asylum applications. In short, asylum claims filed before January 2021 should not be regarded as somehow sacrosanct. A new, less risk-averse rule could make substantial inroads in solving the problem of the backlog.

As for an asylum application filed after that date, it would be considered frivolous if it:

- (1) Contains a fabricated material element;
- (2) Is premised upon false or fabricated evidence unless the application would have been granted without the false or fabricated evidence;
- (3) Is filed without regard to the merits of the claim; or
- (4) Is clearly foreclosed by applicable law.

That definition is more in line with Congress’s intent, but IJs are often reluctant to make findings that even the most legally deficient asylum applications are frivolous. The Attorney General or BIA could rectify that by issuing a precedent opinion that clearly delineates when a legally invalid asylum application must be considered “frivolous” and that highlights the deleterious impact deficient claims are imposing on the overall backlog and on the courts’ inability to comply with the 180-day deadline in section 208(d)(5)(A)(iii) of the INA.

### 3. Work Authorization Incentivizes Filing

Third, and relatedly, the ready availability of work authorization incentivizes aliens to file asylum applications, even if their claims are weak, deficient, non-existent, or fraudulent. Under current regulations, an alien can receive work authorization 180 days after filing an asylum application, if that application has not been adjudicated and denied. The Trump Administration has proposed a rule to extend that 180-day deadline to 365 days, and to pause receipts of applications when the average processing times for asylum applications exceed 180 days. That rule would be a positive step but the administration should go further and revoke work authorization for any alien who concedes removability, and only reinstate it if and when the alien is ultimately granted asylum.

### 4. Related Protections

A fourth reason why asylum applications are clogging the immigration courts has to do with the related humanitarian protections of statutory withholding of removal (“statutory withholding”) and the Convention Against Torture (CAT). Numerous exceptions in section 208(a)(2) of the INA bar aliens from applying for asylum, most notably a requirement that aliens must seek that protection within one year of arrival (the “one-year bar”). An “asylum application,” Form I-589, is also an application for statutory withholding and CAT, however, and the one-year bar does not apply to those protections. Accordingly, an alien could enter illegally, reside here for a decade, and be allowed to apply for statutory withholding and CAT only after being encountered by DHS and placed into removal proceedings.

Further, there are additional exceptions that prevent IJs and USCIS from granting asylum to certain categories of aliens—including (1) persecutors, aliens convicted of aggravated felonies and other “particularly serious crimes,” (2) aliens who “committed a serious nonpolitical crime outside the United States,” and (3) aliens who pose a danger to national security. To be clear, those aliens can still file I-589s with the immigration court seeking asylum, and IJs must still go through the process of considering their applications to determine whether those bars apply and to adjudicate their statutory withholding and CAT claims.

Many of those same bars to asylum—for persecutors, those who have “committed a serious nonpolitical crime outside the United States,” and aliens who pose a danger to national security—also preclude the immigration court from granting statutory withholding. That said, only aliens who have been convicted of an aggravated felony and “sentenced to an aggregate term of imprisonment of at least 5 years” are dispositively barred from statutory withholding, though IJs can find that crimes that are not aggravated felonies or are aggravated felonies for which the alien received a sentence of less than 5 years are “particularly serious” for purposes of that bar. Again, that is a resource-intensive process that slows IJ adjudications.

Finally, nothing bars any alien from being granted deferral of removal under CAT, meaning even the most egregious criminals and dangerous terrorists can delay removal by seeking that protection. Osama bin-Laden, had he lived, could have sought CAT deferral and an IJ would have been required to consider his claim. Note, however, that CAT protection does not arise from any provision of the INA but instead is a function of the U.N. Convention Against Torture, which the United States signed in October 1994.

As the Congressional Research Service has explained: “The United States ratified CAT subject to certain declarations, reservations, and understandings, including that the Convention was not self-executing, and therefore required domestic implementing legislation to take effect.” Congress implemented CAT in section 2242 of the Foreign Affairs Reform and Restructuring Act of 1998 (FARRA), which made it U.S. policy “not to expel, extradite, or otherwise effect the involuntary removal of any person to a country where there are substantial grounds for believing that the person would be in danger of being subjected to torture.” FARRA did not expressly explain how that policy was to be applied, however, leaving it to the “appropriate” executive-branch agencies to enact regulations to enforce those CAT protections.

Note also that IJs and the BIA did not originally have jurisdiction over CAT claims from aliens facing removal. From the date CAT was ratified in November 1994 until the issuance of a rule implementing FARRA (effective March 22, 1999), the then-INS adopted its own administrative process to determine whether CAT protection should be extended in “individual cases in which an alien is subject to removal.”

As the implementing rule explained:

“Under this pre-regulatory administrative process, upon completion of deportation, exclusion, or removal proceedings and prior to execution of a final order of removal, the INS has considered whether removing an alien to a particular country is consistent with [CAT]. If it is determined that the alien could not be removed to the country in question consistent with [CAT], the INS has used its existing discretionary authority to ensure the alien is not removed to that country for so long as he or she is likely to be tortured there.”

“This approach has allowed the INS to address the applicability of Article 3  
to a case only when actually necessary to comply with the Convention

. It has also allowed an individual alien to exhaust all avenues for pursuing any other more extensive benefit or protection for which he or she may be eligible before seeking the minimal guarantee provided by Article 3 that he or she will not be returned to a specific country where it is likely that he or she would be tortured.”

“At the same time,

this approach has allowed the INS, the agency responsible for executing removal orders, to ensure that no order is executed under circumstances that would violate [CAT]

.”

If that pre-regulatory process, under which the then-INS (not IJs or the BIA) adjudicated CAT requests, was sufficient “to ensure that no” deportation order was “executed under circumstances that would violate” the convention, there is no reason to believe INS’s successor agencies in DHS

would not be able to do the same. Shifting CAT determinations from the immigration courts to DHS would free IJs from having to adjudicate CAT applications, particularly those filed by aliens who are not statutorily eligible for any other immigration relief.

To reduce the immigration court backlog and expedite deportations, DOJ and DHS should revisit their 1999 CAT regulation and give ICE ERO officers or USCIS asylum officers sole authority to adjudicate torture claims made by aliens. More generally, the administration should republish its June 2020, “global asylum rule,” which would have made additional crucial reforms to the asylum system but was enjoined weeks before the end of the first Trump Administration by the U.S. District Court for the Northern District of California. That rule has never been fully litigated, but the President’s remaining term would provide the DOJ sufficient time to defend it.

In addition, both relief under CAT and asylum can be terminated for changed circumstances and other reasons. ICE should reexamine CAT and asylum grants for select countries in which circumstances have changed, and such relief is no longer warranted. ICE should likewise apply AI tools to granted asylum cases, including aliens who subsequently obtained a green card and naturalization, to search for asylum fraud indicated by aliens who travelled to their home country after claiming fear of returning there.

Finally, over 300,000 removal cases are currently administratively closed in the immigration court system. In effect, the cases of these removable aliens have been shelved, and the alien continues living and likely working in the U.S., which is why the Trump Administration has since labeled these cases “amnesty cases.” A sizable portion of administratively closed cases are aliens who were granted Temporary Protected Status (TPS) by USCIS. The Administration has terminated TPS designations for several countries, however. As such, these and other administratively closed cases should be re-opened and brought to conclusion. Deportable aliens should not be given an administrative amnesty to prolong their stay indefinitely in the U.S. to wait for some speculative future immigration benefit.

In addition, the Biden Administration terminated or dismissed another 855,000 cases because they were non-priority cases or for lagging paperwork. These aliens have also been given administrative amnesty. Because these aliens are removable, ICE should place them in removal proceedings again, with all applicable charges, and pursue the cases to their end.

# Enforce Civil Fines for Failure to Depart

In addition to the criminal sanctions in section 243(a)(1) for aliens who fail to depart within 90 days, section 274D of the INA mandates civil fines for aliens who:

- Willfully fail or refuse to depart the United States pursuant to a final removal order;
- Willfully fail or refuse to “make timely application in good faith for travel or other documents necessary for departure”; or
- Fail to appear for removal in response to a bag and baggage letter.

Those fines are now set at

\$998 per day

.

At a minimum, the department (in conjunction with DOJ) should impose those fines and place liens on the real and personal property of aliens who remain in the United States in contravention of the departure requirements in the INA.

## Expand Civil Asset Forfeiture for Immigration Violations

ICE has explained that “[s]eizures and forfeitures are some of the most powerful tools” in its arsenal: “Asset forfeiture financially hurts the violator. Over the years, the emphasis has been shifting from merely putting the violator in jail to putting the violator in jail with no assets.”

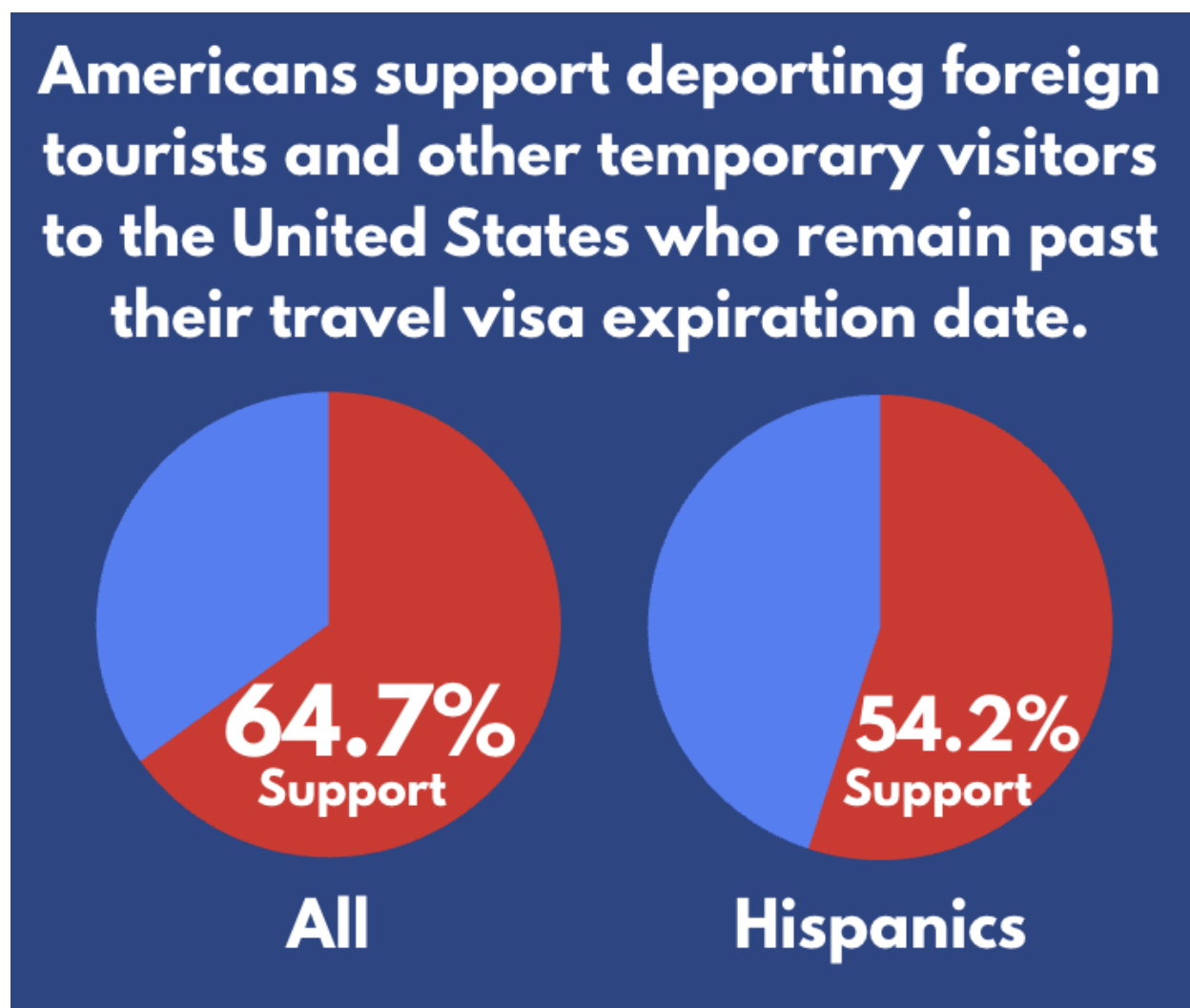
Civil Asset Forfeiture (CAF) is an appropriate and viable tool to support immigration enforcement. Many actions that facilitate illegal migration to, and residence in, the United States—the use of fraudulent documents, identity theft, false statements, fee-based smuggling deals, and the movement of illicit proceeds through remittances—already involves financial gain derived from statutory violations.

In this context, CAF would allow ICE to target the economic incentives that sustain unlawful presence and unauthorized employment, and to seize assets traceable to fraud-derived wages or other immigration-related offenses. Applied with clear thresholds and supervisory review, CAF can serve as a powerful deterrent to future illegal immigration by reducing financial payoffs related to unauthorized employment and increasing the risk that fraud-derived assets will be seized.

For aliens here illegally, the prospect of losing vehicles, bank accounts, tools, or money for remittances would encourage voluntary departure long before removal proceedings conclude or likely even begin. For employers, and in particular repeat violators who knowingly accept fraudulent documents, pay off the books, or profit from illegal labor, the possibility of forfeiture provides a meaningful consequence in a legal environment where criminal sanctions are difficult to prove and civil penalties are rarely imposed.

Used judiciously and with clear internal guardrails, CAF could disrupt or dismantle the financial infrastructure of immigration violations without relying solely on detention or removal. CAF would not replace employer sanctions, but could supplement worksite enforcement. It would fill the accountability gap and target the economic incentives that drive both unauthorized employment and the businesses that depend on it, promoting compliance through the credible threat of financial loss rather than costly mass prosecution.

## Identify and Target Visa Overstays



Prior to the Biden Administration and its open-borders policies, which facilitated the illegal entry and unlawful presence of millions of illegal migrants, it was estimated that 42 percent of the illegal population in the United States, and 66 percent of new additions to that population, were aliens who had been admitted as nonimmigrants but violated their statuses or failed to depart as required. The annual number of such “overstays” has likely not declined in the interim, and with the Southwest border now operationally secure, those aliens represent the largest additions to the illegal population.

Before nonimmigrant visa violators and overstays can be targeted for enforcement, however, DHS must first identify and find them. The DHS secretary should task CBP officers in OFO (Office of Field Operations) to cull nonimmigrant departure records on an ongoing basis to identify suspected nonimmigrant overstays (including those admitted on Border Crossing Cards) and send that information to ICE ERO monthly, for investigation and removal purposes.

To identify visa overstayers, we applaud the Administration for publishing a 2025 final rule to complete the biometric Entry-Exit system that Congress first required 30 years ago. Although Land Exit for vehicles has been the missing segment for completing implementation, we believe this Administration already created at least part of the solution when CBP designed the CBP Home application for self-deportations. By attaching a photo and GPS location, CBP can use facial matching technology to verify the correct person has indeed departed the U.S.

CBP should go further by requiring all visa holders to download an app such as CBP Home, on which CBP enters a visa holder's "Admit Until" date to remind the alien by when the alien must depart the U.S. CBP should then push notifications to the alien as the departure deadline approaches, indicating it is time for the visa holder to make departure travel arrangements and warn that failure to depart by the date or show proof of a change of immigration status will turn into a violation of the law and the alien will be subject to deportation. To demonstrate real consequences, ICE should publicize that a significant number of visa overstayers are being deported. This combination of regular CBP communication with visa holders and the imposition of visible consequences for failing to timely depart will change behavior and thus should increase visa compliance and timely departures.

# Download Deportation Orders and Other Immigration Crime Information into NCIC

The National Crime Information Center (NCIC), one of a group of national crime information systems managed by the Criminal Justice Information Services Division (CJIS) at the Federal Bureau of Investigation (FBI), is “used by the public safety community for both criminal and civil purposes.” CJIS describes NCIC as a “criminal records database allowing criminal justice agencies to enter or search for information about stolen property, missing or wanted persons, and domestic violence protection orders; to get criminal histories; and to access the National Sex Offender Registry.”

NCIC has traditionally included immigration-enforcement information related to orders of removal and deportation and failures to appear for removal. These notifications can alert local law enforcement officers about a suspect’s immigration history and DHS’s interest in the alien. An alien’s status can change after an order of removal is issued, however. For example, the alien’s case may be reopened, or the alien may qualify for Temporary Protected Status, either of which would preclude removal. This has made NCIC less effective in the immigration context than it could be.

With the additional resources provided by the OBBBA, ICE should:

- Update the immigration violations it submits to NCIC;
- Exclude aliens who are no longer removable;
- Add information related to the hundreds of thousands of aliens who have recently been removed; and
- Submit information to NCIC on aliens who potentially could be prosecuted for immigration-related offenses, including eluding inspection under section 275(a)(2) of the INA, failure to register and to update addresses in violation of section 266(a) and (b) (respectively), and failure to depart under section 275(a).

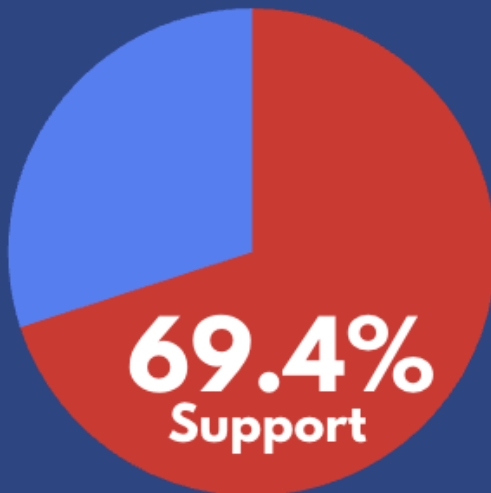
Even in “sanctuary” jurisdictions, many, if not most, police officers have an interest in assisting other law enforcement agencies, including ICE. Many are prohibited from doing so, however, under local policies. A “want” in NCIC for an alien who faces possible criminal punishment for an immigration-related crime may eliminate such impediments, which generally only restrict and prohibit state and local assistance in “civil” immigration enforcement.

In states and localities that are more supportive of ICE enforcement, up-to-date and reliable immigration information in NCIC would enable local authorities to better assist DHS in identifying, arresting, detaining, and deporting aliens sought by the department.

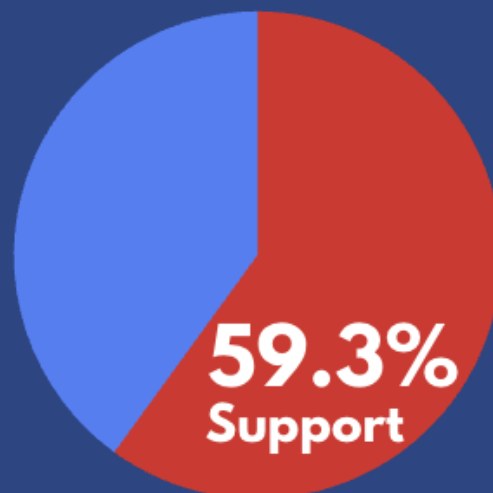
## Transfer Authority Over No-Match Letters to the IRS



## Americans support allowing the IRS to fine employers that hire illegal migrants.



**All**



**Hispanics**

Over the past couple of decades, the Social Security Administration (SSA) has periodically sent letters to employers to notify them of employees whose Social Security numbers (SSNs) do not match the names associated with those numbers in SSA's database. The goal of these letters is to let employers know that the listed employees may be illegal aliens using fake or stolen SSNs for employment purposes.

This policy should be uncontroversial since it is illegal for employers to hire aliens without work authorization, illegal for individuals to use fraudulent or stolen SSNs, and harmful to the rightful owner of an SSN whose number has been stolen by an illegal alien. Two problems arise with these "No-Match" letters, however:

- The letters generally do not give the employers specific instructions on how to resolve the no-match; and
- SSA has no real way to apply consequences to employers that fail to take action.

One solution to these problems is to transfer the authority to send the No-Match letters to the Internal Revenue Service (IRS). The IRS already has access to the names, SSNs, and employers of all employees through payroll taxes, so no new information would need to be shared between federal agencies, though SSA would need to cooperate with the IRS to confirm the no-matches.

The IRS should send the No-Match letters on a semi-annual basis (either quarterly or biannually) to all employers of individuals whose name does not match the SSN they provided. These letters

should instruct the employers that they must take specific steps to verify that the employees are, in fact, legally authorized to work in the United States, and require them to provide a valid, matching SSN. If the employee cannot do so, the employer should be instructed to terminate the employee within 90 days and tell him or her to register with the CBP-Home app, so as to collect a plane ticket and cash upon departure from the country.

Giving the employer 90 days to terminate the employee would provide ample time for the employer to find a legal replacement for the employee and thus cause minimal disruption at the worksite.

Finally, the No-Match letter should apprise the employer of the potential consequences of failure to verify the employee's work authorization and provide a valid SSN or, alternatively, to terminate employment. An employer that has not terminated an unverified employee, based on payroll tax data, should be subject to:

- An audit by the IRS to determine the total amount of wages deducted by the employer that were paid to unverified employees over the past seven years. These would be unlawful deductions, since it is illegal to employ aliens without work authorization, subject to back taxes and interest penalties; and
- Enforcement action by Immigration and Customs Enforcement (ICE). The IRS should notify ICE of each instance where an employer failed to comply with the requirements laid out in the No-Match letter.

Employers may be inclined to disregard letters from SSA, but they are much less likely to disregard letters, with clear instructions, from the IRS. Especially when there are potentially severe consequences. Transferring authority for No-Match letters to the IRS, and enforcing them, would be a significant step toward making illegal aliens unemployable in the United States.

Similar to the unauthorized employment notifications described above, the IRS should notify ICE, USCIS, CBP, the State Department, SSA, banks, lenders, and state and local benefit agencies to prevent downstream benefits from unauthorized work.

## Leverage Department of Labor Authorities



Although ICE performs investigative and immigration custody duties, effective worksite operations have always required the participation of civil regulators whose mandates intersect with unauthorized employment. The Criminal Investigation Branch of the Internal Revenue Service (IRS-CI), the Office of the Inspector General at the Social Security Administration (SSA/OIG), and the Fraud Detection and National Security Directorate (FDNS) at USCIS all play essential roles. DOL's enforcement agencies bring the investigative, inspection, and civil-enforcement authorities Congress designed to regulate labor-market conditions.

None of these agencies require arrest authority to inspect employers, interview workers, review records, or enforce the labor-related provisions of the INA. Their civil authorities are not ancillary to

worksite enforcement; they are indispensable to it. These authorities are not theoretical; they are active today and formally recognized by DHS.

Various Memoranda of Understanding (MOUs) between DHS and DOL “Concerning Enforcement Activities at Worksites” affirm that DOL possesses independent investigative authority at worksites and may conduct civil enforcement actions alongside or separate from HSI and ERO. DOL’s enforcement agencies already have statutory tools to inspect employers, interview workers, review employment records, and enforce the labor-market protections Congress embedded in the INA. DOL’s own data reinforces why this role matters. According to the National Agricultural Workers Survey, roughly 58 percent of agricultural workers have legal status, a reminder that many assumptions driving public debate about unauthorized labor are not contemporarily accurate.

Moreover, because DHS and DOS effectively represent DOL in the immigration system, when aliens are found to have violated the labor certification ground of inadmissibility at section 212(a)(5)(A) of the INA, DHS must charge them accordingly in removal proceedings. Absent that, the labor-market protections Congress wrote into the statute are never actually enforced.

What has been missing in the coordination of these departments’ duties is not legal authority but rather institutional architecture. No office has been responsible in the past for integrating DOL’s INA-related functions, coordinating them with DHS and DOS, or translating them into a coherent enforcement posture.

DOL’s new Office of Immigration Policy (OIP) exists to close that gap—to unify the authorities DOL already exercises, operationalize them in the present, and build a durable framework for how DOL’s statutory role should function going forward. While DOL evaluates how employment practices affect domestic workers, these functions do not translate into field-level presence or real-time verification of employment authorization. Consequently, DOL’s insights into unauthorized employment arise indirectly through its civil inspections rather than through any immigration-specific mandate. Because of this structural reality, it is essential for OIP to define how DOL’s inspection-derived information should interface with DHS’s immigration and employment-authorization systems, ensuring that DOL’s contributions remain grounded in its civil mission while still informing DHS when unauthorized employment is identified.

Thus, DHS and DOL should revise their current MOUs. Any revised MOU should not be limited to deconfliction, information-sharing, committee structures, or the allocation of responsibilities during joint enforcement operations. The existing MOU and its 2016 Addendum acknowledge DOL’s authorities but fail to specify how those authorities are to be used.

A renewed MOU must articulate what DHS expects from DOL during worksite operations and what DOL can and will provide through its civil inspection and investigative functions. This includes defining the information DOL will collect, procedures for coordinated inspections, the circumstances under which its findings will be shared with DHS, and the respective roles of ICE and DOL’s enforcement agencies when unauthorized employment is discovered. A contemporary MOU would convert long-standing statutory authorities into a predictable operational framework, ensuring each department contributes its mandated functions in a coherent and mutually reinforcing way.

The Wage and Hour Division (WHD) should establish a permanent interagency task force dedicated to worksite enforcement and labor law violations associated with the employment of illegal aliens. This body would mirror the structure of the previous administration’s Child Labor Taskforce,

effectively repurposing that model to target workforce exploitation and immigration violations. The task force should include representatives from ICE, USCIS Fraud Detection and National Security (FDNS) division, the DOJ's Civil Employment Litigation Division, the Equal Employment Opportunity Commission (EEOC), and willing state regulators.

To extend this cooperation to the local level, the DOL should create an informal version of the 287(g) program for state and local employment law agencies. Through model MOUs, the DOL can formalize the sharing of leads with state Departments of Labor, creating a force multiplier for investigations. Additionally, the Department must institute internal policies to automatically share all potential leads with sister agencies when it lacks the resources to pursue a specific investigation itself, ensuring no violation goes unaddressed.

Congress authorized the DOL to protect domestic workers and regulate labor-market conditions. Currently, however, it has no structured role in assessing whether the large-scale issuance of EADs (employment authorization documents)—particularly to populations whose presence in the labor market is driven solely by economic migration—may adversely affect U.S. workers. USCIS should not grant employment authorization without a clear statutory basis, as it has the practical effect of facilitating further illegal immigration and prolonging unlawful presence by making it easier for aliens to legally earn and remit income than they could through unauthorized work or fraud. At a minimum, though, a renewed MOU between DOL and DHS should include a consultative process in which DOL provides labor-market analysis, sectoral data, and risk assessments to inform DHS's employment authorization decisions. This would ensure that EAD policy reflects the labor-market protections Congress embedded in the INA, and not simply a desire to minimize the likelihood an alien seeking or who has been granted lawful presence will become a public charge.

Presidential Proclamation (PP) 10,935, "Establishing Project Homecoming," reinforces the need for a modernized DHS-DOL framework. Section 3(b) in that PP directs DHS to expand its enforcement and removal operations by supplementing its operational force through deputized and contracted personnel. Although PP 10935 does not identify DOL as a source of such personnel, it does direct the DHS secretary to "supplement existing enforcement and removal operations by deputizing and contracting with. . . officers and personnel within other Federal agencies," which would logically include DOL.

It would be essential, however, for DOL to define the limits of its participation. OIP should ensure DOL's contributions to Project Homecoming remain grounded in the Department's civil regulatory mission by clarifying that DOL's role would be to provide labor-market expertise, inspection-derived information, and regulatory coordination—not to assume direct immigration enforcement authorities. This alignment would preserve the statutory distinction between civil labor authorities and immigration enforcement while ensuring DOL's functions are integrated coherently into the broader operational environment created by PP 10,935.

The DOL must aggressively utilize the "hot goods" provision of the Fair Labor Standards Act (FLSA) against known violators. This provision empowers the Department to seek court orders preventing the interstate shipment of goods produced in violation of minimum wage or overtime laws. Crucially, these court orders apply to anyone in possession of the tainted goods, not just the original manufacturer. By applying this provision expansively to goods produced by illegal alien labor, the DOL can exert immense economic pressure on entire black market supply chains.

Concurrently, the Department should adopt an internal policy to maximize civil money penalties for all employers found employing illegal aliens. To further strengthen this deterrent, the administration should call on Congress to statutorily increase the caps on civil money penalties for employer violations. Additionally, the process for debarring employer violators from guest worker visa programs must be streamlined and utilized against all eligible violators without exception.

Under the Trafficking Victims Protection Reauthorization Act (TVPRA), the government has tools to punish peonage, enticement into slavery, sale into involuntary servitude, forced labor, trafficking with respect to peonage, slavery, involuntary servitude, or forced labor, and sex trafficking of children by force, fraud, or coercion. Additionally, the TVPRA requires mandatory restitution for victims of violations and says any venture knowingly benefiting financially from peonage, slavery, or trafficking in persons is equally as liable as the actual traffickers. All of these statutes are routinely violated by employers of trafficking victims, including children like the lost Unaccompanied Alien Children (UAC) of the Biden Administration. The potential penalties for violators are substantial, and strict enforcement against employers knowingly hiring victims of cartel trafficking is required to establish deterrence against dependence on exploited illegal labor. The paltry fines levied on companies found exploiting UACs over the past few years are woefully insufficient as deterrents. The DOL and the DOJ need to closely coordinate investigations and intelligence to ensure all employers operating in violation of the TVPRA are prosecuted and penalized to the fullest extent of the law.

Enforcement resources should be prioritized toward **“Low Wage, High Violation” industries**, which historically rely heavily on foreign labor and illegal aliens. The DOL should set specific quotas for investigations within these sectors to ensure consistent pressure.

Transparency in reporting is also essential for deterrence. Currently, DOL announcements regarding employer sanctions rarely disclose the immigration status of the workforce involved. Moving forward, all public announcements and reports must identify the immigration status of workers harmed by employer violators. This will accurately reflect the impact of illegal immigration on labor standards.

# Assign Special Assistant United States Attorneys to Prosecute Immigration-Related Crime

There are many immigration-related criminal offenses in the INA and in Title 18 of the U.S. Code, but most are rarely prosecuted.

In FY 2023, more than 3.2 million aliens were encountered (

i.e.

, apprehended or turned away) by Border Patrol entering or trying to enter illegally, and yet only 5,777 aliens were charged with improper entry under section 275 of the INA that year.

Part of the reason why so few aliens were prosecuted for such straightforward offenses had to do with a lack of interest on the part of the Biden Administration. It should be noted, however, that of the more than 254,000 aliens apprehended by Border Patrol in FY 2025, fewer than 26,000 were charged under section 275. That's certainly an improvement, but still only represents about ten percent of all border apprehensions.

The threat of criminal prosecution is the most effective deterrent to illegal entry. Many U.S. Attorney's Offices (USAOs), however, are too busy to file criminal immigration charges, and in most instances, because the penalties for those offenses are minor, such cases are not a high priority for prosecution. That likely explains why more charges (28,854) were filed for felony illegal reentry under section 276 of the INA than for misdemeanor "improper entry" under section 275 of the INA in FY 2025.

Special Assistant United States Attorneys (SAUSAs) are lawyers, often from other federal agencies or local prosecutor's offices, appointed to assist USAOs in investigating and prosecuting federal cases. DHS should assign lawyers from CBP, USCIS, and ICE OPLA to serve as SAUSAs in every U.S. federal district. That would enable USAOs to prosecute increased numbers of aliens for immigration-related criminal offenses, thus deterring future illegal immigration and increasing the incentives for aliens here illegally to self-deport.

That is especially true given OLC's June 2025 opinion concluding that "eluding inspection" under section 275(a)(2) of the INA is a continuing offense that can be prosecuted in any federal district in which the alien is found. Millions of aliens across the country are currently subject to prosecution under that provision.

Of the 4,930 aliens charged under section 275 of the INA before federal magistrates in FY 2025, 4,886 (99 percent) were charged in border districts (the Districts of Arizona and New Mexico, the Northern District of New York, and the Southern and Western Districts of Texas).

The appointment of new immigration-trained SAUSAs from DHS in every federal district would increase those totals and expand Section 275 prosecutions nationwide, sending a message to aliens here illegally that the United States is serious about its sovereignty, and that it is better to depart than face the prospect of arrest and incarceration.

# Reassign Immigration Officers Within DHS

Notwithstanding the additional resources provided in the OBBBA, ICE resources remain limited, but the DHS secretary has the flexibility under the INA to reassign immigration officers to facilitate mass deportation.

According to one source, there are “1,566 state prisons, 98 federal prisons, 3,116 local jails, 1,277 juvenile correctional facilities... and 77 Indian country jails” in the United States, which hold approximately two million individuals altogether.

An untold number of the criminals incarcerated in those facilities are criminal aliens who are removable from the United States, but many of those facilities are remote and ICE ERO lacks the capacity to cover them all.

Taking custody of aliens from criminal detention and confinement is a duty the DHS secretary could assign Border Patrol agents to the degree that CBP has extra capacity. In addition, the secretary could task Border Patrol agents with obtaining criminal conviction records from various courts nationwide that are repositories of those records.

Unless an alien respondent in immigration court admits to a conviction, ICE OPLA attorneys must rely upon properly certified conviction records to sustain criminal removal charges. A failure to provide such records could be fatal to a removal prosecution. To the degree they are available, the secretary of DHS could task Border Patrol agents and CBP officers in OFO with obtaining necessary certified conviction records for removable criminal aliens.

Finally, OFO has a major presence in Hawaii, the only state in the union wholly contained in an island chain. To the degree the office has the capacity, and with the concurrence of appropriate officials, the secretary of DHS should assign CBP officers in OFO to investigate, arrest, and process removable aliens in Hawaii.

# Place All Interior Immigration Enforcement Operations Inside the Homeland Security Task Force

In section 6 of EO 14159, issued on January 20, 2025, President Trump directed DOJ and DHS to jointly establish Homeland Security Task Forces (HSTFs) in all States nationwide. As the president made clear, those HSTFs were to “include representation from any other Federal agencies with law enforcement officers, or agencies with the ability to provide logistics, intelligence, and operational support to the HSTFs,” as well as representatives “from relevant State and local law enforcement agencies.”

The organizational structure of the HSTF is not a new concept, as its foundation mirrors that of the FBI’s Joint Terrorism Task Forces (JTTFs)—a decentralized network of more than 200 units nationwide, with at least one JTTF located in each of the FBI’s 56 field offices.

Rather than a top-down approach, this network-like model fosters an expansive collaborative environment, leverages localized knowledge and intelligence, and provides operational adaptive and responsive capability, unhindered by bureaucratic decision-making requirements from headquarters. The same should be true of the HSTFs.

The second is “chain of command.” While collaborative, the operational command and oversight of each task force’s mission is clear and unambiguous, with a single lead federal agency. This clarity of oversight reduces territorialism, mission creep, redundant, uncoordinated, independent operations, and wasted resources. The “lead” agencies designation for the HSTFs must be strictly recognized, enforced, and supported at the departmental level and across the administration.

The third has to do with lines of authority and oversight. Although JTTFs are built around a decentralized model, there is a “national level” coordination center, the National Joint Terrorism Task Force (NJTTF), located at FBI Headquarters. The function of the NJTTF is not to run day-to-day operations, but to provide nationwide goals and objectives and a common operating picture, to coordinate information and intelligence, and to allocate funding and requisite resources to the regional task forces. That, too, is a standard for HSTFs to emulate.

Each individual HSTF has four objectives under section 6(c) of EO 14159:

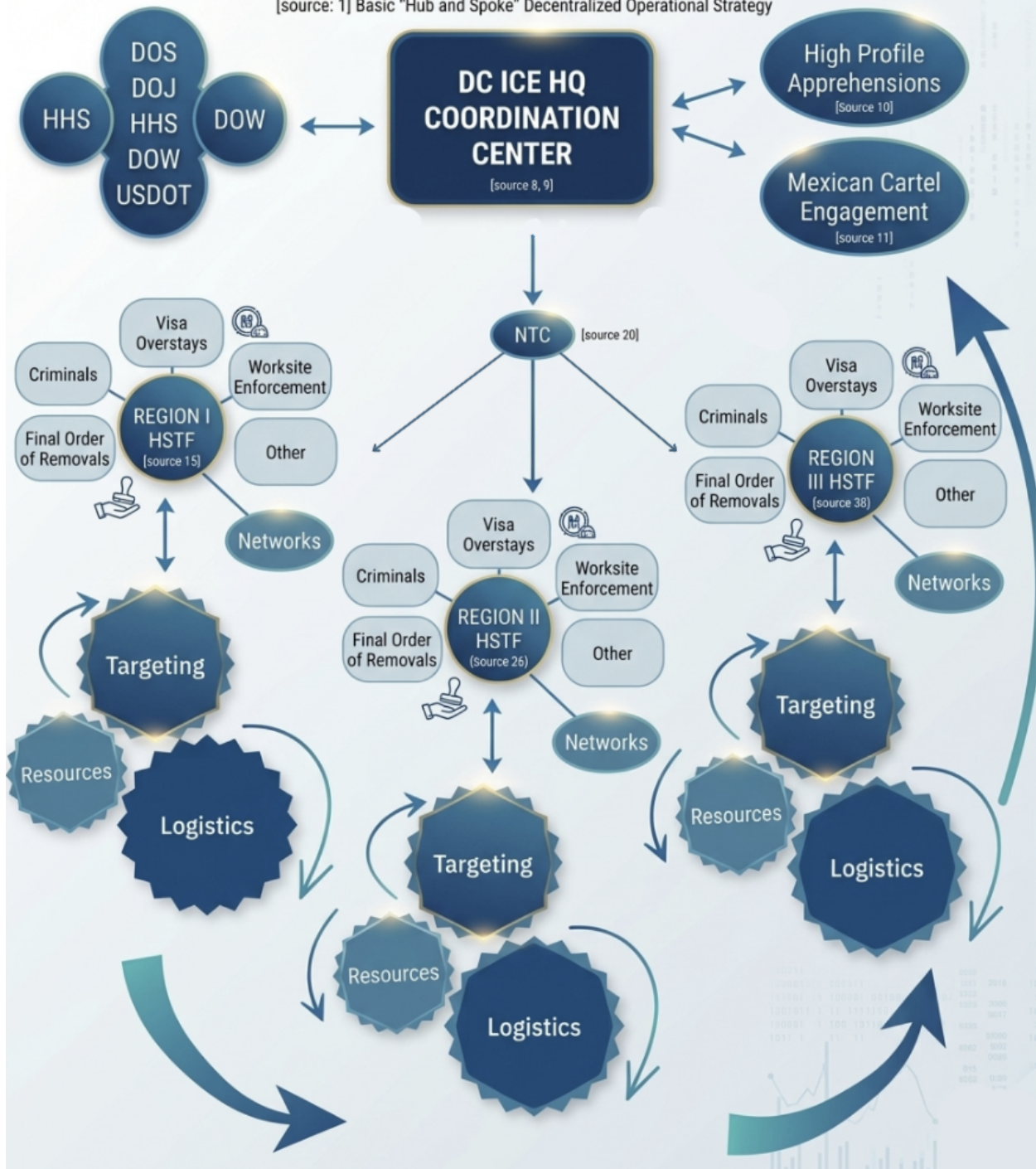
- Preventing “criminal cartels, foreign gangs, and transnational criminal organizations” from operating in the United States;
- Dismantling “cross-border human smuggling and trafficking networks;”
- Ending “the scourge of human smuggling and trafficking, with a particular focus on such offenses involving children;” and
- Ensuring “all available law enforcement tools” are used “to faithfully execute the immigration laws of the United States.”

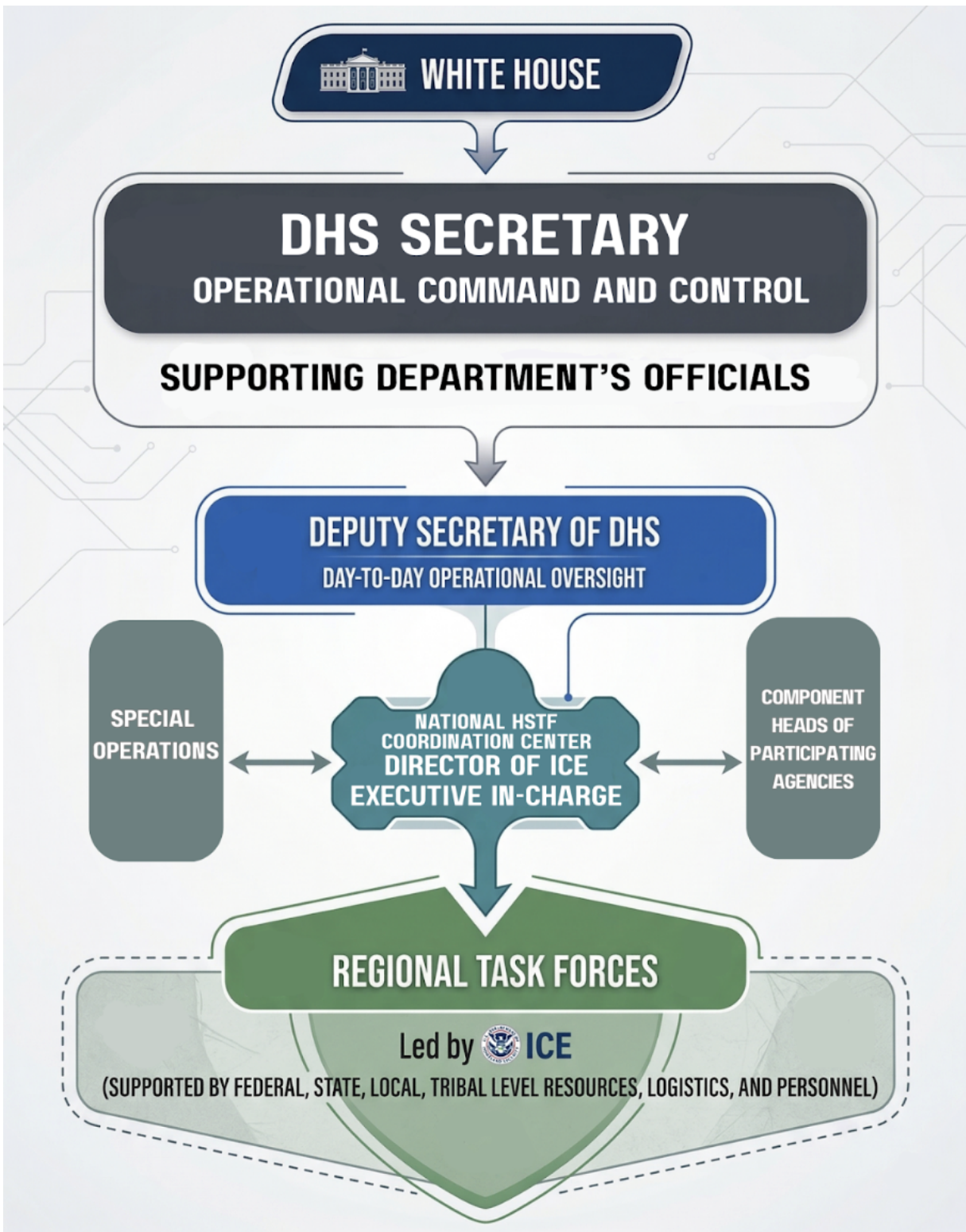
The first three objectives flow from the fourth and can only be achieved through faithful execution of our immigration laws. That is why all interior enforcement of the immigration laws should be included within the HSTF model in EO 14159, and why ICE leadership should lead the national HSTF system, with a clear and standardized chain of command in an otherwise decentralized structure.

ERO and HSI each bring their own skills, authorities, and expertise to the task force, and by placing leadership of the national HSTF at the headquarters level of ICE—as is done in the case of JTTFs by FBI—each directorate’s strengths can be best directed toward those four objectives.

Moreover, if interior enforcement is fully housed within the HSTFs, ICE officers and agents will be able to leverage the intelligence and legal authorities of their federal, state, and local law-enforcement partners to ensure that the INA is “faithfully executed.” DHS and DOJ do not need to create a new HSTF structure; the departments already have a model to emulate in the JTTFs.

[source: 1] Basic "Hub and Spoke" Decentralized Operational Strategy





# Fully Utilize Other Procedures to Deport Criminal Aliens

Removal proceedings under section 240 of the INA are not the only option for deporting criminal aliens.

**Section 238(c) of the INA** grants federal district court judges the authority to “enter a judicial order of removal at the time of sentencing against an alien who is deportable, if such an order has been requested by the United States Attorney with the concurrence of” DHS. To obtain a judicial order of removal, the USAO must file a “notice of intent to request judicial removal” with the court “prior to commencement of the trial or entry of a guilty plea,” and then file “a charge containing factual allegations regarding the alienage of the defendant and identifying the crime or crimes which make the defendant deportable under” the criminal grounds of deportability in section 237(a)(2)(A) of the INA “at least 30 days prior to the date set for sentencing.”

Criminal aliens can then claim eligibility for relief under the INA that would allow them to remain in the United States, and if the court finds they have provided “substantial evidence to establish prima facie eligibility for relief from removal under” the act, DHS must “provide the court with a recommendation and report regarding” eligibility for such relief. As in section 240 removal proceedings, the alien must be given “a reasonable opportunity to examine the evidence against him or her, to present evidence on his or her own behalf, and to cross-examine witnesses presented by the Government.”

The benefit to the government of judicial orders of removal is clear: if alien criminals can be ordered removed by district court judges without having to see an IJ, they can be deported as soon as their sentences are completed. The benefit to the alien of such orders can be found in section 238(c)(5) of the INA, which states that the U.S. Attorney, with DHS’s concurrence, may:

“enter into a plea agreement which calls for the alien, who is deportable under this chapter, to waive the right to notice and a hearing under this section, and stipulate to the entry of a judicial order of removal from the United States as a condition of the plea agreement.”

In other words, by accepting a judicial order of removal, the alien can receive a shorter sentence, provided they go back home.

Given that more than 21,000 aliens were federally sentenced in FY 2024 (down from nearly 30,000 in FY 2020, due to lenient Biden-era policies), and 88.7 percent of them were illegal aliens, full implementation of judicial removal orders under section 238(c) of the INA could have a significant impact on annual deportations.

**Section 238(a)**, on the other hand, provides for expedited proceedings for aliens in criminal custody who are deportable because they have been convicted of aggravated felonies or certain drug, firearms, or national security offenses, while they are serving their sentences. That provision is the predicate for the Institutional Hearing and Removal Program (IHRP), which is jointly coordinated by DHS and DOJ and provides for removal hearings (generally conducted via video teleconference) in federal, state, and local facilities.

As DOJ’s Office of the Inspector General reported in September 2021:

“The goal of the IHRP is to issue a final decision on deportation while inmates are still in BOP custody, which typically reduces the time that the IHRP participants spend in ICE detention while awaiting deportation. We found that IHRP participants spent an average of 23 days in ICE detention if they had a final order of deportation prior to release from BOP custody. By contrast, those who did not have a final order when they transferred from BOP custody to ICE detention at the end of their sentence spent an average of 89 days in ICE detention.”

It is unclear how many federal, state, and local facilities participate in the IHRP at present, but DHS, DOJ, and particularly EOIR, should expand that program into every jail, prison, and correctional facility that is willing to accommodate IHRP. Doing so would limit the costs of ICE detention and speed the deportation of criminal aliens.

Finally, the **International Prisoner Transfer Program** permits “the transfer of prisoners from countries in which they had been convicted and sentenced of crimes to their home countries.” As DOJ explains:

“After transfer, the home or receiving country assumes responsibility for administering the transferred sentence. The transfer program is intended to facilitate the rehabilitation of the transferred offenders and to relieve some of the administration and diplomatic issues that arise with the incarceration of foreign nationals. In addition to foreign national prisoners in federal custody and Americans sentenced abroad, foreign national prisoners in state custody are also eligible to participate in the program.”

The administration should fully expand that program to allow for the transfer of any alien detained on criminal charges in the United States, and DOS should negotiate additional treaties to expand that program.

# Litigate Challenges Vigorously

District courts, at the urging of alien plaintiffs and immigrants' advocates, have successfully used temporary restraining orders (TROs) and injunctions to halt deportations.

CRS identified 25 nationwide injunction cases in just the first 100 days of the second Trump Administration, compared to 64 across the entire first Trump term and only 28 during the Biden years.

The most notable early example concerned litigation regarding the Alien Enemies Act (AEA). In March 2025, a D.C. district court judge issued two TROs blocking the removal of Venezuelan nationals, including an order directing that any plane carrying individuals subject to the AEA proclamation that was already en route be returned to the United States. Just over three weeks later, the Supreme Court vacated those TROs, holding that challenges to the AEA must be brought in the district of confinement.

The much more significant challenge the Trump Administration has faced, however, relates to habeas claims filed with federal district courts by aliens in ICE detention seeking release. The Trump Administration has reversed prior interpretations of section 235(b)(2) of the INA and concluded that inadmissible applicants for removal encountered by DHS in the interior of the United States must be detained. The BIA's opinion in *Matter of Yajure Hurtado*, affirming that interpretation, has triggered the filing of thousands of habeas petitions under 28 U.S.C. § 2241 in U.S. district courts across the country.

Illegal aliens in detention have fewer incentives to delay their deportations and are more likely to opt for deportation.

In 2025, 28 percent of completed detained removal cases ended with voluntary departure, more than any prior year. The number of aliens in detention is also at a record high, while the percentage of rulings favorable to alien respondents in bond hearings has fallen to 30 percent from 59 percent in 2024.

Despite these developments, habeas petitions have played a significant role in delaying and even preventing the removal of large numbers of illegal aliens. These petitions strain Justice Department resources by forcing DOJ's Civil Division and the USAOs to respond to each claim.

As noted, the Fifth Circuit has affirmed the BIA's opinion in *Matter of Yajure Hurtado*, but it is incumbent on the Justice Department and the Attorney General to secure more such opinions from the other federal courts of appeal, or ideally from the Supreme Court. Moreover, DOJ needs to secure circuit and Supreme Court opinions limiting the authority of trial-level district court judges in review of immigration matters, as Congress plainly intended in section 242 of the INA, along the lines of the Third Circuit's January opinion in *Khalil v. President*.

## Leverage States to Participate

Many state governments possess or are considering laws and orders that reduce incentives for illegal aliens to reside in their states and have proved willing to assist with federal deportation efforts.

Official cooperation efforts between ICE and local law enforcement using the 287(g) program are one of the most effective tools immigration authorities have for collecting large numbers of illegal aliens for deportation. Former ICE Deputy Director Madison Sheahan explained that “These historic partnerships serve as a ‘force multiplier’ to help federal agencies find, arrest, and deport illegal aliens.”

287(g) agreements have increased by 641% since January 2025, but efforts lag in many states. Florida mandates that every sheriff participate in the federal 287(g) program. Thanks to the legislative mandate and coordination by Governor DeSantis’ office, all sixty-seven of Florida’s sheriffs’ departments and seventy-five percent of the state’s law enforcement agencies now have 287(g) agreements; thousands of criminal aliens have already been turned over to ICE. Across every other red state, average participation is only 6.5%.

Initial efforts aimed at identifying the costs illegal aliens impose on states have revealed states can effectively collect and analyze data on illegal alien abuse of the healthcare system. In August 2024, Greg Abbott signed executive order No. GA-46 requiring hospitals to collect data to produce annual reports on the costs of care provided to illegal aliens.

A preliminary report issued by the Texas Health and Human Services Commission (HHSC) on April 25, 2025, found that in November 2024, Texas hospitals incurred \$121.8 million in health care costs for persons not lawfully present in the U.S. A similar Florida study found hospitals in that state incurred \$659.9 million in losses to provide care for illegal aliens in 2024.

By directing hospitals to collect data on immigration status, these studies reveal precisely where and how much illegal aliens cost American taxpayers. Identity protections prohibit intergovernmental transfer of healthcare data, but insurance and cost studies at the state level generate data that can be used by immigration authorities and lead to targeted regulations on rental, vehicle, and health insurance.

Illegal aliens interact with state agencies frequently as they file taxes, claim benefits, register vehicles, and seek employment. Interagency data sharing has a strong track record of success at the federal level, and while some personal data is protected, state agencies can sign MOUs with ICE to provide non-protected data upon request, rather than requiring a formal court order.

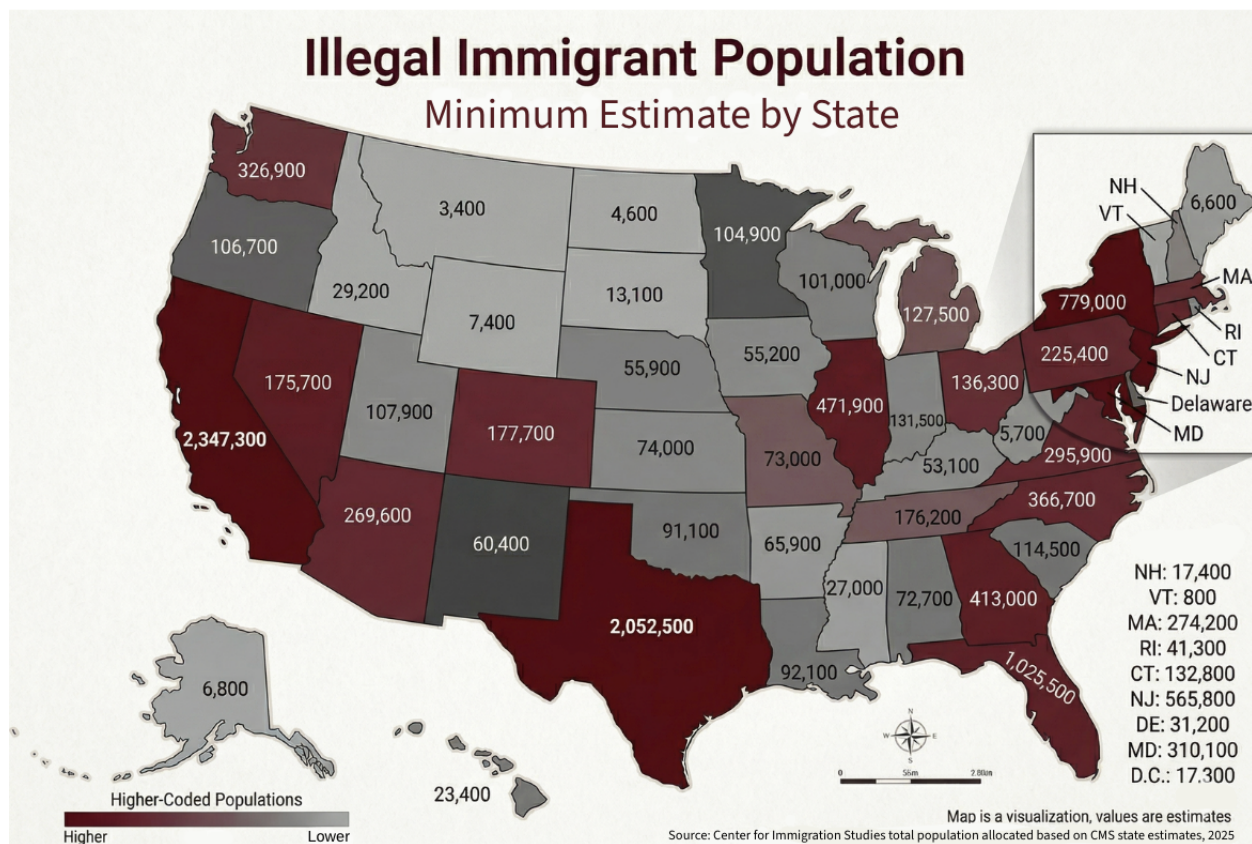
Further action by state legislatures contributes to reducing illegal alien populations and impeding their activities within a state. E-Verify is a federal database used by employers to check the immigration status of its employees.

As of now, seven red states have E-Verify mandates covering all businesses, 12 red states have mandates applying only to public contractors, and 10 additional red states could expand E-Verify coverage through gubernatorial executive order without waiting for legislation or presidential action. Arizona offers a model legislative solution, punishing businesses that refuse to comply with the threat of license revocation and delivering a meaningful reduction in employment of illegal aliens.

The “One Big Beautiful Bill Act” (OBBBA) imposed a 1% remittance tax on certain types of international money transfer. States can add additional taxes on remittances, raising useful funds from the up to \$230 billion in remittances sent every year. Oklahoma has taxed remittances to foreign countries for more than a decade. Last year alone, they collected \$13 million from just a 1% tax on these transfers. A similar levy in other states will raise revenue while pushing illegal aliens out of the state.

It is time for states to challenge the poorly decided 5–4 Plyler v. Doe Supreme Court case (1982), in which the majority held that barring illegal alien students from public K-12 schools violated the Equal Protection Clause of the 14th Amendment. The U.S. Congress has since legislated on related issues and our immigration system and K-12 public education have changed circumstances. Since 2025, six states (TN, TX, OK, ID, IN, NJ) have introduced legislation that range from collecting immigration status data to charging tuition for illegal alien K-12 students, although none as yet have become law. Given the composition of today’s Court and legal developments emphasizing policymaking restraint from the highest court in the land, a state willing to lead the charge has a good chance of getting Plyler overturned. Willing states could reduce their education costs, preserve resources for American and lawful immigrant students, and encourage illegal aliens with K-12 children to depart at least their states, if not the country.

Success implementing these policies will vary by state, but willing states can play a crucial role in upholding our country’s laws, fighting illegal immigration, and protecting their own citizens, including economically. States can deter illegal aliens from residing in their states by removing benefits that flow from illegal residence in the country and publishing cost data to inform and persuade other states. Especially in states with strong Republican majorities, simple and effective policies supporting immigration enforcement ought to be a tool deployed consistently to support federal immigration policy, including deportations.



Map intended to show variance by state. This low-end estimate is not representative of total illegal population.

# Track and Publicize Meaningful Benchmarks and Statistics

To achieve one million ICE interior removals in calendar year 2026, the following minimum operational throughput benchmarks should be tracked and reported by the administration on a monthly basis:

**Daily case screening volume:** the number of deportation cases triaged and referred to the case resolution or apprehension pipeline per day. To screen the existing backlog at the pace required, this number should exceed 5,000 cases per day across all screening personnel, both federal and contracted.

**Daily apprehensions:** the number of aliens taken into custody by ICE ERO, deputized personnel, and 287(g) partners per day. One million removals in approximately 250 operational days requires an average of 4,000 apprehensions per day, accounting for processing time, legal challenges, and logistical delays between apprehension and actual departure.

**Detention bed occupancy and turnover rate:** the number of available detention beds, the average daily population, and the average number of days between intake and departure. Faster turnover preserves bed space; slower turnover creates bottlenecks. The administration should target a median detained processing time of no more than 45 days, consistent with historical detained case completion times.

**Daily deportation flights and passenger volume:** the number of charter and commercial deportation flights per day and the total number of deportees transported. This metric directly measures the output of the entire pipeline and is the most transparent indicator of whether the campaign is on pace.

**Self-departure volume:** the number of aliens who voluntarily depart through mechanisms such as the CBP Home app, court-granted voluntary departure, or documented exit without government transport. Self-departures are a lagging indicator of enforcement credibility; as apprehension and deportation numbers increase, self-departure should accelerate. This number should be tracked and reported separately from ICE interior removals but recognized as a direct consequence of the enforcement campaign.

These benchmarks are not aspirational. They are the mathematical requirements of achieving one million removals in the time available. The Mass Deportation Coalition's principle of complete data transparency requires that these numbers be reported publicly and regularly so that the American people, Congress, and the administration itself can assess whether the campaign is on track.

# Keep HSI Tethered to Immigration Enforcement

The Mass Deportation Coalition is opposed to any separation of Homeland Security Investigations (HSI) from U.S. Immigration and Customs Enforcement (ICE) in the appropriations process or organizationally in DHS.

Direct utilization of all internal components of U.S. Immigration and Customs Enforcement (ICE) is essential to maintain a cohesive, seamless collaborative environment in fulfillment of the agency's statutory mission: "to protect America through criminal investigations and enforcing immigration laws to preserve national security and public safety."

Cross-border threats posed by transnational criminal organizations constitute an existential threat to the sovereignty, safety, and national security of the United States. These organizations systematically exploit vulnerabilities at our borders and the erosion of immigration law enforcement. Critically, the enforcement of immigration laws and the interdiction of border-related threats are not discrete functions; they are inextricably intertwined, as expressly contemplated by Congress in consolidating investigative, intelligence, and enforcement authorities within ICE under the Homeland Security Act of 2002.

Any proposal to remove or separate, through funding or otherwise, the HSI component from ICE must be summarily rejected as contrary to law and operational necessity. Such further fragmentation of our immigration system would create additional artificial barriers to information sharing and inter-agency collaboration on cross-border criminal matters, thereby undermining HSI's statutory mandate to investigate violations of the Immigration and Nationality Act, customs laws, and related federal criminal provisions.

The result would be increased bureaucratic delays, wasteful duplication of effort, ambiguous lines of authority, and heightened risks of territorialism and mission creep—precisely the inefficiencies Congress sought to eliminate through the post-9/11 reorganization. This diminution of ICE's capabilities would materially impair the Department of Homeland Security's overarching duty to secure the homeland, not enhance it.

Furthermore, any effort to distance HSI from ICE's immigration enforcement responsibilities would expose the component to political exploitation, advancing extraneous agendas rather than addressing genuine operational requirements. Preservation of the integrated structure is therefore imperative to sustain effective, law-enforcement-driven national security outcomes.

# Conclusion — Why We Must Deport

Did America exist before 1776?

The 250th anniversary of our independence is a good time to ask. Answering the question means grappling with the fundamental question underlying the fierce political debates of our time: what exactly it means to be an American.

The answer to that question directs a host of public policies from education to international trade, but none more than immigration. Deciding who comes and why, what's required of them to stay, and when they must depart stems from some understanding of America.

Not every answer is a good one. Misunderstanding America, confusing it for an economic zone or a multicultural population, has led to decades of destructive immigration policies. These have hurt Americans and eroded our understanding of ourselves. America deserves better.

We, the undersigned representatives of the Mass Deportation Coalition, share a devotion to the nation we call home. This requires us to stand up, speak boldly, and fix the existential crisis that is American immigration. Thanks to President Trump, the urgent need to secure the border has been accomplished. Now is the time for step two: removing the many millions of deportable people in America.

After decades of weak leadership, we finally have a window of opportunity because of President Trump's clear-eyed understanding of America and the patriotic resolve to make it great again. That window is small. If we do not act—and soon—we will lose our nation. America will cease to mean anything at all.

## We the People

If we are to answer the question honestly—did America exist before 1776?—we must first reject the fashionable idea that the nation sprang into existence merely because a group of men signed a document in Philadelphia. Political independence was declared in 1776, but the American people did not suddenly materialize on that summer day. The Declaration announced a nation that already existed in culture, habit, and belief. As Russell Kirk put it, the American order “was not manufactured: rather, it grew.”

Long before independence, a distinct civilization had taken root on this continent. Its institutions, moral assumptions, and public life reflected the inheritance of Western political thought, especially the values of the Old Testament. The settlers who built communities along the Atlantic seaboard did not consider themselves participants in an abstract experiment open to anyone, anywhere, at any time. They were building a society—one with shared norms, obligations, and expectations.

Understanding this is essential to understanding immigration.

A nation is not merely a geographic space or an economic marketplace. It is a people with a shared story and a common inheritance. It possesses borders not only on a map but also in culture, law, and loyalty. When a nation forgets this, it begins to treat citizenship as a commodity rather than an inheritance to be stewarded.

For decades, American immigration policy has operated on precisely that confusion. The United States has often been treated as though it were simply a prosperous territory whose primary purpose is to maximize economic output. In that view, population flows become a labor question. If businesses want cheap labor, the argument goes, immigration should increase accordingly.

But nations are not corporations. Their purpose is not to meet quarterly earnings expectations or return a dividend to a small class of shareholders. Their purpose is the flourishing and continuity of the people who constitute them.

Another misunderstanding has been equally damaging. The popular metaphor of the “melting pot” suggests that America is defined by perpetual cultural transformation, as if the nation were an ever-changing mixture with no stable character at all. In this telling, the only requirement for belonging is the verbal affirmation of a few broad ideals—liberty, equality, opportunity—divorced from the historical context that gave those ideals meaning.

Yet a “creedal nation” that defines itself only by abstract slogans soon finds it lacks the social order necessary to sustain those same ideals. If America is nothing more than a set of universal propositions, then there is no meaningful distinction between citizen and outsider, between membership and mere presence.

History tells a different story. The United States developed within a particular civilizational framework, shaped by institutions, customs, and moral traditions carried across the Atlantic and adapted to new circumstances. Immigration has occurred throughout that history, sometimes at higher levels and sometimes at lower ones, but always in relation to the needs and stability of the nation itself. And always with a mind toward assimilating newcomers to that framework.

Today, however, America faces a challenge that previous generations largely avoided: the weaponization and normalization of mass illegal immigration.

For many years the political class treated the violation of immigration law as a minor inconvenience. Enforcement was inconsistent. Penalties were weak. Public debate focused primarily on economic arguments while ignoring the deeper questions of sovereignty and civic cohesion. The result has been the presence of millions of individuals who entered or remained in the country outside the legal process established by the American people through their laws.

This situation is not merely a bureaucratic problem. It is a constitutional one. A nation that does not enforce its own immigration laws ceases to control one of the most fundamental attributes of sovereignty: determining who may enter and remain within its borders.

The first step toward restoring that sovereignty is securing the border itself. Without physical control of entry, no immigration policy can be credible. The recent success in strengthening border enforcement demonstrates that determined leadership can reverse years of dereliction.

But border security addresses only part of the problem. A nation must also confront the consequences of past failures.

If immigration law is to mean anything, it cannot apply only to those who follow it. Allowing unlawful entry, fraud, and defying departure requirements to become permanent pathways to residence undermine both fairness and legitimacy. This sends a message to the world that the United States lacks the will to enforce the rules it has set for itself.

For this reason, the next phase of immigration enforcement must involve the systematic enforcement of existing law throughout the country. That includes the removal of individuals who entered or remained illegally and those who committed fraud. While such an effort will require significant administrative coordination and political courage, it is neither radical nor unprecedented. Every sovereign nation maintains the authority to remove individuals who reside within its borders unlawfully. And other sovereign nations exercise such authority, unquestioned.

The alternative—permanent acceptance of large-scale illegal presence—is far more radical. It would effectively dissolve the distinction between legal immigration and unlawful entry, rendering the law meaningless and eroding public trust in the institutions meant to uphold it.

None of this implies hostility toward immigrants. Immigration has played an important role in American history, and it may do so again in the future when the nation's interests require it and when the system can be well-managed. But immigration policy must serve the nation, not replace it.

The United States has reached a moment when clarity is necessary. Either America remains a nation capable of governing its borders and preserving the continuity of its civic life, or it becomes something else entirely: a place defined only by geography and economic opportunity.

The choice before us is therefore not simply about immigration policy. It is about whether America will continue to exist as a nation with a distinct character and a shared destiny.

That question deserves an answer grounded in realism, historical memory, and the courage to act.

This playbook marries the why we must deport with the how. No longer can the cause of mass deportation be considered too operationally or logistically difficult. To the contrary, it is imminently doable, justified, and even necessary. The recommendations in this document chart the path to begin to accomplish a mass deportation campaign, starting with at least one million actual deportations in 2026 so that systems are in place to greatly expand those operations in the years to follow.

# The Immigration System

“Credibility in immigration policy can be summed up in one sentence: those who should get in, get in; those who should be kept out, are kept out; and those who should not be here will be required to leave. The top priorities for detention and removal, of course, are criminal aliens. But for the system to be credible, people actually have to be deported at the end of the process.”

— Barbara Jordan, Chair, U.S. Commission on Immigration Reform

For decades, various administrations have promised the American people they would enforce the immigration laws of the United States by securing the nation’s borders, tightening the visa process, and—most importantly—deporting illegal aliens living in the United States.

And, for decades, with just a few notable exceptions, they have failed to do so. While some admit mass migration has been weaponized against America, we must also recognize that obstructing deportations is a key part of that weaponization. Securing the border was not enough. Nor is deporting the “worst of the worst” enough to end the internal security, criminal, and economic chaos that continues to flow from the on-going weaponization.

Congress, in the Immigration and Nationality Act (INA), has provided the executive branch with the tools it needs to restore order to our immigration system by requiring those who should not be here to leave.

For various reasons, however, administrations have failed to use those tools as they should have. Consequently, the illegal alien population of the United States has grown from an estimated 5.7 million in 1995, to anywhere between 14 million and 20 million before President Donald Trump returned to office in January 2025.

Politicians have long argued for extending amnesty to illegal aliens, even when smaller numbers were historically present in the United States. Today, however, the number of illegal aliens in the United States has grown so large that for many public officials on both sides of the aisle, adopting some form of blanket amnesty policy that would permit most, or even all, aliens here illegally to remain here has become their only proposed “solution” to deal with the catastrophic volume.

As we will show, however, “mass deportation” of millions of aliens here unlawfully is an attainable goal for any administration with the will to carry it out. Americans continue to support mass deportations because—just as in November 2024—they remain fed up with preventable crime, fraud, and unfair job competition, and the sight of their tax dollars going to masses of people who are not supposed to be here.

“Mass deportation” is not merely a slogan. It is a necessary goal that is crucial to maintaining our national security, economic well-being, American identity, and the safety of communities across the United States. These considerations should be at the forefront of this and every future administration’s agenda.

In this playbook, we identify the sources of the government’s authority to deny admission to inadmissible aliens who seek entry and to remove those who are here in violation of law, delineate the statutory grounds that render their presence here unlawful, delineate the authorities Congress

has given various government agencies to aid in that deportation effort, clarify how those authorities are used, and most importantly, explain how those authorities can be used to their most impactful effect.

## Congress’s Constitutional Authority to Regulate Immigration

All discussions of federal authority begin with the United States Constitution. In the case of immigration enforcement, Article I, Section 8 vests in the Congress the power: “To establish an uniform Rule of Naturalization”; and “To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers.”

“Naturalization” is the process by which a foreign national in the United States (defined as an “alien” in section 101(a)(3) of the INA) becomes a “citizen” (as defined by reference therein and in section 101(a)(22) of the INA).

Congress’s power to regulate immigration is therefore a crucial element of its constitutional prerogative “to establish a uniform Rule of Naturalization.” As the nonpartisan Congressional Research Service (CRS) has noted: “Long-standing Supreme Court precedent recognizes Congress as having ‘plenary’ power over immigration, giving it almost complete authority to decide whether foreign nationals (‘aliens,’ under governing statutes and case law) may enter or remain in the United States.”

Supreme Court precedent illustrates this point. In *Galvan v. Press*, the Court explained:

Policies pertaining

to the entry of aliens and their right to remain here

are peculiarly concerned with the political conduct of government. In the enforcement of these policies, the Executive Branch of the Government must respect the

procedural safeguards of due process

. But that the formulation of these policies is entrusted exclusively to Congress has become about as firmly embedded in the legislative and judicial tissues of our body politic as any aspect of our government.

In other words, **Congress has the exclusive constitutional authority to write laws controlling immigration, while the Executive Branch has the constitutional obligation to carry out the immigration laws that Congress writes**—especially in executing Congress’s decision to preclude the classes of aliens enumerated under section 212(a) of the INA from admission to the United States (collectively known as the “grounds of inadmissibility”).

Section 212(a)(7)(A)(i) of the INA provides the core ground of inadmissibility that Congress created to control the flow of aliens into the United States, barring the admission of any alien “not in possession of a valid unexpired immigrant visa, reentry permit, border crossing identification card, or other valid entry document.”

In addition, section 237(a) of the INA lists the “classes of deportable aliens,” i.e., those aliens who have been admitted to the United States but who, for designated reasons, Congress has directed be removed from the United States.

Those classes include nonimmigrants (i.e., temporary visa holders) who have overstayed their lawful periods of admission or who have otherwise violated the terms of their admission; aliens convicted of certain criminal acts; and aliens who pose a national security risk, an espionage threat, or who expose the nation to the danger of terrorism—both in the United States and abroad.

## Key Immigration Enforcement Officials

Section 103(a) charges the Secretary of Homeland Security “with the administration and enforcement of” the INA, subject to certain exceptions.

Subordinates to whom the secretary delegates that enforcement authority are referred to as “immigration officers,” defined in section 101(a)(18) of the INA as “any employee or class of employees of” the Department of Homeland Security (DHS) “or of the United States designated by the” secretary, either “individually or by regulation.”

Among the DHS employees the secretary has designated as immigration officers are:

- Border Patrol agents in U.S. Customs and Border Protection (CBP);
- CBP officers in the agency’s Office of Field Operations (OFO) directorate;
- U.S. Immigration and Customs Enforcement (ICE) officers in that agency’s Enforcement and Removal Operations (ERO) directorate;
- ICE attorneys in the agency’s Office of the Principal Legal Advisor (OPLA);
- Special agents in the ICE Homeland Security Investigations (HSI) directorate; and
- U.S. Citizenship and Immigration Services (USCIS) asylum officers and refugee officers in the agency’s Refugee, Asylum and International Operations Directorate (RAIO).

CBP has primary jurisdiction over the ports (which are overseen by OFO) and of the borders between the ports (which are under Border Patrol jurisdiction).

ICE ERO has primary jurisdiction for the investigation and arrest of aliens in the interior of the United States, the detention of aliens arrested by ICE and encountered by CBP for civil immigration purposes, and the deportation of aliens from the United States.

Among other duties, ICE HSI is responsible for criminal immigration investigations (including alien smuggling and human trafficking), “worksite enforcement” under section 274A of the INA, and the alien “Student and Exchange Visitor Program” (SEVP).

ICE OPLA attorneys provide legal advice to ICE personnel and represent the interests of the American people in administrative immigration proceedings before the immigration courts and the Board of Immigration Appeals (BIA).

Finally, USCIS asylum officers perform “credible fear” and “reasonable fear” screenings and adjudicate “affirmative asylum” applications for aliens in the United States, while refugee officers adjudicate refugee applications abroad.

A provision in section 103(a) of the INA, however, provides that “determination and ruling by the Attorney General”—rather than the Secretary of Homeland Security—“with respect to all questions of law” under the INA “shall be controlling.”

In most instances, the Attorney General delegates this authority to immigration judges (IJs) in the nation’s immigration courts and to the BIA, an administrative review tribunal that reviews immigration decisions, both of which are in the Executive Office for Immigration Review (EOIR), an agency within the Department of Justice (DOJ).

An IJ is defined in section 101(b)(4) of the INA as “an attorney whom the Attorney General appoints as an administrative judge within” EOIR that has authority to make removal determinations and adjudicate applications for relief for aliens in removal, exclusion, deportation, asylum-only, and withholding-only proceedings; to review negative credible and reasonable fear determinations made by USCIS asylum officers; and to redetermine DHS custody and bond determinations.

With the exception of IJ credible and reasonable fear determinations, the BIA, by regulation, has jurisdiction to review IJ decisions made in those proceedings on appeal and to review USCIS denials of certain visa petitions.

By regulation, the BIA may designate its opinions as “precedents,” meaning they are “binding on” DHS and IJs “in the administration of the immigration laws of the United States,” unless they are “modified or overruled” by a future BIA opinion or by the Attorney General under the regulatory review authority the Attorney General retains under section 103(a).

That precedential authority permits the BIA and Attorney General to change, amend, or clarify immigration policies without going through the conventional regulatory process governed by the Administrative Procedure Act (APA).

Additional exceptions to the DHS secretary’s authority in section 103(a) of the INA relate to “the powers, functions, and duties conferred upon the President, the Attorney General, the Secretary of State, the officers of the Department of State, or diplomatic or consular officers.”

The President as the head of the Executive Branch retains all immigration authority, however, section 212(f) of the INA expressly permits the Chief Executive alone to:

[B]y proclamation, and for such period as he shall deem necessary, suspend the entry of all aliens or any class of aliens as immigrants or nonimmigrants, or impose on the entry of aliens any restrictions he may deem to be appropriate.

In its landmark 2018 decision in *Trump v. Hawaii* (assessing the legality of travel restrictions imposed by the president on specified aliens from certain countries, which were based on that provision), the Supreme Court concluded that, “[b]y its terms,” section 212(f):

[E]xcludes deference to the President in every clause. It entrusts to the President the decisions whether and when to suspend entry (“whenever [he] finds that the entry” of aliens “would be detrimental” to the national interest); whose entry to suspend (“all aliens or any class of aliens”); for how long (“for such period as he shall deem necessary”); and on what conditions (“any restrictions he may deem to be appropriate”).

Finally, section 104 grants the Secretary of State authority over “the administration and the enforcement of” provisions of the INA relating to: “the powers, duties, and functions of diplomatic and consular officers of the United States, except those powers, duties, and functions conferred upon the consular officers relating to the granting or refusal of visas”; and “the determination of nationality of a person not in the United States.”

State Department officers in the Bureau of Consular Affairs (CA) manage the issuance of immigrant and nonimmigrant visas for foreign nationals abroad, while the Secretary sets visa policy.

Subject to exceptions, section 212(a)(3)(C)(i) of the INA also gives the Secretary of State power to exclude an alien if he “has reasonable ground to believe” the alien’s “entry or proposed activities in the United States . . . would have potentially serious adverse foreign policy consequences for the United States.”

Similarly, under section 237(a)(4)(C)(i) of the INA: “An alien whose presence or activities in the United States the Secretary of State has reasonable ground to believe would have potentially serious adverse foreign policy consequences for the United States is deportable.”

Deportability under this provision, however, is subject to the same exceptions that apply to the secretary’s determinations under section 212(a)(3)(C)(i) of the INA.

Other cabinet-level departments also play roles in the enforcement of the immigration laws.

Under section 212(a)(1)(A)(i) of the INA, aliens found to “have a communicable disease of public health significance” under “regulations prescribed by the Secretary of Health and Human Services” (HHS) are inadmissible.

The HHS Secretary is also responsible for the “care and placement” of “unaccompanied alien children” (UACs) encountered by immigration officers with “sponsors” in the United States.

Finally, pursuant to section 212(a)(5)(A)(i) of the INA, aliens seeking to “enter the United States for the purpose of performing skilled or unskilled labor” are inadmissible unless the Secretary of Labor certifies: that there are not enough “workers who are able, willing, qualified . . . and available at the time” those aliens apply for visas “at the place where the alien is to perform such skilled or unskilled labor”; and that the employment of those aliens “will not adversely affect the wages and working conditions of workers in the United States similarly employed.”

## “Inspection” and “Admission” of Aliens, and Detention of “Applicants for Admission”

To ensure DHS complies with its “policies pertaining to the entry of aliens,” Congress created a process immigration officers must follow when inspecting aliens who have not been “admitted” to determine whether they should be, which is codified at section 235 of the INA.

The INA defines the term “admitted” as “the lawful entry of the alien into the United States after inspection and authorization by an immigration officer.” Section 235(a)(1) of the INA, in turn, deems all aliens present in this country who have not been admitted—at the ports and borders, and in the interior—as “applicants for admission.”

While CBP officers in OFO perform inspections of applicants for admission at the ports, and Border Patrol inspects aliens encountered at the borders between the ports, ICE ERO officers and HSI special agents inspect unadmitted applicants for admission encountered in the interior.

Pursuant to section 235(b)(2)(A) of the INA, except for aliens subject to “expedited removal” (discussed below), “if the examining immigration officer determines that an alien seeking admission is not clearly and beyond a doubt entitled to be admitted, the alien shall be detained for” removal proceedings before an IJ.

In its September 2025 opinion in *Matter of Yajure Hurtado*, the BIA found that this detention mandate applies to all unadmitted applicants for admission, including those residing in the interior of the United States.

Thousands of aliens affected by that opinion have filed habeas applications, seeking release from DHS custody pending removal proceedings, and most have been successful.

In February 2026, however, a split panel of the U.S. Court of Appeals for the Fifth Circuit affirmed the BIA’s conclusions in *Matter of Yajure Hurtado*, holding that the agency’s current reading of section 235(b)(2)(A) of the INA better reflects Congress’s intent than prior interpretations, which had allowed IJs to release applicants for admission encountered in the interior.

## Apprehension and Arrest of Removable Aliens

Even aside from the detention mandates in section 235(b)(2)(A) of the INA, Congress has given immigration officers expansive powers to investigate, question, and detain aliens.

### Administrative Arrest Warrants

Section 236(a) of the INA permits immigration officers to issue administrative arrest warrants to take custody of aliens believed to be removable from the United States, pending a decision on whether they are to be removed.

Nothing in the INA requires ICE officers to seek a “judicial warrant” from a federal judge or magistrate before taking an alien into civil custody, regardless of claims to the contrary. Moreover, there is no process immigration officers can follow to obtain a judicial warrant to arrest individual aliens on civil immigration grounds.

### Warrantless Questioning and Arrests

Even absent an administrative warrant, section 287(a)(1) of the INA permits immigration officers to “interrogate any alien or person believed to be an alien as to his right to be or to remain in the United States” without a warrant, while section 287(a)(2) allows an immigration officer to “arrest any alien” if the officer has “reason to believe that the alien . . . is in the United States in violation of [the INA or any regulation made pursuant thereto]” and “is likely to escape before a warrant can be obtained for his arrest.”

However, section 287(a)(2) also requires immigration officers to take aliens subject to warrantless arrests “without unnecessary delay” for a determination by an examining officer as to whether they

have a “right to enter or remain in the United States,” and warrantless immigration arrests require probable cause to believe the subject is a removable alien or has committed a crime.

The leading precedent on civil immigration arrests is *INS v. Lopez-Mendoza*, a 1984 Supreme Court decision involving two aliens subject to worksite arrests, one in an area agents were permitted by the employer to access, the other in which they were not permitted to enter.

The Court concluded that the “exclusionary rule,” a judicial principle that “prevents the government from using most evidence gathered in violation of the United States Constitution” in criminal cases, does not apply in civil deportation cases.

The purpose of the exclusionary rule, the majority noted, is to deter misconduct by barring the use of improperly obtained evidence, but as the Court held, “several other factors significantly reduce the likely deterrent value of the exclusionary rule in a civil deportation proceeding.”

Specifically, the majority found that “regardless of how the arrest is effected, deportation will still be possible when evidence not derived directly from the arrest is sufficient to support deportation,” given that the primary question in deportation proceedings is the respondent’s identity and alienage.

As the Court noted, the identity of a suspect cannot be suppressed under the exclusionary rule and, as there is no presumption of citizenship under the INA, immigration judges can draw adverse inferences from the respondent’s silence after receiving other proof of alienage.

Finally, as the Court explained, few aliens challenge the lawfulness of their arrests, and therefore, applying the exclusionary rule in civil deportation proceedings likely wouldn’t change agents’ behavior.

## Simple Questioning and Brief Detentions

Importantly, the *Lopez-Mendoza* majority concluded that courts did not need to apply the exclusionary rule in civil deportation proceedings because the then-Immigration and Naturalization Service (INS) had “its own comprehensive scheme for deterring Fourth Amendment violations by its officers.”

ICE replaced the INS in interior immigration enforcement in 2003, and that “comprehensive scheme,” codified at 8 C.F.R. § 287.8, has carried over to the agency’s enforcement operations.

As paragraph (b)(1) therein explains:

Interrogation is questioning designed to elicit specific information. An immigration officer, like any other person, has the right to ask questions of anyone as long as the immigration officer does not restrain the freedom of an individual, not under arrest, to walk away.

Thus, ICE officers require no proof of either alienage or criminality to question individuals in public, unless those individuals questioned reasonably believe they are free not to respond or leave.

ICE officers only need suspicion of alienage or criminality when the subject does not feel free to walk away from questioning, but as 8 C.F.R. § 287.8(b)(2) explains:

If the immigration officer has a reasonable suspicion, based on specific articulable facts, that the person being questioned is, or is attempting to be, engaged in an offense against the United States or is an alien illegally in the United States, the immigration officer may briefly detain the person for questioning.

In the criminal context, such detentions are referred to as “Terry stops” after the Supreme Court’s 1969 opinion in *Terry v. Ohio*, which established that “reasonable suspicion” standard.

More specifically, the Court there explained that “in justifying the particular intrusion, the police officer must be able to point to **specific and articulable facts which, taken together with rational inferences from those facts**, reasonably warrant that intrusion.”

## “Probable Cause” for Immigration Arrests

Under limitations in 8 C.F.R. § 287.8(c)(2), however, immigration officers can only perform a warrantless arrest under section 287(a)(2) of the INA “when the designated immigration officer has reason to believe that the person to be arrested has committed an offense against the United States or is an alien illegally in the United States.”

As CRS has explained, “reviewing courts have interpreted the ‘reason to believe’ standard for warrantless immigration arrests” under section 287(a)(2) of the INA (and by extension, the regulation) as “equivalent to the Fourth Amendment’s probable cause standard.”

CRS continues:

Under this [probable cause] standard, courts have held that an immigration officer must have sufficient facts that would lead a reasonable person to believe, based on the circumstances, that the alien has violated federal immigration laws and is likely to escape before an ICE warrant can be obtained.

## Detention Under the Immigration and Nationality Act

Detention of aliens subject to removal proceedings is mandatory under various provisions of the INA, both (as noted) for inadmissible “applicants for admission” as defined in section 235(a)(1), and for certain aliens subject to deportability and who are under final orders of removal.

## Expedited Removal and the Detention Mandates in Section 235(b) of the INA

Again, under section 235(a)(1) of the INA, an alien who arrives at a port of entry or between the ports, or is present in the United States, but who has not been admitted is deemed “an applicant for admission” and is subject to inspection under section 235(a)(3) of the INA.

If, following that inspection, the immigration officer determines an applicant for admission lacks required admission documents (and thus inadmissible under section 212(a)(7)(A)(i) of the INA) or is seeking admission via fraud (and therefore inadmissible under section 212(a)(6)(C) of the INA) the officer has two different statutory options for processing the alien.

Section 235(b)(1)(A)(i) of the INA allows the officer to “order the alien removed...without further hearing or review”—i.e., without obtaining a removal order from an IJ under section 240 of the INA—“unless the alien indicates either an intention to apply for asylum . . . or a fear of persecution.” This process is known as “expedited removal.”

Under section 235(b)(1)(A)(ii) of the INA, however, if an alien subject to expedited removal requests asylum or claims a fear of persecution if returned, the immigration officer must “refer the alien for an interview by” a USCIS asylum officer to determine whether that alien has a “credible fear of persecution.”

“Credible fear of persecution” is defined as “a significant possibility, taking into account the credibility of the statements made by the alien in support of the alien’s claim and such other facts as are known to the officer, that the alien could establish eligibility for asylum under” section 208 of the INA.

Accordingly, “credible fear” is a screening standard to determine whether an alien may be eligible for asylum.

Congress is clear, however, in section 235(b)(1)(B)(iii)(IV) of the INA, that aliens “**shall be detained** pending a final determination of credible fear of persecution and, if found not to have such a fear, until removed.”

Section 235(b)(1)(B)(ii) of the INA is equally clear that if an asylum officer “determines at the time of the interview that an alien has a credible fear of persecution . . . , the alien **shall be detained for further consideration of the application for asylum.**”

Detention is critical in this context to the credibility of the inspection process because the credible fear standard is low, and asylum is particularly susceptible to fraud. As the House explained at the time it was drafting what would become the expedited removal provision:

Existing procedures to deny entry to and to remove illegal aliens from the United States are cumbersome and duplicative. Removal of aliens who enter the United States illegally, even those who are ordered deported after a full due process hearing, is an all-too-rare event. The asylum system has been abused by those who seek to use it as a means of “backdoor” immigration.

Alternatively, immigration officers performing inspections may process applicants for admission who are inadmissible under sections 212(a)(7)(A)(i) or 212(a)(6)(C) of the INA using the same procedures Congress mandated for aliens inadmissible under the remaining grounds of inadmissibility, by placing them directly into section 240 removal proceedings, under section 235(b)(2)(A) of the INA.

As with aliens subject to expedited removal, aliens processed under section 235(b)(2)(A) of the INA and who are not “clearly and beyond a doubt entitled to be admitted” must “be detained.”

The only process for releasing an inadmissible applicant for admission pending removal proceedings is on “parole” under section 212(d)(5)(A) of the INA.

That provision states, in pertinent part, that the DHS secretary:

[M]ay, in his discretion parole into the United States temporarily under such conditions as he may prescribe only on a case-by-case basis for urgent humanitarian reasons or significant public benefit any alien applying for admission to the United States, but such parole of such alien shall not be regarded as an admission of the alien and when the purposes of such parole shall, in the opinion of the [DHS Secretary], have been served the alien shall forthwith return or be returned to the custody from which he was paroled and thereafter his case shall continue to be dealt with in the same manner as that of any other applicant for admission to the United States.

The congressional limitations on DHS's authority are apparent from the highlighted portions of that statute.

**First**, parole may only be granted “on a case-by-case basis,” and thus may not be issued on a blanket basis to allow the entry of large numbers of aliens, or programmatically.

**Second**, DHS may only grant parole for either “urgent humanitarian reasons” or “significant public benefit.” Granting parole for any other purpose is thus ultra vires, as it exceeds the scope of statutory parole authority.

**Third**, an alien granted parole is not “admitted” to the United States, and therefore, legally, remains in the same immigration status he or she held when parole was granted.

**Fourth**, the DHS secretary may revoke parole at any time in the secretary's unreviewable discretion, if the secretary is satisfied that the “purposes of such parole . . . have been served,” after which the paroled alien must return or be returned to DHS custody.

Note that in section 3(d) of the Laken Riley Act, Congress gave standing to state attorneys general to seek injunctive relief to enforce the restrictions on parole in section 212(d)(5) of the INA. To date, no actions have been filed against the Trump Administration under that provision.

## Detention under Section 236(a) and Release of Aliens Arrested on Warrant

As noted, section 236(a) of the INA authorizes immigration officers to arrest and detain an alien on an administrative warrant “pending a decision on whether the alien is to be removed from the United States.”

Section 236(a) of the INA further permits DHS to continue to detain aliens arrested on warrant or release them on a bond of not less than \$1,500 or conditional parole, which is distinct from parole under section 212(d)(5)(A) of the INA.

By regulation, with exceptions, aliens detained by DHS under section 236(a) can request release either from the department or, alternatively, from IJs in bond proceedings, which are “separate and apart” from removal proceedings under section 240 of the INA.

Neither section 236(a) of the INA nor the applicable regulations, however, confer on an alien any right to release on bond.

Instead, an alien in DHS detention seeking an IJ bond redetermination under section 236(a) “must establish to the satisfaction of the Immigration Judge . . . that he or she does not present a danger to persons or property, is not a threat to the national security, and does not pose a risk of flight.”

Conversely, DHS does not bear the burden of showing that the alien should be detained.

## Mandatory Detention Under Sections 236(c) and 242(a)(2) of the INA

As with the congressional restrictions on DHS’s authority to release inadmissible applicants for admission under section 235(b) of the INA, the act bars other aliens from seeking release from civil immigration custody.

For example, section 241(a)(1) of the INA requires DHS to remove aliens under final orders of removal within 90 days, designated in statute as the “removal period.”

Section 241(a)(2) of the INA, in turn, directs the department to detain those aliens during the removal period, and makes clear that “[u]nder no circumstance during the removal period shall” DHS “release an alien who has been found” removable under the criminal and national-security grounds of inadmissibility and deportability.

Similarly, section 236(c) of the INA requires DHS to “take into custody any alien” who:

- Is inadmissible under the criminal grounds of inadmissibility in section 212(a)(2) of the INA;
- Is removable under the “terrorist activities” grounds of inadmissibility and deportability in sections 212(a)(3)(B) and 237(a)(4)(B) of the INA (respectively);
- Is deportable under certain criminal grounds of deportability in section 237(a)(2) of the INA; or
- “Is charged with, is arrested for, is convicted of, admits having committed, or admits committing acts which constitute the essential elements of any burglary, theft, larceny, shoplifting, or assault of a law enforcement officer offense, or any crime that results in death or serious bodily injury to another person.”

That last class of criminal aliens subject to mandatory detention was added to section 236(c) of the INA by the Laken Riley Act.

In addition, the Laken Riley Act gives standing to state attorneys general to sue for injunctive relief to force DHS to detain:

- Inadmissible applicants for admission at the borders and ports subject to mandatory detention under section 235(b) of the INA;
- Other aliens subject to mandatory detention under section 236(c) of the INA; and
- Aliens ordered removed pending deportation under section 241(a)(2) of the INA (criminal aliens in particular).

DHS must take those criminal aliens described in section 236(c) of the INA, as amended by the Laken Riley Act, into its custody “when the alien is released” from incarceration, “without regard to whether the alien is released on parole, supervised release, or probation, and without regard to whether the alien may be arrested or imprisoned again for the same offense.”

The detention mandate in section 236(c) was added to the INA by section 303 of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (IIRAIRA). As the House explained in its 1996 Report on an earlier iteration of the IIRAIRA, “a chief reason why many deportable aliens are not removed from the United States is the inability of the INS to detain such aliens through the course of their deportation proceedings,” underscoring the crucial role of detention in immigration enforcement.

## Removal Proceedings

With exceptions below, DHS must obtain a final removal order from an IJ or the BIA before it can deport a removable alien from the United States.

Prior to the commencement of removal proceedings, DHS must serve an alien charged with removability a “Notice to Appear” (NTA), which (inter alia) must explain the nature of the proceedings, list the acts the alien is alleged to have committed that are in violation of law, and provide the specific grounds of removability and the time and place of the first removal hearing (known colloquially as the “initial Master calendar”).

## Commencement of Proceedings

Removal proceedings commence when DHS files the NTA with the immigration court.

The alien (denominated the “respondent” in immigration proceedings) is thereafter required to appear before an IJ at the initial Master calendar hearing.

Unless reset for counsel, the IJ will then explain the respondent’s rights in those proceedings and the charges and describe the nature of the proceedings.

If the alien is unrepresented, the IJ must provide a list of free or low-cost legal service providers and provide the alien opportunity to find counsel (unless the alien waives counsel and elects to proceed pro se). If the alien is unable to proceed in English, the court will also provide an interpreter.

While respondents have “the privilege of being represented” in immigration court and before the BIA, section 292 of the INA makes clear such representation must be “at no expense to the Government,” meaning the alien must either hire an attorney or secure pro bono legal counsel if the alien wants representation.

Once those steps are completed, the IJ will place the respondent under oath and require the alien to plead to the allegations in the NTA.

## “Relief”

Most respondents admit the allegations in the NTA and concede removability to move to the next stage of the removal proceedings, where the alien will seek “relief,” that is, some benefit or protection that, if granted, will permit the respondent to remain in the United States.

Asylum is the form of relief most respondents seek in removal proceedings. Of the nearly 3.8 million pending cases in the current immigration court backlog, more than 2.4 million (63.3 percent) involve a pending asylum application.

## “In Absentia” Removals

Unless their presence is waived, respondents must appear at each of their immigration court removal hearings.

If the respondent receives notice of the hearing and fails to appear, however, and the alien has conceded removability or ICE counsel can otherwise establish the alien is removable, the IJ must order the alien removed in absentia.

In FY 2025, IJs issued roughly 485,500 removal orders, more than 306,500 of which were issued in absentia (63 percent of the total) because the alien failed to appear in immigration court.

Aliens ordered removed in absentia are ineligible for a period of 10 years for most discretionary forms of relief except for asylum.

The respondent has 180 days after the issuance of an in absentia removal order to move the court to reopen the case, either because the alien’s “failure to appear was because of exceptional circumstances,” or because the respondent did not receive notice of the hearing.

The filing of a motion to reopen will stay the IJ’s in absentia removal order, however, no hearing notice is required if the respondent failed to file a change of address with the immigration court.

## BIA Appeals

After the IJ has issued a final order, either an order of removal or granting relief, both the respondent and ICE may file an appeal with the BIA.

Under current regulations, all appeals must be filed with the Board within 30 days from the date the IJ issued the decision, and either party may file a brief on appeal.

## Petitions for Review

After the BIA has issued its opinion, the alien may file a petition for review with the U.S. court of appeals “in which the immigration judge completed the proceedings.”

Under the “‘zipper’ clause” in section 242(b)(9) of the INA, trial-level federal district courts have little, if any, jurisdiction over decisions made in removal hearings, despite efforts by district court judges to intervene in cases pending before the immigration courts.

## Deportation

Aliens under final orders of removal have received their full due process rights and must depart the United States or be deported.

Despite that fact, acting ICE Director Todd Lyons recently revealed that the agency is “‘tracking” 1.6 million aliens subject to final deportation orders in this country, 800,000 of whom also have criminal convictions.

## The “Removal Period”

As noted, section 241(a)(1) of the INA requires DHS to remove aliens under final orders of removal within 90 days, designated in statute as the “[r]emoval period,” and section 241(a)(2) of the INA requires the department to detain those aliens during the removal period.

Few of those aliens are taken into custody and detained, however. Instead, ICE ERO generally sends the alien a “Notice to Deportable Alien to Surrender” (Form I-166), a Form I-205, “Warrant of Removal”, and a Form I-294, “Warning to Alien Ordered Removed or Deported,” informing the alien to report at a time and place certain for removal.

The Form I-166 is also called a “bag and baggage letter” but is commonly referred to as a “run letter” because it informs aliens under final orders that ICE is looking for them.

As explained below, admitted aliens charged with deportability under section 237(a) of the INA who are under final removal orders face criminal penalties, including imprisonment pursuant to section 243(a)(1) of the INA if they fail to depart within 90 days of the issuance of such orders, but enforcement of that provision is rare.

There is no similar sanction for aliens charged with inadmissibility under section 212(a) of the INA who are under final removal orders but who fail to depart.

## “Recalcitrant” Countries

One major impediment to many deportations is the refusal of so-called “recalcitrant” countries to provide necessary travel documents for their nationals.

As ICE has explained:

As part of the removal process, the U.S. government requests that foreign governments take appropriate steps to confirm the citizenship of individuals suspected to be their nationals—including conducting interviews when necessary; the timely issuance of travel documents, where appropriate; and the acceptance of the physical return of their nationals by scheduled commercial flights or, where necessary, special charter flights.

Any lack of cooperation from the nation of origin delays, and in many cases, inhibits the removal process. Countries classified by ICE as uncooperative are also known as recalcitrant. Factors that could lead to a country being classified as recalcitrant include hindering ICE removal efforts by refusing to take the appropriate steps, as described above.

## Other Immigration Proceedings

While removal proceedings under section 240 of the INA are the most common proceedings at which an alien's removability is assessed, they are not the only one.

### Expedited Removal

As explained above, section 235(b)(1) of the INA permits immigration officers to issue legally binding "expedited removal" orders without referring inadmissible applicants for admission to removal proceedings before an immigration judge.

### "Asylum-Only" Proceedings

The "visa-waiver program" (VWP), authorized under section 217 of the INA, permits nationals of 41 countries to travel to the United States as visitors for pleasure or business for stays of 90 days or less without first obtaining a B-1 or B-2 nonimmigrant visa.

Under section 217(b) of the INA, however, OFO may not grant nationals of those countries a visa waiver unless those aliens also waive: (1) any challenges to their admissibility, and (2) their right "to contest, other than on the basis of an application for asylum, any action for removal."

If VWP aliens violate the terms of their admission (most commonly by overstaying their authorized periods of admission), they are not entitled to removal hearings under section 240 of the INA. The only forms of relief available to them are humanitarian protections, which they can seek in "asylum-only" proceedings.

VWP aliens are not the only class of respondents who are subject to asylum-only proceedings. "Stowaways" found to have a credible fear of removal, nonimmigrants under the D (crewmen landing temporarily) and S (informants) categories, and aliens subject to removal on security grounds may also be placed in asylum-only proceedings.

### "Withholding-Only" Proceedings

Finally, aliens who reenter illegally after formal removal and aliens in expedited removal proceedings under section 238 of the INA due to aggravated felony convictions who claim a fear of harm if returned may only seek two humanitarian protections in "withholding-only" proceedings: (1) "statutory withholding" of removal; and protection under Article III of the Convention Against Torture (CAT).

As DOJ explains: “Neither party may raise any other issues including issues of admissibility, deportability, eligibility for waivers, and eligibility for any other form of relief from removal,” (including asylum) in withholding-only proceedings—the sole issue is whether the respondent has established eligibility for statutory withholding of removal or CAT.

## “Unlawful Employment of Aliens”

Not all civil immigration enforcement involves the arrest, detention, prosecution, and deportation of removable aliens.

Under section 274A(a)(1)(A) of the INA, it is “unlawful for a person or other entity to hire, or to recruit or refer for a fee, for employment in the United States an alien” if the employer knows the employee “is an unauthorized alien with respect to such employment.”

Similarly, section 274A(a)(2) of the INA makes it unlawful for employers “to continue to employ [an] alien in the United States knowing the alien is (or has become) an unauthorized alien with respect to such employment.”

Known as the “employer sanctions” provisions of the INA, Section 274A provides both civil and criminal penalties for employers who violate the requirements therein. ICE policing of those requirements is referred to as “worksite enforcement.”

## The “Employment Verification System”

The “[e]mployment verification system” in section 274A(b) of the INA requires U.S. employers to verify the employment eligibility of their new workers and to certify on the “Form I-9 Employment Eligibility Verification Form” that they have examined documents presented by those workers which establish their eligibility to be employed in the United States.

New employees must also attest on the Form I-9 that they are authorized to work in this country, and employers are required to retain those forms for set periods and present them to ICE, DOJ, or DOL upon request.

## ICE Investigations

To ensure employers are complying with section 274A of the INA, ICE HSI performs “worksite enforcement investigations,” which commence with service on the employer of a “Notice of Inspection” (NOI).

By regulation, employers have three business days after receipt of the NOI to provide HSI with its Forms I-9 and any “supporting documentation”—including “a copy of the employer’s payroll, a list of active and terminated employees, articles of incorporation, and business licenses”—requested in the notice.

At the end of the inspection process, ICE HSI provides the employer with the results of its investigation by serving the employer with either a “Compliance Letter,” a “Notice of Suspect Documents,” a “Notice of Discrepancies,” a “Notice of Technical or Procedural Failures,” or a “Warning Notice.”

Notices of Suspect Documents also advise employers of “the possible criminal and civil penalties for continuing to employ unauthorized aliens” and provide employers and suspect employees with “an opportunity to provide documentation demonstrating valid U.S. work authorization if they believe the finding is in error.”

## Administrative Proceedings

If the ICE worksite inspection uncovers substantive violations of the verification process, uncorrected paperwork failures, or “knowing hire” or “continuing to employ” violations, ICE may issue the employer a “Notice of Intent to Fine” (NIF) specifying the violations alleged and the amount of any proposed fine.

Employers can request a hearing within 30 days of service of the NIF before an Administrative Law Judge (ALJ) in EOIR’s Office of the Chief Administrative Hearing Officer (OCAHO), but in most instances ICE reaches an agreement with those employers on the fine and any necessary compliance measures prior to ICE OPLA filing a complaint.

By regulation, penalties for knowingly hiring an illegal alien can range from between \$275 (for a first offense prior to March 27, 2008) to \$28,619 for a third offense or subsequent involving a hire after November 2, 2015.

“Paperwork” fines for violations of the Form I-9 process run from between \$100 to \$2,861 per violation.

DOJ, on behalf of DHS, may also bring a civil action in federal district court pursuant to section 274A “requesting relief, including a permanent or temporary injunction, restraining order, or other order against the person or entity” as the Attorney General “deems necessary.”

## Criminal Proceedings

Under section 274A(f) of the INA, employers may also face criminal penalties for a “pattern or practice of violations” for knowingly hiring illegal aliens for employment.

Fines of up to \$3,000 for such violations may be imposed “for each unauthorized alien with respect to whom such a violation occurs,” and employers may also be “imprisoned for not more than six months for the entire pattern or practice.”

## Criminal Violations of the Immigration and Nationality Act

In addition to civil deportation and removal penalties, aliens and others may also face criminal penalties for violations of the INA.

### “Bringing in and Harboring Certain Aliens”

Section 274(a)(1)(A) of the INA makes it unlawful:

- To bring a known alien to the United States at any place other than a designated port of entry;

- To knowingly or recklessly transport or move an alien who has come to, entered, or remains in this country in violation of law within the United States;
- To knowingly or recklessly conceal, harbor, or shield from detection any alien present in violation of law; and
- To encourage or induce an alien to come to, enter, or reside in the United States, knowing or in reckless disregard of the fact that such coming to, entry, or residence is or will be in violation of law.

In addition, attempts to bring aliens into the United States illegally, move or transport illegal aliens in this country, or conceal, harbor, or shield them from detection are also criminal acts, as are conspiracies to commit any offense under section 274(a)(1)(A) of the INA, or any act that aids or abets in the commission of those offenses.

Penalties can include imprisonment and/or a fine.

## “Improper Entry by Alien”

Aliens face criminal punishment for three separate but related violations under section 275(a) of the INA:

- Entering or attempting to enter “at any time or place other than as designated by immigration officers;”
- “Elud[ing] examination or inspection by immigration officers;” or
- Entering or attempting to enter the United States “by a willfully false or misleading representation or the willful concealment of a material fact.”

Violations of those provisions are misdemeanors subject to imprisonment of up to 6 months and a fine for a first offense and felonies with possible punishment of up to 2 years’ incarceration and a fine for a second or subsequent offense.

Illegal entry under section 275(a)(1) of the INA is a “completed” offense at the time the alien crosses illegally, meaning that the alien must be prosecuted in the federal district where the alien entered; but in June 2025, the Office of Legal Counsel (OLC) at DOJ issued an opinion concluding that “eluding” inspection under section 275(a)(2) “is a continuing offense” for purposes of venue.

As noted above, aliens present in the United States who have not been admitted are deemed “applicants for admission” under section 235(a)(1) of the INA, and as OLC explained:

It would make no sense to impose a criminal sanction on an alien who “eludes” that necessary inspection at a port of entry while sparing another alien, whom immigration officials are just as responsible for inspecting, of that same sanction merely because he “eludes” his inspection somewhere else.

Accordingly, eluding inspection under section 275(a)(2) is an ongoing violation that continues until the alien is encountered by DHS, and violators may be prosecuted in any federal district in which that encounter occurs.

## “Reentry of Removed Aliens”

Under section 276(a) of the INA, any alien “who has been denied admission, excluded, deported, or removed or has departed the United States while an order of exclusion, deportation, or removal is outstanding” and who reenters, attempts to reenter, or “is at any time found in, the United States” without permission from DHS has committed a felony, subject at a minimum to a fine and imprisonment of up to 2 years.

Harsher penalties apply for aliens who were previously removed after convictions for certain crimes or on national security grounds, including up to 20 years for aliens convicted of “aggravated felonies.”

## Violation of the Alien Registration Provisions

With exceptions, section 262 of the INA requires aliens “now or hereafter in the United States” who are 14 years of age or older and have “not been registered and fingerprinted” under specified provisions of the law, and who remain in the United States for 30 or more days, to “apply for registration and to be fingerprinted before the expiration of such 30 days.”

Parents and guardians are required to register on behalf of their children.

Nonetheless, for decades prior to the second Trump Administration, the INS and its successor agencies in DHS only required legal aliens who had been vetted and complied with the visa-issuance and admissions processes to register—not aliens here unlawfully or who had overstayed their nonimmigrant visas.

That began to change, however, on January 20, 2025, when President Trump issued Executive Order (EO) 14159, entitled “Protecting the American People Against Invasion.”

Section 7 of that EO, “Identification of Unregistered Illegal Aliens,” directed the DHS Secretary, in coordination with the State Department and DOJ, to: “immediately announce and publicize information about the legal obligation of all previously unregistered aliens in the United States to comply with” the INA registration requirements; “ensure that all previously unregistered aliens in the United States comply with” those requirements; and “ensure that failure to comply with” those “legal obligations . . . is treated as a civil and criminal enforcement priority.”

In accordance with EO 14159, the DHS Secretary announced in February 2025 that DHS would begin enforcing the INA registration requirements, “to track illegal aliens and compel them to leave the country voluntarily.”

USCIS thereafter set up an “Alien Registration Requirement” web page with a link to the new Form G-325R, “Biographic Information (Registration),” which aliens can complete to register online.

On March 12, 2025, DHS published an interim final rule (IFR) with these new requirements (to take effect a month later) and inviting public comments on them.

Immigrants’ advocates challenged the new rule in the U.S. District Court for the District of Columbia in late March 2025, but the D.D.C. denied their motion to prevent the requirements from taking effect, concluding the plaintiffs lacked standing to bring the case.

On August 12, 2025, the U.S. Court of Appeals for the District of Columbia Circuit denied the plaintiffs' request for a stay or injunction of that decision pending appeal. The registration requirement is now in effect.

As USCIS explains, aliens who have registered under that program must "carry . . . and have in their personal possession evidence of registration," a requirement that stems from section 264(e) of the INA.

Registered aliens must also provide the agency with a change of address within 10 days of moving within the United States, as required by section 265(a) of the INA.

Section 266 of the INA provides criminal penalties for aliens who fail to comply with DHS's new "registration" and "change of address" mandates.

A willful failure to register may subject an alien to a fine of up to \$1,000 and/or imprisonment of up to 6 months (a misdemeanor), while an alien's failure to provide a change of address is also a misdemeanor carrying a possible fine of up to \$200 and/or imprisonment for up to 30 days.

An alien's failure to carry proof of registration is again a misdemeanor, with a possible sentence of 30 days' incarceration and/or a fine of up to \$100 upon conviction.

## "Failure to Depart"

Pursuant to section 243(a) of the INA, it is a felony for an alien ordered removed under section 237(a) after admission to willfully fail or refuse to depart from this country within 90 days.

In addition, it is a crime for an alien under a final removal order based on charges under section 237(a) to willfully fail or refuse to apply for "travel or other documents necessary to the alien's departure," to "connive or conspire" to "prevent or hamper or with the purpose of preventing or hampering the alien's departure," or to willfully fail or refuse to appear for removal.

Violation of any of these provisions exposes the offender to imprisonment upon conviction for up to four years and a fine, though there are exceptions, and the court may suspend these penalties in certain instances.

# Creatively Employ a Whole-of-Government Effort

The scale of the illegal alien presence in the United States demands creative, out-of-the-box ideas. Options that may run into legal and administrative issues cannot be dismissed without evaluation. The fact remains that the illegal population dwarfs the size of government agencies intended to arrest and deport them. Many policy thinkers have suggested using the military for a mass deportation operation. This consideration is not without historical precedent, as the Eisenhower Administration considered the same before ultimately deciding to use military-tactics and former personnel at the then-Immigration and Naturalization Services.

A deportation campaign operating at the scale the Trump Administration has pursued requires coordination across federal departments, the military, the Justice Department, and in the private sector. No single agency possesses the manpower, facilities, transportation assets, or legal resources to remove millions of people within a compressed political timeline. The operational challenge is not primarily one of authority but of capacity, and meeting it demands a deliberate fusion of institutional capabilities that do not ordinarily operate in concert.

## DHS: The Legal and Operational Backbone

The Department of Homeland Security provides the legal and operational backbone. ICE ERO and CBP's processing infrastructure establish the chain of custody, deportation order pipeline, and biometric collection systems. But current staffing cannot sustain removals at the volume the administration demands.

At-large arrests increased by 600 percent in the first nine months of 2025, with officers drawn from agencies as varied as the FBI and the IRS surging into the field.

Supplementing federal ranks with contracted personnel may offer temporary surge capacity that would avoid permanent headcount growth. Notably, private firms like Deployed Resources, which initially built camps for music festivals, has secured contracts to erect and operate tent detention facilities at military bases.

## Department of Defense Contributions

The Department of Defense could contribute physical infrastructure and personnel. Executive Order 14,167 assigned U.S. Northern Command (USNORTHCOM) the mission of sealing the borders and deterring unlawful mass migration, narcotics trafficking, and human smuggling.

The administration has deployed over 10,000 members of the armed services to border operations, tripling the force present on Inauguration Day.

Military installations offer controlled perimeters, existing airfields, and life-support capacity that commercial facilities cannot match. DHS has asked DOD to help detain immigrants on bases nationwide, with Fort Bliss designated as a central hub capable of holding up to 10,000 people and

serving as a model for potentially ten additional facilities.

## Congressional Funding

Litigation units must scale in parallel. Congress passed an unprecedented \$170 billion spending package for immigration enforcement through the One Big Beautiful Bill Act, including \$45 billion explicitly for expanding civil immigration detention. Without legal resources that match operational tempo, the adjudication process would become a chokepoint for removals.

## Aviation and Ground Transportation

Commercial aviation and ground transportation could round out the contractor contribution.

In 2025, there were an estimated 2,202 immigration enforcement removal flights. For February 2026, the ICE Flight Monitor tracked at least 1,630 flights.

DHS also signed a contract worth nearly \$140 million to purchase six Boeing 737s, enabling ICE to operate its own fleet.

It's worth further emphasizing that current deportation flight resources are insufficient to support a mass deportation campaign. The ICE Flight Monitor tracked approximately 1,393 enforcement flights in a single month at peak, averaging 45 flights per day. Even assuming full loads on narrow-body aircraft, this effort would fall well short of the daily deportation volume required to achieve one million removals in 2026. The six Boeing 737s DHS has contracted to purchase will supplement but not resolve this shortfall. A mass deportation campaign requires the allocation of flight resources operating at a fundamentally different scale.

## Widebody Charter Aircraft Fleet

DHS could contract for a fleet of widebody charter aircraft sufficient to transport deportees to their countries of origin at the daily volume the campaign requires. One million removals over the approximately 250 operational days remaining in 2026 would require an average daily volume of 4,000 deportations, accounting for weekends, maintenance cycles, and logistical variability. A fleet of widebody aircraft, each carrying between 300 and 400 passengers, operating multiple rotations per day to high-volume destination countries, can achieve this goal.

The charter fleet could be procured through a contracted transportation provider with demonstrated experience in nonstandard aviation operations, government air charter, and high-security passenger transport. The contracting entity would be required to provide flight crews, aircraft maintenance, and qualified in-flight security personnel for each deportation flight. In-flight security is a nonnegotiable requirement; the safe transport of deported aliens on international flights would require trained security teams with protocols for managing noncompliant individuals at altitude.

Charter flights could depart primarily from military installations with adequate runway infrastructure, as described above. This would collocate detention, processing, and departure functions on the same federal facility, minimizing ground transportation requirements and eliminating the security risks associated with moving deportees through commercial airports and across public roadways. For destination countries in Central America, the Caribbean, and northern

South America, departure points along the Gulf Coast and southern border would be optimal. For deportees returning to countries in Africa, South Asia, or East Asia, departure points at installations with long-range aerial port capacity on the East and West Coasts could be designated.

As at present, the charter air component could be supplemented by commercial air carriers for deportees whose countries of origin are served by direct commercial routes and who present lower security risks. Commercial carrier agreements are less expensive per seat than charter operations but are subject to scheduling constraints and carrier willingness. For high-volume corridors (particularly Mexico, Guatemala, Honduras, and El Salvador), dedicated charter operations would be more reliable and scalable than commercial alternatives.

And, as at present, ground transportation between detention facilities and departure points could be managed by contracted transportation teams using a fleet of secure buses and vehicles procured or leased for the duration of the campaign. The ground transportation network connects the tiered detention system (local jails, IGA facilities, military installation camps) to the charter departure points, completing the end-to-end logistics chain from apprehension to repatriation.

## The Integrated Whole-of-Government Model

The result would be a model where DHS provides authority, DOD provides infrastructure and additional resources, the ICE OPLA and DOJ would provide legal finality, and contractors could provide the manpower and transport that surge capacity demands. Each institution would contribute what it does best, and the contractor layer would dissolve when the mission concludes.

Achieving one million interior removals in 2026 requires operational resources that exceed the current capacity of any single federal agency. ICE ERO, even with the additional resources provided by the OBBBA, would be hard pressed to generate the case screening, apprehension, detention management, and transportation volume necessary to meet this target using existing and planned federal personnel alone. The operational model, however, could incorporate a contracted surge workforce that operates under federal authority, supplements existing agency capacity, and ends when the mission is completed, leaving no permanent headcount or long-term benefit obligations on the federal payroll.

This contracted pipeline could be organized into six functional phases, each staffed by a dedicated team operating under the direction and legal authority of DHS:

### Phase 1 – Case Screening

A contracted legal screening team of lawyers and paralegals could supplement existing ICE OPLA, DOJ, and CBP legal resources to triage all deportation cases. The screening function would serve as the intake for the entire pipeline. Each case would be reviewed to determine whether a given alien has a pending deportation order, receives or is dependent on public benefits, is ineligible for asylum, or presents a security threat.

Cases involving removable aliens should be prioritized in the following order:

- Security threats and violent criminals with existing deportation orders;
- Security threats without pending orders;

- Individuals who receive or are dependent upon public benefits; and
- All other aliens residing in violation of immigration law.

Cases involving aliens with existing final orders should bypass screening and flow directly to the locate and apprehension phases.

## Phase 2 – Case Resolution

A contracted litigation team should supplement government counsel to handle court filings and manage legal challenges at the volume required. Current litigation resources are insufficient to process cases at the scale this campaign demands. The contracted litigation team would operate in close coordination with ICE OPLA and DOJ and utilize automated court filing systems and mass hearing dockets to accelerate case resolution.

ICE OPLA should ensure that aliens who fail to appear at scheduled hearings receive in absentia deportation orders, and those aliens should be immediately referred to the apprehension pipeline. The contracted litigation team should be composed of attorneys and paralegals capable of managing high caseloads in a standardized process that allows for rapid analysis and processing without sacrificing legal sufficiency.

## Phase 3 – Locate Deportees

A contracted skip tracing team could use government records, arrest records, financial data, and open-source intelligence to locate aliens with deportation orders. Identifying information for those who cannot be located should be entered into NCIC as discussed elsewhere in this playbook, increasing the likelihood that any subsequent contact with state or local law enforcement would trigger a detention and transfer.

Aliens currently housed in government-sponsored accommodations should be among the first targeted, as their residence in such facilities is itself evidence of receipt of means-tested public benefits.

## Phase 4 – Apprehend Deportees

The most critical element of the contracted surge would be the apprehension workforce. Contracted personnel cannot independently exercise law enforcement authority; they must be deputized under federal authority to make lawful arrests. Presidential Proclamation 10,935, “Establishing Project Homecoming,” directs the DHS Secretary to “supplement existing enforcement and removal operations by deputizing and contracting with officers and personnel within other Federal agencies.” The same legal framework could potentially extend to qualified contracted personnel who are deputized as federal law enforcement officers for the duration of the mass deportation campaign.

The deputization pipeline could draw from retired ICE ERO officers; retired CBP agents; retired special agents from HSI, FBI, DEA, ATF, and the U.S. Marshals Service; retired state and local law enforcement officers; and qualified military veterans with relevant operational backgrounds. While additional screening would be necessary, such individuals should possess the training, judgment, and operational temperament required for interior enforcement operations.

A properly structured contracted training program could convert these experienced professionals into deputized enforcement officers through an accelerated curriculum focused on immigration law authorities, arrest and detention procedures under sections 236(a) and 287(a) of the INA, Fourth Amendment standards for probable cause and Terry stops, use of force policy, and interagency coordination protocols.

Once trained, equipped, and deployed, all deputized personnel would fall under the operational control of the DHS chain of command through the Homeland Security Task Force structure described elsewhere in this playbook. The contracting entity would handle administrative functions: payroll, benefits, travel, lodging, and equipment procurement. All operational tasking, targeting, and field direction would remain with DHS leadership. Such a division of responsibilities would mirror the model used successfully in other federal surge operations, in which contracted personnel have supplemented organic government capacity under career governmental authority and direction.

## Phase 5 – Detain and Process Deportees

Contracted personnel could manage the daily operations of detention and out-processing facilities, including those erected on military installations as described below. Contracted detention staff could process deportees for removal, collect biometric data for ICE/CBP databases, coordinate with foreign governments to obtain repatriation clearances, and file final disposition reports. The contracted detention workforce would supplement, but not replace, federal detention management. ICE ERO would retain authority over custody determinations and release decisions.

## Phase 6 – Transportation

As at present, contracted transportation teams could manage the movement of deportees from detention facilities to ports of departure, including both ground transportation to embarkation points and charter air operations for international repatriation flights.

## Three Governing Principles

Three principles should govern any contracted surge model:

**First, temporality:** The contracted workforce exists for the duration of the mass deportation campaign and dissolves when the mission concludes. The government would accept or accrue no long-term salary, pension, or benefit obligations. This would be a surge capacity model, not a permanent expansion of the federal workforce.

**Second, federal authority:** No contracted personnel could or should exercise independent enforcement authority. All arrests, detentions, and removals must occur under the legal authority of DHS through deputization, delegation, or direct supervision. The contracting entity would provide manpower, equipment, and administrative support. The government would provide legal authority, operational direction, and command.

**Third, accountability:** The contracting entity must be subject to rigorous oversight, including regular reporting through the DHS hierarchy, and comply with all applicable use-of-force policies and data transparency requirements consistent with the Mass Deportation Coalition’s principles on meaningful metrics. The contracted workforce should not be a means of circumventing oversight; it

should be a means of achieving operational scale while maintaining the legal and procedural standards that give the deportation campaign its legitimacy.

# Poll Results

National Survey of 1,000 Likely Voters conducted by McLaughlin & Associates for the Immigration Accountability Project, March 2026.

■ McLaughlin & Associates



## National Survey of Likely Voters

Conducted By:  
McLaughlin & Associates  
March 2026

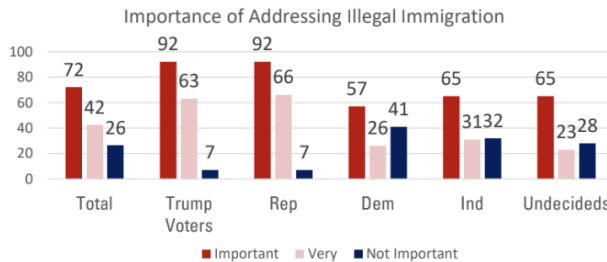


## Economic Issues and Immigration Importance

Three in five (62%) are economic issue voters with inflation/cost of living (41%) as the dominant single issue. Immigration/border increases in importance among those who approve of Trump (22%), Trump voters (17%), and Republicans (17%). Although affordability dominates, addressing illegal immigration is an important priority to nearly three-quarters (72%), including 42% who say it is “very” important.

## Economic Issues, Especially Inflation, Dominate But Addressing Illegal Immigration Remains Important

- Three in five (62%) are economic issue voters with inflation/cost of living (41%) as the dominate singular issue. It is the number one issue across the board.
  - The other individual issues are fragmented, including economy/jobs (12%), immigration/border (10%), national security/war-peace (10%), and healthcare (10%).
  - Immigration/border increases in importance among voters who approve of Trump (22%), Trump voters (17%) and Republicans (17%).
- Although affordability dominates, addressing illegal immigration is an important priority to nearly three-quarters (72%), including 42% who say it is “very” important.
  - The level of importance and intensity increases among Trump approvers, Trump voters, and Republicans.
  - It’s important to two-thirds of Independents and undecideds.



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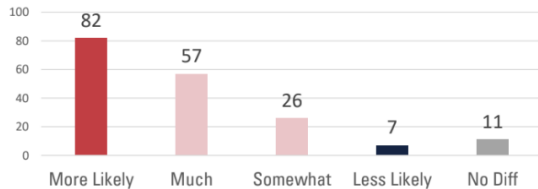
| Most Important Issue:    | Total | Trump Voters | App. DJT | Policy Only | Disap DJT | Rep | Dem | Ind |
|--------------------------|-------|--------------|----------|-------------|-----------|-----|-----|-----|
| Economy                  | 62    | 59           | 56       | 63          | 65        | 59  | 61  | 66  |
| Inflation/Cost of Living | 41    | 36           | 33       | 37          | 46        | 36  | 42  | 45  |
| Economy/Jobs             | 12    | 11           | 10       | 12          | 13        | 11  | 13  | 12  |
| Government Spending      | 6     | 8            | 8        | 10          | 4         | 8   | 4   | 6   |
| Taxes                    | 3     | 5            | 5        | 5           | 1         | 5   | 1   | 3   |
| Security                 | 13    | 14           | 13       | 13          | 12        | 14  | 12  | 12  |
| Nat. Sec./War & Peace    | 10    | 10           | 8        | 10          | 11        | 10  | 9   | 10  |
| Crime                    | 3     | 4            | 5        | 4           | 2         | 4   | 3   | 3   |
| Social                   | 11    | 7            | 6        | 11          | 13        | 8   | 14  | 10  |
| Healthcare               | 10    | 6            | 6        | 9           | 12        | 7   | 13  | 9   |
| Public Education         | 1     | 0            | 1        | 2           | 1         | 1   | 1   | 1   |
| Immigration/Border       | 10    | 17           | 22       | 9           | 3         | 17  | 4   | 8   |
| Environment/Climate      | 4     | 1            | 1        | 2           | 6         | 1   | 7   | 3   |
| Energy Production/Indp.  | 1     | 2            | 2        | 2           | 0         | 1   | 1   | 1   |
| Abortion                 | 1     | 1            | 1        | 0           | 1         | 1   | 1   | 1   |

## Trump Voters: Motivation and GOTV Opportunity

In the 2024 presidential election, 4 in 5 (82%) Trump voters were more likely to vote for Donald Trump because of his promise to conduct the largest mass deportation operation in American history. Trump voters universally support (87%) the President exceeding the previous largest deportation effort led by President Eisenhower. If President Trump exceeds one million deportations of illegal migrants in 2026, three-quarters (74%) of Trump voters would be more likely to vote for the Republican candidate for Congress.

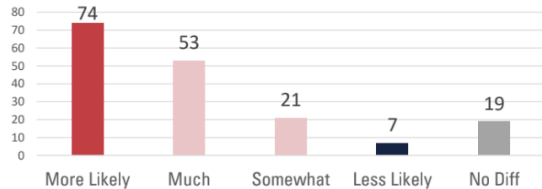
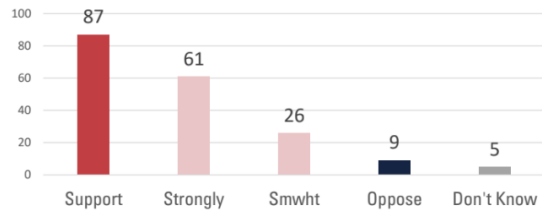
## Trump Voters Were & Continue to Be Highly Motivated By Deporting Illegal Immigrants; Big GOTV Opportunity

- In the 2024 presidential election, 4 in 5 (82%) Trump voters were more likely to vote for Donald Trump because of his promise to conduct the largest mass deportation operation in American history. The majority (57%) was highly motivated (much more likely) to vote for him.
- Trump voters universally support (87%) the President exceeding the previous largest deportation effort led by President Eisenhower, which resulted in around one-third of illegal migrants leaving the country. The support has intensity with the majority (61%) “strongly” supporting it.
- If President Trump exceeds one million deportations of illegal migrants in 2026, three-quarters (74%) of Trump voters would be more likely to vote for the Republican candidate for Congress. The majority (53%) would be “much” more likely to vote for the Republican candidate. Clearly, this accomplishment would energize Trump’s base to come out and vote Republican.



**TRUMP VOTERS (n=920):** Did President Trump's promise to "conduct the largest mass deportation operation in American history" make you more likely or less likely to vote for him in 2024 election for president?

**TRUMP VOTERS (n=920):** President Eisenhower launched the largest deportation effort in U.S. history, which resulted in around one-third of illegal migrants leaving the country. Do you support or oppose President Trump's goal of exceeding that effort?



**TRUMP VOTERS (n=920):** If President Trump exceeds one million deportations of illegal migrants in 2026, are you more likely or less likely to vote for the Republican candidate in the November general election for congress?

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## Majority Consensus on Immigration Principles

Four in five (82% to 13%) agree that immigration policy should serve the interests of American citizens. Over three-quarters (78% to 18%) believe immigration to the United States is a privilege, not a right, and America has the right to decide who may enter our country. Three-quarters (76% to 20%) agree that the first duty of the American government is to protect American citizens, not illegal aliens. The majority (52% to 40%) sees a problem: they believe the federal government has put the interests of illegal immigrants above the interests of poor Americans, including veterans and the elderly.

## Majority Consensus on Immigration Principles

- Four in five (82% to 13%) agree that immigration policy should serve the interests of American citizens. Roughly half (47%) “strongly” agrees.
  - The consensus is universal among Trump voters and Republicans, reaching 94%, but there is broad agreement among Democrats (71% to 21%) and Independents (81% to 13%). Agreement is wide and only 8-points higher among White voters (85% to 11%) than Hispanics (77% to 17%).
- Over-three-quarters (78% to 18%) believe immigration to the United States is a privilege, not a right, and America has the right to decide who may enter our country. Half (50%) “strongly” agrees.
  - There is near unanimous agreement among Trump voters (94% to 5%) and Republicans (95% to 4%). The vast majority of Independents (79% to 15%) and a clear majority of Democrats (60% to 36%) agree. Although higher among White voters (81% to 16%), 7 in 10 (70% to 24%) Hispanics agree.
- Three-quarters (76% to 20%) agree that the first duty of the American government is to protect American citizens, not illegal aliens (President Trump’s SOTU statement). The majority (52%) “strongly” agrees.
  - This principle generates the highest levels among Trump voters (96% to 3%) and Republicans (97% to 3%). Agreement is bipartisan with three-quarters of Independents (74% to 20%) and the majority of Democrats (57% to 39%). The opinion of Hispanics (72% to 25%) is similar to White voters (78% to 19%).
- The majority (52% to 40%) sees a problem. They believe the federal government has put the interests of illegal immigrants above the interests of poor Americans, including veterans and the elderly. One-quarter (27%) “strongly” agrees.
  - There is a partisan divide among Trump voters (75% to 19%) and Republicans (73% to 21%) compared to polarized Independents (48% to 42%) and Democrats who disagree (58% to 34%). Agreement is similar among White voters (53% to 40%) and Hispanics (51% to 42%).

| Agree or Disagree Summary?                                                                                                                  | Total |       |     | Trump Voters |       |     | Republican |       |     | Democrat |       |     | Independent |       |     | White |       |     | Hispanic |       |     |
|---------------------------------------------------------------------------------------------------------------------------------------------|-------|-------|-----|--------------|-------|-----|------------|-------|-----|----------|-------|-----|-------------|-------|-----|-------|-------|-----|----------|-------|-----|
|                                                                                                                                             | Agree | Disag | Net | Agree        | Disag | Net | Agree      | Disag | Net | Agree    | Disag | Net | Agree       | Disag | Net | Agree | Disag | Net | Agree    | Disag | Net |
| Immigration policy should serve the interests of American citizens.                                                                         | 82    | 13    | +70 | 94           | 4     | +90 | 94         | 4     | +90 | 71       | 21    | +50 | 81          | 13    | +68 | 85    | 11    | +74 | 77       | 17    | +60 |
| Immigration to the United States is a privilege, not a right. America has the right to decide who may enter our country and who may not.    | 78    | 18    | +60 | 94           | 5     | +89 | 95         | 4     | +91 | 60       | 36    | +24 | 79          | 15    | +64 | 81    | 16    | +65 | 70       | 24    | +46 |
| The first duty of the American government is to protect American citizens, not illegal aliens.                                              | 76    | 20    | +56 | 96           | 3     | +93 | 97         | 3     | +94 | 57       | 39    | +18 | 74          | 20    | +54 | 78    | 19    | +59 | 72       | 25    | +47 |
| The federal government has put the interests of illegal migrants above the interests of poor Americans, including veterans and the elderly. | 52    | 40    | +12 | 75           | 19    | +56 | 73         | 21    | +52 | 34       | 58    | -24 | 48          | 42    | +6  | 53    | 40    | +13 | 51       | 42    | +9  |

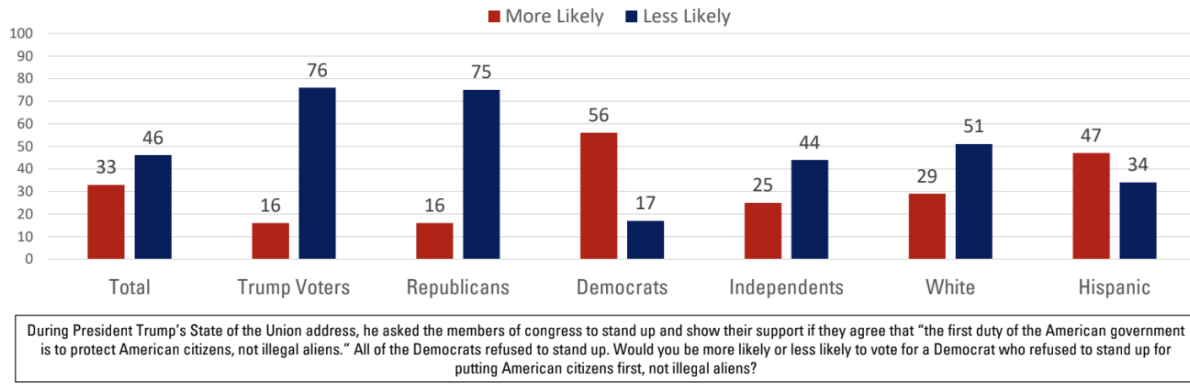
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## Partisan Divides When Politicized

Three-quarters (76% to 20%) agree with President Trump’s SOTU statement that the first duty of the American government is to protect American citizens, not illegal aliens. The majority (52%) “strongly” agrees. Under half (46%) are less likely to vote for a Democrat who refused to stand up when President asked members to stand in support of the statement. When the statement is politicized, it can be divisive — this can motivate and energize Trump voters (76%) and Republicans (75%).

## Partisan Divides Occur When Politicized

- Three-quarters (76% to 20%) agree with President Trump's SOTU statement that the first duty of the American government is to protect American citizens, not illegal aliens. The majority (52%) "strongly" agrees.
- Under half (46%) are less likely to vote for a Democrat who refused to stand up when President asked members to stand up in support of the statement. When the statement is politicized, it can be divisive.
  - This can motivate and energize Trump voters (76%) and Republicans (75%).
  - A plurality of Independents are less likely (44% to 25%).
  - The majority of Democrats (56% to 17%) are more likely to support the Democrat.
  - A slight majority of White voters (51% to 29%) are less likely while a plurality of Hispanics are more likely to vote for the Democrat (47% to 34%).



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## Majority Consensus on Illegal Immigration Law & Order

Four in five (80% to 15%) believe America has an obligation to enforce the immigration laws Congress enacts. Over three-quarters (77% to 18%) agree businesses that repeatedly violate immigration hiring laws should face escalating penalties. Nearly three-quarters (73% to 19%) believe all federal agencies should cooperate in the enforcement of immigration laws. Over two-thirds agree on three law-and-order statements: state governments should share information on illegal migrants with the federal government (68% to 24%); protesters who attack or harass law enforcement officers while they are enforcing the laws passed by Congress should be arrested and prosecuted (67% to 26%); and failure to enforce immigration laws places additional strain on local schools, hospitals, welfare services, and first responders (67% to 20%).

## Majority Consensus on Illegal Immigration Law & Order

- Four in five (80% to 15%) believe America has an obligation to enforce the immigration laws Congress enacts. Close to half (46%) “strongly” agrees.
  - Trump (93% to 5%) and Republicans (93% to 5%) universally agree. Broad agreement is bipartisan with two-thirds of Democrats (64% to 27%) and 4 in 5 Independents (81% to 11%). Although stronger among White voters (83% to 12%), over two-thirds of Hispanics agree (68% to 25%).
- Over three-quarters (77% to 18%) agree businesses that repeatedly violate immigration hiring laws should face escalating penalties. Nearly half (47%) “strongly” agrees.
  - There is bipartisan agreement. It’s highest among Trump voters (92% to 6%) and Republicans (93% to 5%) followed by Independents (76% to 16%) and Democrats (62% to 31%). Four in five White voters (80% to 15%) and two-thirds of Hispanics (67% to 27%) concur.
- Nearly three-quarters (73% to 19%) believe all federal agencies should cooperate in the enforcement of immigration laws, including 46% who “strongly” agree.
  - Trump voters (94% to 3%) and Republicans (94% to 3%) are in near unanimous agreement. Roughly three-quarters (73% to 17%) of Independents agree. Democrats are more divided, but a majority agrees (52% to 37%). Approximately two-thirds of Hispanics (64% to 29%) and over three-quarters of White voters (77% to 16%) agree.
- Over two-thirds agree on three law and order statements: state government should share information on illegal migrants with the federal government (68% to 24%); protestors who attack or harass law enforcement officers while they are enforcing the laws passed by Congress should be arrested and prosecuted (67% to 26%); and failure to enforce immigration laws places additional strain on local schools, hospitals, welfare services, and first responders (67% to 27%).
  - Trump voters and Republicans universally agree. Close to two-thirds of Independents are aligned while the statements are polarizing among Democrats. Although the agreement is higher among White voters, a clear majority of Hispanics are in consensus.

| Agree or Disagree Summary?                                                                                                                                                     | Total |       |     | Trump Voters |       |     | Republican |       |     | Democrat |       |     | Independent |       |     | White |       |     | Hispanic |       |     |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------|-------|-----|--------------|-------|-----|------------|-------|-----|----------|-------|-----|-------------|-------|-----|-------|-------|-----|----------|-------|-----|
|                                                                                                                                                                                | Agree | Disag | Net | Agree        | Disag | Net | Agree      | Disag | Net | Agree    | Disag | Net | Agree       | Disag | Net | Agree | Disag | Net | Agree    | Disag | Net |
| America has an obligation to enforce the immigration laws Congress enacts.                                                                                                     | 80    | 15    | +65 | 93           | 5     | +88 | 93         | 5     | +88 | 64       | 27    | +37 | 81          | 11    | +70 | 83    | 12    | +71 | 68       | 25    | +43 |
| Businesses that repeatedly violate immigration hiring laws should face escalating penalties.                                                                                   | 77    | 18    | +60 | 92           | 6     | +86 | 93         | 5     | +88 | 62       | 31    | +31 | 76          | 16    | +60 | 80    | 15    | +65 | 67       | 27    | +40 |
| All federal agencies, including the Department of Homeland Security, the IRS, and the Social Security Administration, should cooperate in the enforcement of immigration laws. | 73    | 19    | +54 | 94           | 3     | +91 | 94         | 3     | +91 | 52       | 37    | +15 | 73          | 17    | +56 | 77    | 16    | +61 | 64       | 29    | +35 |
| State governments should share information on illegal migrants with the federal government.                                                                                    | 68    | 24    | +44 | 92           | 5     | +87 | 92         | 5     | +87 | 47       | 43    | +4  | 65          | 24    | +41 | 71    | 21    | +50 | 56       | 37    | +19 |
| Protesters who attack or harass law enforcement officers while they are enforcing the laws passed by Congress should be arrested and prosecuted.                               | 67    | 26    | +41 | 91           | 6     | +85 | 92         | 6     | +86 | 45       | 45    | 0   | 62          | 27    | +35 | 69    | 23    | +46 | 56       | 36    | +20 |
| Failure to enforce immigration laws places additional strain on local schools, hospitals, welfare services, and first responders.                                              | 67    | 27    | +40 | 92           | 7     | +85 | 91         | 7     | +84 | 45       | 47    | -2  | 63          | 27    | +36 | 70    | 25    | +45 | 58       | 35    | +23 |

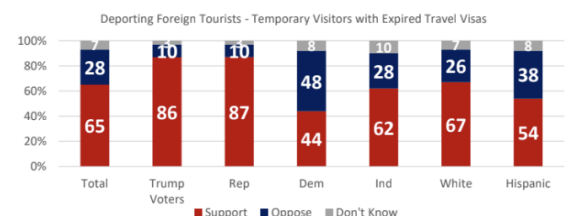
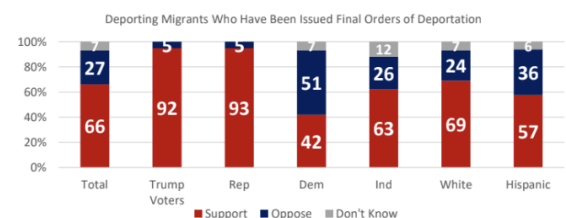
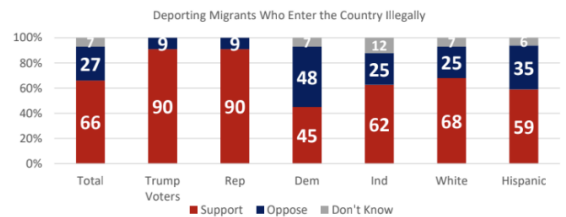
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## Two-Thirds Support Fundamental Deportation Policies

Two-thirds (66% to 27%) support deporting migrants who enter the country illegally. Two in five (41%) “strongly” support it. Two-thirds (66% to 27%) support immediately deporting the 1.6 million illegal migrants who have been issued final deportation orders. Two-thirds (65% to 28%) support deporting foreign tourists and other temporary visitors who remain in the country past the expiration date of their travel visas.

### Two-Thirds Support Fundamental Deportation Policies

- Two-thirds (66% to 27%) support deporting migrants who enter the country illegally. Two in five (41%) “strongly” support it.
  - Nine in ten (90% to 9%) Trump voters and Republicans support it, 3 in 5 (62% to 25%) Independents favor it, and Democrats are divided (45% to 48%).
  - Although higher among White voters (68% to 25%), 3 in 5 Hispanics (59% to 35%) support the deportation policy.
- Two-thirds (66% to 27%) support immediately deporting the 1.6 million illegal migrants who have been issued final deportation orders. Two in five (40%) “strongly” support it.
  - Nine in ten Trump voters (92% to 5%) and Republicans (93% to 5%) support it, nearly two-thirds of Independents (63% to 26%) favor it, and a slight majority of Democrats oppose it (51% to 42%).
  - Over two-thirds of White voters (69% to 24%) and the majority of Hispanics (57% to 36%) support it.
- Two-thirds (65% to 28%) support deporting foreign tourists and other temporary visitors who remain in the country past the expiration date of their travel visas.
  - The vast majority of Trump voters (86% to 10%) and Republicans (87% to 10%) support it, 3 in 5 (62% to 28%) Independents favor it, and Democrats are polarized (44% to 48%).
  - Although higher among White voters (67% to 26%), the majority of Hispanics (54% to 38%) support the policy.



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# Broad Majority Support for Workplace Illegal Immigration Policies

Over two-thirds, ranging from 69% up to 82% support illegal immigration policies in the workplace. Workplace policies are extremely popular among Trump voters and Republicans. There is bipartisan support among two-thirds of Independents and the majority of Democrats. Support is stronger among White voters, but the majority of Hispanics favor the policies.

## Broad Majority Support for Workplace Illegal Immigration Policies

- Over two-thirds, ranging from 69% up to 82%, support illegal immigration policies in the workplace.
  - 82% support the federal government notifying employers when their employees' Social Security numbers don't match government records. The majority (51%) "strongly" supports it.
  - 78% support requiring all employers to use the free online tool E-Verify to verify that people being hired are authorized to work in the United States. Nearly half (47%) "strongly" favors it.
  - 72% support the federal government conducting regular audits and enforcement actions at businesses that knowingly hire illegal migrants, including 41% who "strongly" support it.
  - 71% support penalizing employers that violate laws by hiring migrants who are in the country illegally, including 43% who "strongly" approve it.
  - 70% support strengthening workplace immigration enforcement to help raise wages for American workers. Two in five (41%) "strongly" support it.
  - 69% support allowing the IRS to fine employers that hire illegal migrants, including 41% who "strongly" back it.
- The workplace policies are extremely popular among Trump voters and Republicans. There is bipartisan support among two-thirds of Independents and the majority of Democrats. Support is stronger among White voters, but the majority of Hispanics favor the policies.

| Support or Oppose Summary?                                                                                                                                                                                                                             | Total |     |     | Trump Voters |     |     | Republican |     |     | Democrat |     |     | Independent |     |     | White |     |     | Hispanic |     |     |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------|-----|-----|--------------|-----|-----|------------|-----|-----|----------|-----|-----|-------------|-----|-----|-------|-----|-----|----------|-----|-----|
|                                                                                                                                                                                                                                                        | Supp  | Opp | Net | Supp         | Opp | Net | Supp       | Opp | Net | Supp     | Opp | Net | Supp        | Opp | Net | Supp  | Opp | Net | Supp     | Opp | Net |
| Do you support or oppose the federal government notifying employers when their employees' Social Security numbers don't match government records, so employers can take action to ensure they are not employing illegal migrants?                      | 82    | 12  | +71 | 94           | 5   | +89 | 95         | 4   | +91 | 69       | 21  | +48 | 83          | 10  | +73 | 85    | 9   | +76 | 74       | 20  | +54 |
| Do you support or oppose requiring all employers to use the free online tool E-Verify to verify that people being hired are authorized to work in the United States?                                                                                   | 78    | 14  | +64 | 91           | 4   | +87 | 91         | 5   | +86 | 65       | 25  | +40 | 77          | 14  | +63 | 80    | 13  | +67 | 72       | 19  | +53 |
| To ensure jobs are reserved for legal residents and prevent the exploitation of migrant workers, do you support or oppose the federal government conducting regular audits and enforcement actions at businesses that knowingly hire illegal migrants? | 72    | 20  | +52 | 91           | 5   | +86 | 92         | 5   | +87 | 52       | 37  | +15 | 70          | 19  | +51 | 74    | 19  | +55 | 62       | 28  | +34 |
| It is unlawful for U.S. employers to hire migrants who are in the country illegally. Do you support or oppose penalizing employers that violate this law?                                                                                              | 71    | 23  | +48 | 89           | 8   | +81 | 90         | 6   | +84 | 53       | 40  | +13 | 69          | 23  | +46 | 75    | 20  | +55 | 60       | 33  | +27 |
| Do you support or oppose strengthening workplace immigration enforcement to help raise wages for American workers?                                                                                                                                     | 70    | 19  | +51 | 89           | 7   | +82 | 89         | 6   | +83 | 54       | 34  | +20 | 67          | 18  | +49 | 72    | 18  | +54 | 62       | 27  | +35 |
| Do you support or oppose allowing the IRS to fine employers that hire illegal migrants?                                                                                                                                                                | 69    | 23  | +46 | 87           | 9   | +78 | 89         | 8   | +81 | 53       | 39  | +14 | 66          | 23  | +43 | 73    | 21  | +52 | 59       | 32  | +27 |

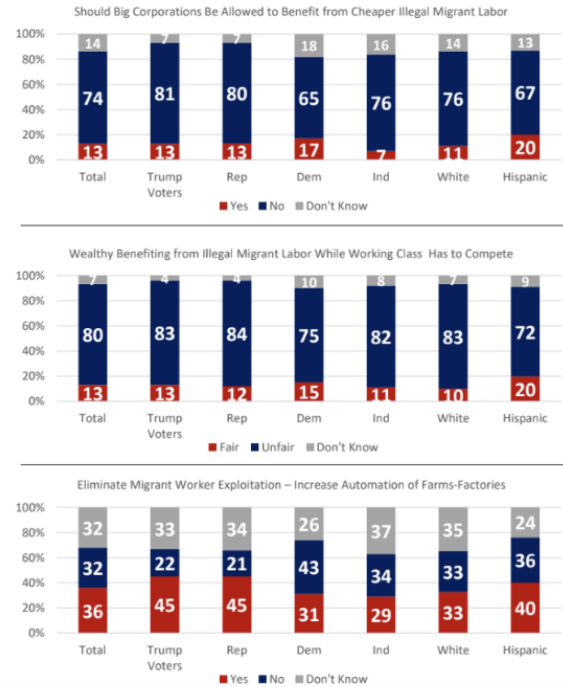
10 National Survey | 2,000 Likely Voters | McLaughlin & Associates | Immigration Accountability Project | March 2026

## Voters Oppose Exploitation of Illegal Migrant Labor

Three-quarters of voters believe big corporations should not be allowed to benefit from cheaper illegal migrant labor, when that labor is subsidized by American taxpayers. Four in five voters consider it unfair for the wealthy to benefit from illegal migrant labor while the working class has to compete against illegal migrant labor. Eliminating migrant worker exploitation by increasing automation and mechanization of farms and factories is divisive.

## Voters Oppose Exploitation of Illegal Migrant Labor

- Three-quarters (74% to 13%) believe big corporations should NOT be allowed to benefit from cheaper illegal migrant labor, when that labor is subsidized by American taxpayers, who pay for their education, health care, and other benefits.
  - The sentiment is strong across the board, including two-thirds agreement among Democrats (65% to 17%) and Hispanics (67% to 20%).
- Four in five (80% to 13%) consider it unfair for the wealthy to benefit from illegal migrant labor while the working class has to compete against illegal migrant labor.
  - The perception of unfairness is widespread across all demographics.
- Eliminating migrant worker exploitation by increasing automation and mechanization of farms and factories is divisive (36% yes, 32% no and 32% don't know).
  - The plurality of Trump voters (45% to 22%) and Republicans (45% to 21%) favor it, but it's under 50%.
  - The plurality of Democrats (43% to 31%) and Independents (34% to 29%) oppose it.
  - White voters are evenly divided at 33% while Hispanics lean in favor of it (40% to 36%).



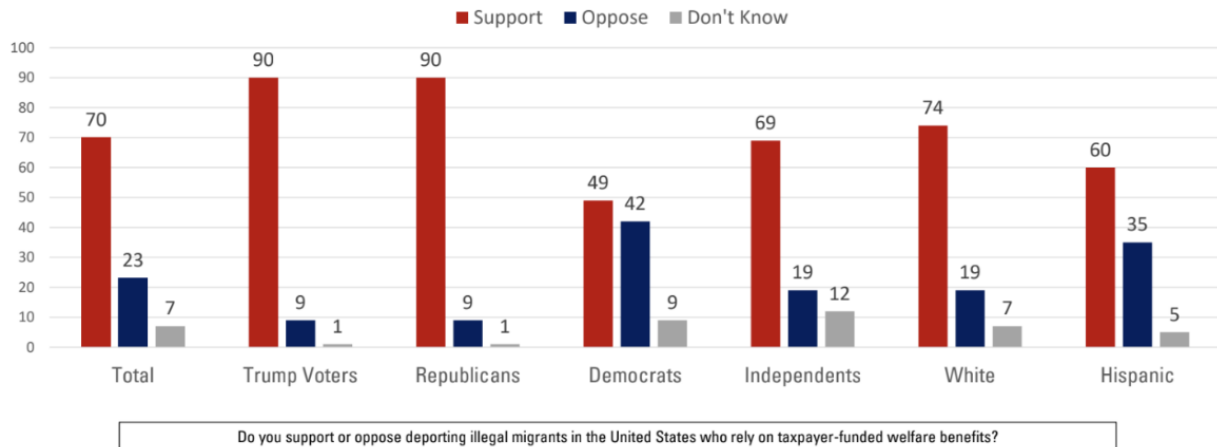
11 National Survey | 2,000 Likely Voters | McLaughlin & Associates | Immigration Accountability Project | March 2026

## Broad Support to Deport Illegal Migrants Who Rely on Taxpayer Funded Welfare

By a 3 to 1 ratio, the vast majority of voters support deporting illegal migrants in the United States who rely on taxpayer-funded welfare benefits. Roughly half of voters "strongly" support it.

### Broad Support to Deport Illegal Migrants Who Rely on Taxpayer Funded Welfare

- By a 3 to 1 ratio (70% to 23%), the vast majority supports deporting illegal migrants in the United States who rely on taxpayer-funded welfare benefits. Roughly half (47%) "strongly" supports it.
  - There is universal support (90% to 9%) among Trump voters and Republicans. Over two-thirds (69% to 19%) of Independents favor it while Democrats are more polarized (49% to 42%).
  - Three-quarters of White voters (74% to 19%) and a clear majority of Hispanics (60% to 35%) support it.



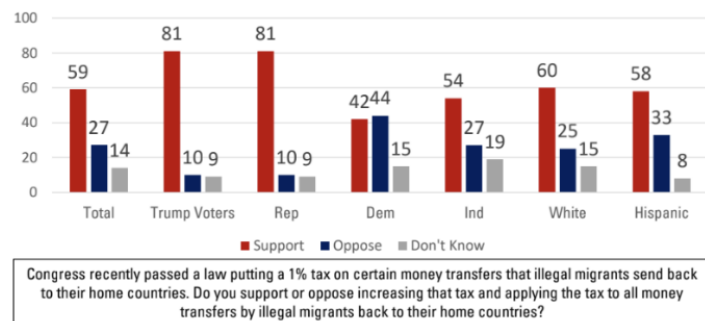
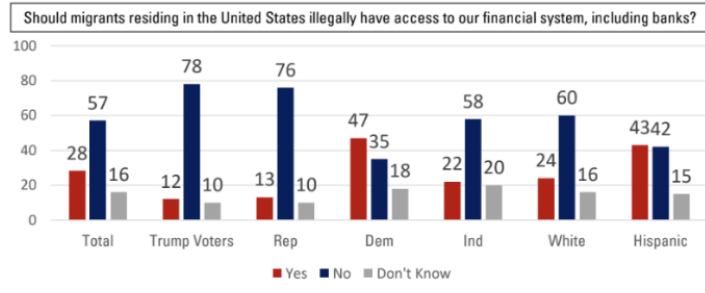
12 National Survey | 2,000 Likely Voters | McLaughlin & Associates | Immigration Accountability Project | March 2026

# Majority Opposes Illegal Migrants Having Access to U.S. Financial System

The majority of voters oppose illegal migrants having access to our financial system, including banks. Three in five voters support increasing the 1% tax on money transfers made by illegal migrants and applying the tax to all money transfers sending money back to their home counties.

## Majority Opposes Illegal Migrants Having Access to U.S. Financial System

- The majority (57% to 28%) opposes illegal migrants having access to our financial system, including banks.
  - Over three-quarters of Trump voters (78% to 12%) and Republicans (76% to 13%) oppose the access. The majority of Independents (58% to 22%) disapprove, but Democrats lean in favor of giving access (47% to 35%).
  - The majority of White voters (60% to 24%) oppose the access while Hispanics are polarized (43% yes to 42% no).
- Three in five (59% to 27%) support increasing the 1% tax on money transfers made by illegal migrants and applying the tax to all money transfers sending money back to their home countries.
  - Four in five (81% to 10%) Trump voters and Republicans support it. The majority of Independents (54% to 27%) support it while Democrats tilt against it (42% to 44%).
  - The majority support is similar among White voters (60% to 25%) and Hispanics (58% to 33%).



# Policy Explorer

This policy explorer groups recommendations into operational tracks and serves as a companion index to the full recommendations listed above.

## Worksite Control

Recommendations 1, 2, 12, and 13 combine worksite enforcement, online I-9 processing, IRS no-match consequences, and DOL coordination to disrupt unlawful labor demand.

## Financial Pressure

Recommendations 3, 8, and 9 focus on economic infrastructure through debanking, civil fines, and asset forfeiture tied to lawful presence verification.

## Identity and Compliance

Recommendations 5, 6, and 10 enforce registration, visa leverage against recalcitrant countries, and visa overstay targeting.

## Detention & Interior Enforcement

Recommendations 4, 11, 14, 15, and 16 focus on expanded detention, NCIC integration, prosecution capacity, officer reassignment, and HSTF alignment.

## Adjudication and Litigation

Recommendations 7, 17, and 18 emphasize asylum reform, criminal-removal pathways, and sustained litigation strategy against injunctive constraints.

## State + Whole-Gov Scale

Recommendations 19, 20, and 21 scale state participation, benchmark tracking, and HSI integration to move from limited enforcement to mass operational throughput.

## By The Numbers

1M+

Deportation target for 2026.

20M+

Estimated illegal alien population per President Trump and Stephen Miller.

10.8–11.1M

Estimated unauthorized workers in U.S. labor markets.

3.8M

Immigration court backlog reference point in the playbook.

~90%

Historical abscond rate reference for released populations.

75,000

In absentia orders referenced for Q1 FY 2026.

\$170B

OBBBA enforcement package cited in the playbook context.

\$45B

Detention-capacity funding figure cited in recommendations.

350,000

Actual deportations in first year, per available data.

4,000/day

Required daily apprehension rate for one million removals in 250 operational days.

**\$998/day**

Civil fine level cited for failure-to-depart violations.

**641%**

Increase in 287(g) agreements since January 2025.

# Source

“Mass Deportation Coalition Playbook.” The Mass Deportation Coalition. March 30, 2026.